



# PART D : CIRCULARS



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No. Compliance/Guidelineson7-Alnquiry/2021-22/9882

Dated:16.08.2022

To,

ACC (HQ)/ACC (Zones)  
RPFC-in charge of ROs.

6 AUG 2022

**Sub: Jurisdiction to conduct Inquiries under Sections 7A & 14B by officers in different hierarchies in field offices- clarification – reg.**

Ref: 1. HO Circular No.C-I/1(5)16/7A/MOL&E/6242 dated 22.06.2017  
2. No. RRC.II/28(31)07/53677 to 53777 dated 17th October, 2007

Sir/Madam,

Head Office *vide* circulars cited above prescribed administrative arrangement for exercise of jurisdiction u/s 7A & 14B of the EPF & MP Act, 1952 by officers in different hierarchies in the field offices.

2. In continuation to those circulars, the criteria to reckon the subscriber strength for assigning the case in certain scenarios are prescribed as under:

|     |                                                                                                                                              |                                                                                                                                                                                                                                 |
|-----|----------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1   | Adjudication of applicability dispute under Section 7A of EPF & MP Act 1952                                                                  | Employment strength of the establishment as on the date of applicability proposed by the Enforcement Officer                                                                                                                    |
| 2   | Assessment of dues on evasion in extending membership to eligible employees                                                                  | Sum of the number of additional eligible employees as reported by the EO (if any) and the number of contributory UANs in the latest ECR                                                                                         |
| 3   | Resolution of membership dispute under Para 26-B of EPF Scheme, 1952 for which power is vested with the Regional Provident Fund Commissioner | On the basis of the contributing member strength in the last complete ECR filed by the establishment                                                                                                                            |
| (a) | Offices headed by RPFC-II                                                                                                                    | All cases shall be dealt with by the RPFC-II                                                                                                                                                                                    |
| (b) | Office headed by RPFC-I but no RPFC-II posted                                                                                                | all cases shall be dealt with RPFC -I                                                                                                                                                                                           |
| (c) | Office headed by RPFC-I and RPFC-II is/are also posted                                                                                       | <p>i. cases of establishments in which the contributing member strength is upto 1000 shall be dealt with by RPFC-II</p> <p>ii. cases of establishments in which the contributing member strength is 1001 or above by RPFC I</p> |

3. For assigning the 14B inquiries for levy of penal damages for default and belated remittances of statutory dues, the number of contributory EPF members (UANs) in the ECR filed for the last month in the period of default for which penal damages are proposed to be levied shall be taken as the subscriber strength.

4. Once an inquiry is initiated u/s 7A/7B/7C/14B/26B on the prescribed criteria by jurisdictional officer, any fluctuation in the subscriber strength of the establishment in any wage month during the period of default for which inquiry is initiated shall not result in transfer of the case from officer of one level to another. Should a circumstance arise that the guidelines contained in the circular are difficult to implement due to shortage of officers, the RPFC-in charge of the RO shall forward a self-contained proposal with due justification to the ACC (Zone) for consideration. The ACC (Zone) shall be competent to decide on such proposals for deviation and decision of the ACC (Zone) on such proposal shall be conveyed within 3 days of its receipt, under intimation to the Head Office.

(This issues with the approval of the CPFC)

Yours faithfully,



(Jag Mohan)

Addl. CPFC (HQ)(Compliance, Recovery & Legal)

Copy to:

- i. Staff Officer to CPFC
- ii. CVO
- iii. All Addl. CPFC (Hqrs.)/ACCs at HO/Director, PDNASS



**ईपीएफओ, मुख्य कार्यालय**  
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**EPFO, HEAD OFFICE**  
 MINISTRY OF LABOUR & EMPLOYMENT, GOVERNMENT OF INDIA  
 14, BHIKAIJI CAMA PLACE, NEW DELHI 110066  
[www.epfindia.gov.in](http://www.epfindia.gov.in)



No. Compliance/Guidelineson7-AInquiry/2021-22/१४४१

Dated:16.08.2022

To,

**16 AUG 2022**

All Additional Central P.F. Commissioners (Zones),  
 All Regional P.F. Commissioners of Regional Offices,  
 All Officers-in-charge of District Offices.

**Sub: Departmental Representative (DR) in quasi-judicial proceedings-Regarding.**

Sir/Madam,

It is brought to the notice of the Head Office that in certain quasi-judicial proceedings under section 7A of the EPF & MP Act, 1952, Accounts Officers have been allowed to appear as Departmental Representatives. The functional roles of Accounts Officer (AO) and Enforcement Officer (EO) are altogether different and it is clarified that under no circumstances an AO shall be allowed to appear as departmental representative in any 7A inquiry.

2. Hence, all ZO's/RO's are advised to ensure that only an Enforcement Officer appears as DR in such proceedings. Any violation will be viewed seriously.

(This issues with the approval of the CPFC)

Yours faithfully,

(Jag Mohan)

ACC (HQ) (Compliance, Recovery & Legal)

cc for information to:

- i. All ACCs (HQ)/ACCs HO
- ii. CVO
- iii. Staff Officer to CPFC





कर्मचारी भविष्य निधि संगठन  
**EMPLOYEES' PROVIDENT FUND ORGANISATION**  
 श्रम एवं रोजगार मंत्रालय, भारत सरकार  
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 Website: [www.epfindia.gov.in](http://www.epfindia.gov.in), [www.epfindia.nic.in](http://www.epfindia.nic.in)



No.C-I/(104)2017/SAHARAINDIA/ 1016

Dated:

24 AUG 2021

To  
 All ACC (HQ)/ACC  
 ZOs

**Subject: Administrative scrutiny of 7A/7B/14B cases-Reg**

**Ref: E.P.F.O. H.O. Circular No. RRC.II/28(31)07/53677 to 53777 dated 17.10.2007**

Sir/Madam,

Please refer to HO guidelines dated 17.10.2007 cited above on administrative arrangements for exercise of powers and supervisory test check of final orders passed u/s 7A/14B & 7B whereby the following instructions were issued for compliance:

(i) Exercise of statutory powers u/s 7B: The jurisdiction shall be exercised by the Officer concerned only after obtaining the views of officer next in hierarchy viz. APFC, RO / DO to obtain view of RPFC-II(Compliance), RO or RPFC-I, RO (in case RPFC-II is not in the hierarchy); RPFC-II, RO to obtain view of RPFC-I, RO or Zonal Addl. CPFC (in case it is RO headed by RPFC-II) and RPFC-I, RO to obtain view of Zonal Addl. CPFC.

(ii) Administrative scrutiny of Orders issued u/s 7A/14B: That the RPFC-II/ RPFC-I should carry out supervisory test check of 7A /14B orders passed by the APFC/RPFC-II as the case may be every month and intimate his remarks / comments to the concerned assessing officer under intimation to RPFC-I / ACC of the Zone. Such check should be done every month in r/o all cases initiated on complaints referred by VIP / HO / Vigilance / Trade Unions; cases closed without actual assessment of dues and reduction of assessed amount through review under Section 7B and 10% of cases other than above. Similar, exercise may be done by ACC (Zone) at random, in r/o assessment orders passed by APFC / RPFC-II / RPFC-I.

(iii) Follow up action on observations made during test check: If the administrative authority during the test check feels necessary that the matter needs to be relooked into, directions for invoking the jurisdiction under Sec. 7B / 7C should be issued. Further, if it is found that any decision made in 7A / 7B by the assessing officer is not as per law and against the interest of EPFO, provisions of Sec. 7-I should be invoked.

2. All ACCs (ZO) are requested to furnish the information of test-checks of 7A/14B orders conducted by Zonal ACC and RPFC-I/RPFC-II during the last two years, that is, 2019-20 and 2020-21 in the ZOs and ROs under their jurisdiction in compliance of HO guidelines dated 17.10.2007.

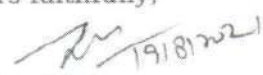
3. Further, all ACCs (ZO) are also requested to conduct test-checks on all 7B cases during the last three years, that is 2019-20 and 2020-21 in the ZOs and ROs under their jurisdiction and examine w.r.t.:

- a. whether complying with respect to the procedure laid down *vide* HO direction dated 17.10.2007;
- b. whether opened within the period stipulated under Para 79A of the Scheme; and
- c. all such cases where the amount assessed in original order passed is reduced in assessment after re-opening the matter u/s 7B.

4. The report in the format enclosed should be furnished by 31.08.2021 for the last two years along with the report for the first quarter of 2021-22. If nothing is received HO will proceed further presuming NIL report. Moreover, the report for the quarter ending June, September, December and March of an year (2021-22 onwards) should be furnished by the last working day of July, October, January and April, respectively, without fail.

Yours faithfully,

Encls: As above.

  
(Jag Mohan)

**Addl. CPFC (HQ) (Compliance & Recovery, Legal)**





कर्मचारी भविष्य निधि संगठन  
(श्रम एवं रोजगार मंत्रालय, भारत सरकार)  
**EMPLOYEES' PROVIDENT FUND ORGANISATION**  
(Ministry of Labour & Employment, Govt. of India)  
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Bhavishya Nidhi Bhawan, 14, Bhikaiji Cama Place, New Delhi - 110 066.

Through Web Circulation

No. C-1/3(28)2016/7A & 14B/1189

Date: 19.01.2021

To,

All Addl. CPFCs (Zones),  
All RPFCs –In Charge of Regions

**Sub:- Instructions for conduct of quasi judicial proceedings under the EPF & MP Act, 1952.**

Sir,

Directions have been issued by this office from time to time for appropriate conduct of quasi-judicial adjudicatory proceedings under the Act. Instances have, however, been noticed where such proceedings have not been conducted properly and, in the consequence thereof, invited adverse observations from Constitutional Courts.

2. Hon'ble Delhi High Court in a recent pronouncement in **Civicon Engg Contracting Vs Central Board of Trustees [WP 9530/2020]**, while noticing several inconsistencies in conduct of proceedings u/s 14B, has directed for issue of practice directions to all officers discharging adjudicatory functions under the Act. The following directions are, therefore, issued for strict compliance by all adjudicating officers:

i). All quasi judicial proceedings under the EPF & MP Act, 1952 for which functionality has been created in the 'e proceedings portal' must be conducted through the portal. If conduct of proceedings is not possible in any case through the portal for functional or technical reasons must be brought to the notice of the concerned Zonal Offices. In this context, instructions issued by EPFO, Head Office vide Circular No. C-1/63)2017/e-court/7647 dated 24.07.2017 and No.C-1/1(63)2017/e-Proceedings Management (Pt file)/1028 dated 17.02.2020 may be adhered to strictly.

ii). Instructions have already been issued vide EPFO, HO Circular No. C-II/20/76/Misc./2020/CBE/TN/1027 dated 14.02.2020 against initiation of fishing and roving inquiries. It is reiterated that such proceedings are impermissible in law. Adjudicating officers must record reasons *qua* existence of a prima facie case before commencing any inquiry/proceedings under the Act.

iii). Wherever inquiries/proceedings are initiated, the notice thereof should be accompanied with documents that have constituted the basis for initiation of such inquiries.

iv). All notices must be issued through speed post with proof of delivery. Additionally, a copy thereof should be sent at the email address submitted in official returns. In case any party intends to receive inquiry related communications at a particular email id, the notices may be sent at such id as well.

Contd..Pg.2



v). Whenever the proceedings are adjourned, the next date of listing must be informed to the parties present at that stage itself and the case status i.e. upload of daily order sheet and next date should be updated on the Compliance e-proceeding portal so that all parties can access the same on the link <https://eproceedings.epfindia.gov.in/epfo/public/caseenowisearch.php>.

vi). It is the duty of every Adjudicating Officer to ensure that parties to the proceedings are afforded sufficient opportunity to represent their cases.

vii). Wherever any case is reserved for orders, the Adjudicating Officer must fix a date of pronouncement, preferably within the next fifteen days, and inform the same to the parties by methods specified at iv) & v) above.

viii). In cases where it is proposed to proceed *ex-parte* in any proceedings, the adjudicating officer must examine the aspect of service of notice minutely and record his satisfaction thereto before proceeding as such.

ix). All final orders must be properly authenticated with dated signatures of the adjudicating officer and the official stamp. The provisions of The State Emblem of India (Regulation of Use) Rules, 2007 must be complied with in use of official seals.

x). Final orders must be dispatched thorough modes specified at iv). above. A copy thereof must also be uploaded in the Compliance e-proceedings portal within the next three days of pronouncement to make it available to all parties on the link <https://eproceedings.epfindia.gov.in/epfo/public/caseenowisearch.php>.

xi). Detailed instructions and guidance for conducting the virtual hearing in quasi-judicial cases using IT Applications issued vide Circular No. C-I/3(28)2016/7A & 14B/1164 dated 01.10.2020 should be scrupulously followed to enable parties to join the hearings from remote location of their choice and convenience.

3. The directions to the above effect are issued for scrupulous compliance by the concerned officers. Any lapse will attract appropriate proceedings.

**(This issues with the approval of Central Provident Fund Commissioner)**

Yours faithfully,

  
(Jag Mohan)

**Addl. CPFC (Hqrs.) (Compliance & Legal)**

Copy to:

1. PS to CPFC
2. FA & CAO / CVO / All Addl. CPFC (Hqrs.) at Head Office/ Director, PDUNASS
3. All Addl. CPFCs at Head Office



कर्मचारी भविष्य निधि संगठन  
(श्रम एवं रोजगार मंत्रालय, भारत सरकार)  
**EMPLOYEES' PROVIDENT FUND ORGANISATION**  
(Ministry of Labour & Employment, Govt. of India)  
मुख्य कार्यालय / Head Office  
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Bhavishya Nidhi Bhawan, 14, Bhikaiji Cama Place, New Delhi - 110 066.

No. C-I/1(63)2017/e-Proceedings Management (Pt. file)/1028 Date: 17/2/20

To

All Addl. Central PF Commissioners (Zones)  
All RPFCs, Regional Office  
All District Offices

**Sub:- Conducting Inquiries through e-Court Software.**

**Ref:- (i) LC-7/5/e-court/2665 dated 23.05.2017.  
(ii) LC-7(61)/e-court/4793 dated 05.06.2017.  
(iii) C-I/1(63)2017/7647 dated 24.07.2017.**

Sir/Madam,

The EPFO e-Court Management System was launched in May, 2017 conceptualizing paperless quasi judicial proceedings in the Organisation and to bring transparency and e-monitoring of quasi judicial proceedings. It was envisaged that the system will enable all parties to file their documents online, the proceedings status will be recorded spontaneously and the status can be viewed online. It was further instructed that all new cases under Section 7A, 7B, 7C, 7Q, 14B and under Para 26B must be registered and processed through EPFO e-court Management System and old cases may also be entered in time bound manner.

The OICs were made responsible to ensure that the administrative structure is appropriately put up and monitoring of all pending cases shall be done through e-Court system. While reviewing the data available on EPFO website under link "Compliance e-proceedings", it is observed that the system is not being properly used for reports, analysis and monitoring as effectively as is possible. There are many offices where not a single case is reported to be initiated in the system during the year. At the same time there are many offices whose users have not been up dated. In a number of cases, the cases are closed but no order is uploaded.

Further, it is decided that the system shall be linked with unified portal within next 2-3 months so that the notices and orders are directly placed in user login of the employers.



In view of the above it is time to revisit the system and to ensure entire work of assessment under Section 7A, 7B, 7C, 7Q, 14B and Para 26B of dues and damages is done through e-Court system timely.

The following areas may be given special attention and the work may be reviewed using the dashboard under the system during O&M Meetings:-

1. Show cause notices of assessment should be issued through e-Court System only. Any notice or any communication regarding proceedings under above sections which is not through the e-Court System shall be treated as non est. If such notices issued out of the system comes to the notice of OICs, ACCs or Head Office action shall be taken against the concerned officers by the competent authority.
2. All Zones are requested to furnish a detail of all pending proceedings under Section 7A, 7B, 7C, 7Q, 14B and under Para 26B which are not registered / conducted through e-Court Management System and issue show cause notice to concerned officers for violating the instructions.
3. Further, all Zones are requested to ensure that all aforesaid left out cases are registered in e-Court Management System within a period of 15 days and furnish a certificate that all inquiries are through e-Court Management System.

[This issues with the approval of CPFC]

Yours faithfully,

  
(Jag Mohan)

**Addl. Central PF Commissioner (HQ) (Compliance)**



कर्मचारी भविष्य निधि संगठन  
(अथ एवं रोजगार, पेंशन, भारत सरकार)  
**EMPLOYEES' PROVIDENT FUND ORGANISATION**  
(Ministry of Labour & Employment, Govt. of India)  
मुख्य कार्यालय / Head Office  
भविष्य निधि भवन, 14-भिकाजी कामा प्लेस, नई दिल्ली-110 066.  
Bhavishya Nidhi Bhawan, 14, Bhikaiji Cama Place, New Delhi - 110 066.

No.C-II/20/76/Misc./2020/CBE/TN/1027

Date:14.02.2020

To

**All Addl. Central PF Commissioners (Zones),  
All Regional PF Commissioners of Regional Offices,  
All Officers-in-charge of District Offices**

**Subject:** - Guidelines for initiation of inquiries u/s 7A of the Act.

Madam/Sir,

It is noticed that the Assessing Officers follow different yardstick as they deem fit for initiation of inquiries u/s 7A of the Act. In many cases inquiries are initiated for wholly insufficient and untenable reasons and even without ascertainment of sufficient grounds which leads to general resentment among employers on one hand and prolonged pendency of such inquiries on the other.

Section 7A of the Act predicates the statutory mandate of resolution of applicability disputes or determination of amounts due from employers and, for this purpose, also clothes the authorities with the trappings of a Court under the Code of Civil Procedure. The duty to act judicially, fairly and equitably is copiously discernable from the statutory mandate.

In order to bring uniformity in the procedure for initiation of inquiries u/s 7A and in supersession of the earlier instructions, the following instructions are issued in reiteration of the laid down law on this issue:-

1. Inquiries u/s 7A shall not be initiated for any purpose extraneous to the statutory mandate of section 7A i.e dispute of applicability or determination of dues. Therefore grounds such as non-submission of returns, non-production of records, non-cooperation in inspections etc. are not reasons within the sweep of section 7A and do not, therefore, constitute a sufficient basis for initiating proceedings under section 7A.
2. The minimum standard of evidence for commencement of any legal proceedings is "existence of a prima-facie case" and the same applies to proceedings u/s 7A as well. Any inquiry or legal proceeding initiated without a prima- facie case is of the nature of fishing and roving inquiry and the same is impermissible in law. Such inquiries are a nullity in the eyes of law and are non-est *ab-initio*. Therefore the Assessing Officers shall record reasons in file, on the basis of evidence available on record, regarding existence of a prima-facie case of default, or of an applicability dispute, before initiating process u/s 7A.
3. A mere complaint in itself does not constitute prima-facie evidence, sufficient to initiate an inquiry u/s 7A as complaint is only a source of information and not a legal proof of the allegations. Therefore, any complaint is required to be investigated by an Enforcement Officer under section 13 (1) of the Act and substantiated on the basis of admissible evidence gathered during investigation. The tendency to initiate inquiries on the basis of complaints alone is legally untenable and must be avoided as it lead to surpassing the investigations required under law before initiation of any inquiry.
4. Sometimes the inquiries are initiated for prolonged durations such as 5 to 20 years without any evidence of such prolonged default. This practice is legally untenable and must be eschewed. Therefore, before initiating the inquiry, the assessing officer shall record in writing proximate nexus with the evidence of default available on record and the period for which the inquiry is intended to be held.

5. Once an inquiry is initiated for specific reasons and period, the scope thereof cannot be extended beyond the fact-in-issue. The scope of the inquiry need not travel beyond the issues identified at the stage of its initiation. For any new reason or period separate notice must be issued. The records summoned from the employer, therefore, must have reasonable linkage with the subject matter of determination and the period. The practice of summoning unrelated records for prolonged period amounts to conducting a fishing and roving inquiry which is not permissible in law.

6. Wherever the inquiries are intended to be initiated on the basis of credible evidence and meeting the requirements of principles narrated above, reasons for initiation of inquiry must be recorded in writing and a copy of all documents forming basis for initiation of inquiry must be supplied to the concerned parties along with the notice u/s 7A.

7. The notice initiating inquiry shall be assigned a computer generated diary number from Compliance e-Proceedings portal and any notice issued without case number generated from Compliance e-Proceedings portal shall be treated as non-est.

The above instructions may be scrupulously followed by all officers.

[This issues with the approval of the Central P.F. Commissioner]

Yours faithfully,



(Pankaj Ramani)

**Addl. Central P F Commissioner (Compliance)**

Copy for information:-

1. PS to CPFC
2. PS to FA&CAO/ CVO/ All Addl. CPFCs (HQ) at Head Office.
3. Director PDNASS
4. Hindi Cell for Hindi Translation.
5. NDC for web circulation.





कर्मचारी भविष्य निधि संगठन  
(श्रम एवं रोजगार मंत्रालय, भारत सरकार)  
**EMPLOYEES' PROVIDENT FUND ORGANISATION**  
(Ministry of Labour & Employment, Govt. of India)  
मुख्य कार्यालय / Head Office  
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Bhavishya Nidhi Bhawan, 14, Bhikaiji Cama Place, New Delhi - 110 066.

WEB CIRCULATION

No. C-I/3(28)2016/7A & 14B/1161

Date: 01.10.2020

To,

All Addl. CPFCs in charge of Zones  
All Regional P F Commissioners in charge of RO

**Sub: Conduct of virtual hearing in quasi-judicial cases by Assessing Officers through Video conferencing by use of secure IT applications.**

Sir,

You are aware that the aforesaid system of conduct of virtual hearing in quasi-judicial cases under the EPF & MP Act, 1952 through Video conferencing was launched by the Hon'ble Minister of State (I/C), MoL & E, Govt. of India and Chairman, CBT, EPF on 09.09.2020.

The objective of the system is to:

- Enable Adjudicating Officers (AO) to discharge their quasi-judicial duty to hear parties for adjudicating the issues under inquiry
- Enable Parties to make submissions, present their case & file documents from remote location of their convenience instead of physical appearance before the AO at EPFO Office.
- Integration of Virtual hearings with e-Court process on Compliance e-Proceedings Portal.

In this connection, following instructions & guidelines are issued for compliance by all concerned Assessing Officers, Enforcement Officers/Department Representatives and for strict implementation by RPFCs and Zonal ACCs:

Henceforth, hearings in all inquiry cases u/s 7A & section 14B, including cases remanded by higher judicial forums for fresh adjudication are to be held in Virtual mode only.

I. It should be ensured that

- Registered email id & Mobile number of employer is available is available in Form 5A or (DSC)/e-Sign or Establishment Master for direct e-communication to employer. Once the User ID or Login on Unified Portal is integrated with Compliance e-Proceedings Portal, the e-communication shall be through the Employer's Login. Contact details- email id & Mobile number of other parties to dispute need to be obtained for communication and sending link for Virtual hearing.

The IS Division shall be deploying message in Login of employers for confirmation of their Email Id so as to avoid sending message to any incorrect Email Id

- Each Assessing Officer to have a dedicated official e-mail id (@epfindia.gov.in) for communication with employers and other parties in r/o 7A & 14B cases.
- The ZO/RO to identify and select any secure Video Conferencing Application/Utility for virtual hearings
- Inquiry Proceeding is to be conducted on Compliance e-Proceedings Portal (herein after referred to as the Portal) so as to have a computerized case diary and status of the case and orders passed are accessible to parties on the Portal.
- After seeding and filing Summon No., EO's Inspection Report in the Portal, the Diary Number of the case is generated and the inquiry formally gets commenced.
- The Case Diary ID no. shall be quoted on all the communications- notice for hearing, daily order sheets, final orders, orders and notices in execution process.
- Sufficient evidence is available on record for assessment of dues.



- h. Inspection Report of EO is filed or prepared/available & can be filed

The Assessing Officers shall ensure service of e-Notice containing details of Virtual hearing and conduct the hearings as per guidelines mentioned below:

## **II. Content and service of e-Notice:**

**Service:** Till time the User ID or Login on Unified Portal is integrated with Compliance e-Proceedings Portal, e-Notice intimating the date, time & mode of the hearing is to be served on Employer through email ID disclosed in Form 5A or (DSC)/e-Sign or Establishment Master and through SMS/WA to Mobile number informed in Form 5A or in DSC/e-Sign and to other parties, if any, through e-mail id and SMS on mobile number. The Case ID number of Compliance e-Proceedings should invariably be quoted in all notices for hearings.

### **Content of Notice:**

- a. Virtual Mode of hearing specifying the date and time and Meeting link to employer & others to join the hearing at scheduled time.
- b. Use of any video conferencing Utility compatible with desktop/laptop/Cell phone.
- c. Quick user guide to participate in Video hearing using meeting link.
- d. URL of Compliance e-Proceedings Portal to enable employer to know case status including next date of hearing & daily orders --  
<https://eproceedings.epfindia.gov.in/epfo/public/caseenowisearch.php>
- e. Liberty to Employer/other parties to furnish from their registered email id authorisation letter in favour of their representative for hearing

## **III. Participation of AO, DR & others**

1. Assessing Officer (AO) shall conduct virtual Court from desktop in his office chamber.
2. EO (Dept. Representative) to attend hearings in 7A cases through Desktop available in Office. In 14B cases, the SS/DA of the Section shall attend the hearings through desktop available in Office.
3. Compliance Section SS/SSA- custodian of the file & records & role of filer in the Compliance e-Proceedings Portal shall join the virtual hearing through link from Desktop in Section/Office for carrying out following roles:
  - To scan and upload physical documents delivered by any party.
  - To type out proceedings, take print out, upload daily or final order on Portal after signature of AO
  - To update status in each case on Portal & follow calendar
  - Issue of notice of hearings, adjournments and orders to parties through e-mail

## **IV. Conduct of Hearings**

1. On the date of the hearing, the hyperlink of Video Conferencing provided in e-Notice would enable the parties to participate in the proceedings remotely. Office of the AO to verify whether authorization letter is received from employer's registered email id /other parties in favour of the persons appearing in the virtual hearing.
2. AO to satisfy himself/herself that all the parties participating from remote points can be seen and heard clearly and that each of the parties at their point can clearly see and hear the AO and other parties. AO should have a clear image of each party.
3. Proceedings to be drawn on the spot in presence of the participating parties in the Portal directly using the screen share mode of the VC utilities.
4. Oral submissions made, including admission of liability by employer or consent of complainant to the assessment of dues & arguments put forth by parties during video conferencing should be recorded by AO in daily order sheet.
5. The daily order sheet with signature of the Assessing Officer is to be sent by email to the parties for resubmission by each party through e-mail in PDF format bearing signature or digital signature or e-sign of the employer/complainant or their authorized representatives who appeared in the hearing.



6. **Filing of documents:** If employer needs to file documents/papers/statement in support of his case or to contest the case of EPFO, the same be allowed to be filed by employer from their registered e-mail id to a dedicated e-mail id of AO's Office. The other parties can also file documents in support of their case through their email id. The documents in PDF format bearing signature or signed digitally by the person authenticating the documents/records shall be admitted. The document/statement so filed can be uploaded by SS/DA on the Portal once such facility is enabled. If any employer or any other party to dispute insists on filing submission or document in hard copy through post or by delivery at office of AO, the same may be allowed which can be scanned and uploaded by SS/DA Filer on Portal.
7. AO to specifically record in the daily order sheet as to the admission of a document as evidence and take it on record by assigning a marking to it for identification.
8. As the next date and time of the hearing is mentioned in the Daily Order Sheet, no separate adjournment notice is issued to the establishment. The AO is to make use of Calendar feature, if any, available in the VC Utility to triggers email to all the participants regarding next date & time of hearing
9. The audio visual Virtual hearing shall be recorded either in desktop or cloud by the licensed host (O/o AO, EPFO).
10. On conclusion of hearings, AO should fix a date preferably within 7 days for pronouncement of orders on which day the final order should be uploaded on Compliance e-Portal.

The RPFC-I in charge of RO and Zonal Addl. CPFCs are required to steer the implementation in a smooth manner and ensure that hearings of inquiries are taken up through video conferencing through secure IT applications duly using the features available & enabled on Compliance e-Proceedings Portal. The RPFCs and ACCs shall continue to be responsible for review of pending cases and quality & content of final orders issued on monthly basis.

Please note that development process is underway to integrate Employer's Login credentials on the Unified Portal and EO's credentials on SSP with the Portal for login, service of e-notice & Inspection report on the employer & filing of documents by employer and EO with e-sign/ digital signature & to enable filer role of SS/DA in the Portal till conclusion of case. Further guidelines shall be issued after development.

Any query or feedback regarding above may be sent to email address: [virtual.hearing@epfindia.gov.in](mailto:virtual.hearing@epfindia.gov.in).

(This issues with the approval of the Central P F Commissioner)

Yours faithfully,

  
(Pankaj Raman)

Addl. CPFC (Compliance) 11/10/2020

Copy for information

1. PS to CPFC
2. FA & CAO
3. All Addl. CPFCs (Hqrs.) at EPFO, HO
4. CVO, Vigilance Headquarters, EPFO
5. Director, PDNASS
6. All Addl. CPFCs at EPFO, HO

14B Data as on 31.12.2018

| SR.NO | ZONE                                          | REGION           | OFFICE                    | OB AS ON<br>STARTING<br>DATE | CASES<br>INITIATED<br>DURING<br>THE PERIOD | NET<br>WORK<br>LOAD | CASES<br>DELETED<br>DURING<br>THE<br>PERIOD | CASES<br>DISPOSED<br>DURING<br>THE<br>PERIOD | CASES<br>PENDING<br>DURING<br>THE<br>PERIOD |
|-------|-----------------------------------------------|------------------|---------------------------|------------------------------|--------------------------------------------|---------------------|---------------------------------------------|----------------------------------------------|---------------------------------------------|
| A     | B                                             | C                | D                         | E                            | F                                          | G                   | H                                           | I                                            | J                                           |
| 1     | ANDHRA<br>PRADESH,<br>TELANGANA<br>AND ORISSA | BHUBANE<br>SHWAR | RO,<br>BHUBANE<br>SWAR    | 1799                         | 102                                        | 1901                | 18                                          | 132                                          | 1751                                        |
| 2     | ANDHRA<br>PRADESH,<br>TELANGANA<br>AND ORISSA | BHUBANE<br>SHWAR | SRO,<br>BERHAMP<br>UR     | 18                           | 19                                         | 37                  | 1                                           | 25                                           | 11                                          |
| 3     | ANDHRA<br>PRADESH,<br>TELANGANA<br>AND ORISSA | BHUBANE<br>SHWAR | SRO,<br>KEONJHA<br>R      | 68                           | 5                                          | 73                  | 0                                           | 4                                            | 69                                          |
| 4     | ANDHRA<br>PRADESH,<br>TELANGANA<br>AND ORISSA | BHUBANE<br>SHWAR | SRO,<br>ROURKEL<br>A      | 375                          | 0                                          | 375                 | 0                                           | 0                                            | 375                                         |
| 5     | ANDHRA<br>PRADESH,<br>TELANGANA<br>AND ORISSA | GUNTUR           | RO,<br>GUNTUR             | 269                          | 20                                         | 289                 | 2                                           | 12                                           | 275                                         |
| 6     | ANDHRA<br>PRADESH,<br>TELANGANA<br>AND ORISSA | GUNTUR           | SRO,<br>KADAPA            | 84                           | 90                                         | 174                 | 0                                           | 58                                           | 116                                         |
| 7     | ANDHRA<br>PRADESH,<br>TELANGANA<br>AND ORISSA | GUNTUR           | SRO,<br>RAJAMUN<br>DRY    | 179                          | 0                                          | 179                 | 0                                           | 0                                            | 179                                         |
| 8     | ANDHRA<br>PRADESH,<br>TELANGANA<br>AND ORISSA | GUNTUR           | SRO,<br>VISHAKAP<br>ATNAM | 152                          | 14                                         | 166                 | 0                                           | 30                                           | 136                                         |
| 9     | ANDHRA<br>PRADESH,<br>TELANGANA<br>AND ORISSA | HYDERAB<br>AD    | RO,<br>HYDERAB<br>AD      | 962                          | 0                                          | 962                 | 0                                           | 0                                            | 962                                         |
| 10    | ANDHRA<br>PRADESH,<br>TELANGANA<br>AND ORISSA | HYDERAB<br>AD    | SRO,<br>KUKATPA<br>LLI    | 209                          | 15                                         | 224                 | 11                                          | 23                                           | 190                                         |
| 11    | ANDHRA<br>PRADESH,<br>TELANGANA<br>AND ORISSA | HYDERAB<br>AD    | SRO,<br>PATANCH<br>ERU    | 18                           | 0                                          | 18                  | 1                                           | 10                                           | 7                                           |
| 12    | ANDHRA<br>PRADESH,<br>TELANGANA<br>AND ORISSA | HYDERAB<br>AD    | SRO,<br>SIDDIPET          | 13                           | 0                                          | 13                  | 0                                           | 1                                            | 12                                          |
| 13    | ANDHRA<br>PRADESH,<br>TELANGANA<br>AND ORISSA | NIZAMAB<br>AD    | RO,<br>NIZAMAB<br>AD      | 0                            | 0                                          | 0                   | 0                                           | 0                                            | 0                                           |
| 14    | ANDHRA<br>PRADESH,<br>TELANGANA<br>AND ORISSA | NIZAMAB<br>AD    | SRO,<br>KARIMNA<br>GAR    | 17                           | 64                                         | 81                  | 0                                           | 50                                           | 31                                          |



|    |                                      |               |                   |      |     |      |   |     |      |
|----|--------------------------------------|---------------|-------------------|------|-----|------|---|-----|------|
| 15 | ANDHRA PRADESH, TELANGANA AND ORISSA | NIZAMABAD     | SRO, WARANGAL     | 40   | 2   | 42   | 0 | 33  | 9    |
| 16 | DELHI AND UTTARAKHAND                | DEHRADUN      | RO, DEHRADUN      | 59   | 0   | 59   | 0 | 0   | 59   |
| 17 | DELHI AND UTTARAKHAND                | DEHRADUN      | SRO, HALDWAN      | 16   | 0   | 16   | 0 | 0   | 16   |
| 18 | DELHI AND UTTARAKHAND                | DELHI (NORTH) | RO, DELHI (NORTH) | 376  | 0   | 376  | 0 | 16  | 360  |
| 19 | DELHI AND UTTARAKHAND                | DELHI (SOUTH) | RO, DELHI (SOUTH) | 1732 | 0   | 1732 | 0 | 0   | 1732 |
| 20 | DELHI AND UTTARAKHAND                | DELHI (SOUTH) | SRO, LAXMI NAGAR  | 567  | 12  | 579  | 1 | 12  | 566  |
| 21 | GUJARAT AND MADHYA PRADESH           | AHMEDABAD     | RO, AHMEDABAD     | 466  | 0   | 466  | 0 | 0   | 466  |
| 22 | GUJARAT AND MADHYA PRADESH           | AHMEDABAD     | SRO, NARODA       | 17   | 15  | 32   | 0 | 0   | 32   |
| 23 | GUJARAT AND MADHYA PRADESH           | AHMEDABAD     | SRO, RAJKOT       | 286  | 0   | 286  | 0 | 15  | 271  |
| 24 | GUJARAT AND MADHYA PRADESH           | AHMEDABAD     | SRO, VATWA        | 72   | 0   | 72   | 0 | 0   | 72   |
| 25 | GUJARAT AND MADHYA PRADESH           | INDORE        | RO, INDORE        | 1357 | 64  | 1421 | 2 | 81  | 1338 |
| 26 | GUJARAT AND MADHYA PRADESH           | INDORE        | SRO, BHOPAL       | 547  | 17  | 564  | 0 | 15  | 545  |
| 27 | GUJARAT AND MADHYA PRADESH           | INDORE        | SRO, GWALIOR      | 210  | 138 | 348  | 2 | 48  | 298  |
| 28 | GUJARAT AND MADHYA PRADESH           | INDORE        | SRO, JABALPUR     | 436  | 94  | 530  | 0 | 74  | 456  |
| 29 | GUJARAT AND MADHYA PRADESH           | INDORE        | SRO, SAGAR        | 293  | 3   | 296  | 0 | 111 | 185  |
| 30 | GUJARAT AND MADHYA PRADESH           | INDORE        | SRO, UJJAIN       | 222  | 0   | 222  | 0 | 0   | 222  |

|    |                                  |               |                                     |      |     |      |    |     |      |
|----|----------------------------------|---------------|-------------------------------------|------|-----|------|----|-----|------|
| 31 | GUJARAT AND<br>MADHYA<br>PRADESH | SURAT         | RO,<br>SURAT                        | 168  | 113 | 281  | 2  | 10  | 269  |
| 32 | GUJARAT AND<br>MADHYA<br>PRADESH | SURAT         | SRO,<br>BHARUCH                     | 63   | 48  | 111  | 0  | 36  | 75   |
| 33 | GUJARAT AND<br>MADHYA<br>PRADESH | SURAT         | SRO, VAPI                           | 337  | 0   | 337  | 0  | 0   | 337  |
| 34 | GUJARAT AND<br>MADHYA<br>PRADESH | VADODAR<br>A  | RO,<br>VADODAR<br>A                 | 314  | 64  | 378  | 4  | 96  | 278  |
| 35 | HARYANA AND<br>RAJASTHAN         | FARIDABA<br>D | RO,<br>FARIDABA<br>D                | 83   | 11  | 94   | 10 | 17  | 67   |
| 36 | HARYANA AND<br>RAJASTHAN         | FARIDABA<br>D | SRO,<br>KARNAL                      | 190  | 0   | 190  | 0  | 0   | 190  |
| 37 | HARYANA AND<br>RAJASTHAN         | GURGAON       | RO,<br>GURGAON                      | 144  | 28  | 172  | 2  | 43  | 127  |
| 38 | HARYANA AND<br>RAJASTHAN         | GURGAON       | SRO,<br>ROHTAK                      | 105  | 107 | 212  | 1  | 62  | 149  |
| 39 | HARYANA AND<br>RAJASTHAN         | JAIPUR        | RO,<br>JAIPUR                       | 1201 | 66  | 1267 | 1  | 218 | 1048 |
| 40 | HARYANA AND<br>RAJASTHAN         | JAIPUR        | SRO,<br>JODHPUR                     | 220  | 0   | 220  | 0  | 0   | 220  |
| 41 | HARYANA AND<br>RAJASTHAN         | JAIPUR        | SRO,<br>KOTA                        | 79   | 8   | 87   | 0  | 12  | 75   |
| 42 | HARYANA AND<br>RAJASTHAN         | JAIPUR        | SRO,<br>UDAIPUR                     | 156  | 54  | 210  | 1  | 155 | 54   |
| 43 | KARNATKA<br>AND GOA              | BANGALO<br>RE | RO,<br>BANGALO<br>RE                | 1374 | 18  | 1392 | 1  | 25  | 1366 |
| 44 | KARNATKA<br>AND GOA              | BANGALO<br>RE | SRO,<br>RAJARAJE<br>SHWARI<br>NAGAR | 81   | 76  | 157  | 9  | 27  | 121  |
| 45 | KARNATKA<br>AND GOA              | GOA           | RO, GOA                             | 577  | 18  | 595  | 16 | 27  | 552  |
| 46 | KARNATKA<br>AND GOA              | GULBARG<br>A  | RO,<br>GULBARG<br>A                 | 98   | 11  | 109  | 1  | 17  | 91   |



|    |                                        |               |                                       |      |     |      |    |     |      |
|----|----------------------------------------|---------------|---------------------------------------|------|-----|------|----|-----|------|
| 47 | KARNATKA<br>AND GOA                    | GULBARG<br>A  | SRO,<br>BELLARY                       | 188  | 22  | 210  | 0  | 21  | 189  |
| 48 | KARNATKA<br>AND GOA                    | GULBARG<br>A  | SRO,<br>HUBLI                         | 375  | 132 | 507  | 1  | 193 | 313  |
| 49 | KARNATKA<br>AND GOA                    | GULBARG<br>A  | SRO,<br>RAICHUR                       | 54   | 17  | 71   | 0  | 8   | 63   |
| 50 | KARNATKA<br>AND GOA                    | MANGALO<br>RE | RO,<br>MANGALO<br>RE                  | 166  | 121 | 287  | 2  | 103 | 182  |
| 51 | KARNATKA<br>AND GOA                    | MANGALO<br>RE | SRO,<br>CHIKAMA<br>GALUR              | 156  | 20  | 176  | 14 | 19  | 143  |
| 52 | KARNATKA<br>AND GOA                    | MANGALO<br>RE | SRO,<br>MYSORE                        | 734  | 16  | 750  | 1  | 405 | 344  |
| 53 | KARNATKA<br>AND GOA                    | MANGALO<br>RE | SRO,<br>SHIMOGA                       | 7    | 0   | 7    | 0  | 3   | 4    |
| 54 | KARNATKA<br>AND GOA                    | MANGALO<br>RE | SRO,<br>UDUPPI                        | 0    | 5   | 5    | 0  | 5   | 0    |
| 55 | KARNATKA<br>AND GOA                    | PEENYA        | RO,<br>PEENYA                         | 455  | 75  | 530  | 6  | 92  | 432  |
| 56 | KARNATKA<br>AND GOA                    | PEENYA        | SRO,<br>BOMMASA<br>NDRA               | 257  | 40  | 297  | 0  | 45  | 252  |
| 57 | KARNATKA<br>AND GOA                    | PEENYA        | SRO, K R<br>PURAM<br>(WHITEFI<br>ELD) | 3619 | 162 | 3781 | 81 | 29  | 3671 |
| 58 | MAHARASHTRA<br>AND<br>CHHATTISGAR<br>H | BANDRA        | RO,<br>BANDRA<br>(MUMBAI-<br>I)       | 2204 | 1   | 2205 | 1  | 1   | 2203 |
| 59 | MAHARASHTRA<br>AND<br>CHHATTISGAR<br>H | KANDIVAL<br>I | RO,<br>MALAD<br>(KANDIVA<br>LI)       | 1642 | 0   | 1642 | 0  | 2   | 1640 |
| 60 | MAHARASHTRA<br>AND<br>CHHATTISGAR<br>H | KANDIVAL<br>I | SRO,<br>NASIK                         | 453  | 0   | 453  | 0  | 0   | 453  |
| 61 | MAHARASHTRA<br>AND<br>CHHATTISGAR<br>H | NAGPUR        | RO,<br>NAGPUR                         | 127  | 12  | 139  | 2  | 12  | 125  |
| 62 | MAHARASHTRA<br>AND<br>CHHATTISGAR<br>H | NAGPUR        | SRO,<br>AKOLA                         | 238  | 0   | 238  | 0  | 22  | 216  |



|    |                                    |                |                                    |      |     |      |   |     |      |
|----|------------------------------------|----------------|------------------------------------|------|-----|------|---|-----|------|
| 63 | MAHARASHTRA<br>AND<br>CHHATTISGARH | NAGPUR         | SRO,<br>AURANGA<br>BAD             | 330  | 0   | 330  | 0 | 5   | 325  |
| 64 | MAHARASHTRA<br>AND<br>CHHATTISGARH | PUNE           | RO, PUNE                           | 1064 | 20  | 1084 | 3 | 33  | 1048 |
| 65 | MAHARASHTRA<br>AND<br>CHHATTISGARH | PUNE           | SRO,<br>KOLHAPUR                   | 519  | 9   | 528  | 1 | 10  | 517  |
| 66 | MAHARASHTRA<br>AND<br>CHHATTISGARH | PUNE           | SRO,<br>SOLHAPUR                   | 272  | 35  | 307  | 0 | 88  | 219  |
| 67 | MAHARASHTRA<br>AND<br>CHHATTISGARH | RAIPUR         | RO,<br>RAIPUR<br>(CHATTIS<br>GARH) | 2465 | 46  | 2511 | 0 | 63  | 2448 |
| 68 | MAHARASHTRA<br>AND<br>CHHATTISGARH | THANE          | RO,<br>THANE<br>(MUMBAI-<br>II)    | 750  | 19  | 769  | 2 | 26  | 741  |
| 69 | MAHARASHTRA<br>AND<br>CHHATTISGARH | THANE          | SRO,<br>VASHI                      | 668  | 97  | 765  | 0 | 50  | 715  |
| 70 | PUNJAB AND<br>HIMACHAL<br>PRADESH  | CHANDIG<br>ARH | RO,<br>CHANDIG<br>ARH              | 362  | 0   | 362  | 0 | 0   | 362  |
| 71 | PUNJAB AND<br>HIMACHAL<br>PRADESH  | CHANDIG<br>ARH | SRO,<br>BHATIND<br>A               | 13   | 114 | 127  | 1 | 113 | 13   |
| 72 | PUNJAB AND<br>HIMACHAL<br>PRADESH  | LUDHIAN<br>A   | RO,<br>LUDHIAN<br>A                | 270  | 6   | 276  | 0 | 0   | 276  |
| 73 | PUNJAB AND<br>HIMACHAL<br>PRADESH  | LUDHIAN<br>A   | SRO,<br>AMRITSA<br>R               | 158  | 14  | 172  | 1 | 32  | 139  |
| 74 | PUNJAB AND<br>HIMACHAL<br>PRADESH  | LUDHIAN<br>A   | SRO,<br>JALANDH<br>AR              | 102  | 0   | 102  | 0 | 0   | 102  |
| 75 | PUNJAB AND<br>HIMACHAL<br>PRADESH  | SHIMLA         | RO,<br>SHIMLA                      | 171  | 38  | 209  | 1 | 18  | 190  |
| 76 | TAMIL NADU<br>AND KERALA           | CHENNAI        | RO,<br>CHENNAI                     | 3372 | 67  | 3439 | 0 | 71  | 3368 |
| 77 | TAMIL NADU<br>AND KERALA           | CHENNAI        | SRO,<br>AMBATTU<br>R               | 569  | 61  | 630  | 4 | 48  | 578  |
| 78 | TAMIL NADU<br>AND KERALA           | COIMBAT<br>ORE | RO,<br>COIMBAT<br>ORE              | 492  | 278 | 770  | 3 | 313 | 454  |

|    |                               |                            |                                        |      |      |      |    |      |      |
|----|-------------------------------|----------------------------|----------------------------------------|------|------|------|----|------|------|
| 79 | TAMIL NADU<br>AND KERALA      | COIMBAT<br>ORE             | SRO,<br>SALEM                          | 172  | 78   | 250  | 4  | 97   | 149  |
| 80 | TAMIL NADU<br>AND KERALA      | COIMBAT<br>ORE             | SRO,<br>TRICHY                         | 73   | 346  | 419  | 4  | 305  | 110  |
| 81 | TAMIL NADU<br>AND KERALA      | MADURAI                    | RO,<br>MADURAI                         | 480  | 1180 | 1660 | 24 | 1174 | 462  |
| 82 | TAMIL NADU<br>AND KERALA      | MADURAI                    | SRO,<br>NAGERCO<br>IL                  | 52   | 0    | 52   | 0  | 0    | 52   |
| 83 | TAMIL NADU<br>AND KERALA      | MADURAI                    | SRO,<br>TIRUNELV<br>ELI                | 87   | 58   | 145  | 0  | 62   | 83   |
| 84 | TAMIL NADU<br>AND KERALA      | TAMBARA<br>M               | RO,<br>TAMBARA<br>M                    | 282  | 0    | 282  | 0  | 0    | 282  |
| 85 | TAMIL NADU<br>AND KERALA      | TAMBARA<br>M               | SRO,<br>PONDICH<br>ERRY                | 126  | 0    | 126  | 0  | 0    | 126  |
| 86 | TAMIL NADU<br>AND KERALA      | TAMBARA<br>M               | SRO,<br>VELLORE                        | 23   | 25   | 48   | 0  | 12   | 36   |
| 87 | TAMIL NADU<br>AND KERALA      | THIRUVA<br>NANTHAP<br>URAM | THIRUVA<br>NANTHAP<br>URAM<br>(TRIVEND | 40   | 79   | 119  | 2  | 33   | 84   |
| 88 | TAMIL NADU<br>AND KERALA      | THIRUVA<br>NANTHAP<br>URAM | SRO,<br>KANNUR                         | 41   | 0    | 41   | 0  | 0    | 41   |
| 89 | TAMIL NADU<br>AND KERALA      | THIRUVA<br>NANTHAP<br>URAM | SRO,<br>KOCHI<br>(COCHIN)              | 2216 | 243  | 2459 | 12 | 186  | 2261 |
| 90 | TAMIL NADU<br>AND KERALA      | THIRUVA<br>NANTHAP<br>URAM | SRO,<br>KOLLAM                         | 272  | 0    | 272  | 0  | 6    | 266  |
| 91 | TAMIL NADU<br>AND KERALA      | THIRUVA<br>NANTHAP<br>URAM | SRO,<br>KOTTAYA<br>M                   | 52   | 14   | 66   | 0  | 17   | 45   |
| 92 | TAMIL NADU<br>AND KERALA      | THIRUVA<br>NANTHAP<br>URAM | KOZHIKO<br>DE<br>(CALICUT<br>)         | 1    | 107  | 108  | 0  | 107  | 1    |
| 93 | UTTAR<br>PRADESH AND<br>BIHAR | KANPUR                     | RO,<br>KANPUR                          | 422  | 4    | 426  | 0  | 36   | 380  |
| 94 | UTTAR<br>PRADESH AND<br>BIHAR | KANPUR                     | SRO,<br>ALLAHAB<br>AD                  | 70   | 78   | 148  | 1  | 25   | 122  |



|     |                                                |                |                         |     |     |     |    |     |     |
|-----|------------------------------------------------|----------------|-------------------------|-----|-----|-----|----|-----|-----|
| 95  | UTTAR<br>PRADESH AND<br>BIHAR                  | KANPUR         | SRO,<br>BAREILLY        | 51  | 0   | 51  | 0  | 2   | 49  |
| 96  | UTTAR<br>PRADESH AND<br>BIHAR                  | KANPUR         | SRO,<br>GORAKHP<br>UR   | 53  | 1   | 54  | 0  | 1   | 53  |
| 97  | UTTAR<br>PRADESH AND<br>BIHAR                  | KANPUR         | SRO,<br>LUCKNOW         | 452 | 25  | 477 | 0  | 36  | 441 |
| 98  | UTTAR<br>PRADESH AND<br>BIHAR                  | KANPUR         | SRO,<br>VARANAS<br>I    | 95  | 27  | 122 | 12 | 22  | 88  |
| 99  | UTTAR<br>PRADESH AND<br>BIHAR                  | MEERUT         | RO,<br>MEERUT           | 102 | 518 | 620 | 4  | 494 | 122 |
| 100 | UTTAR<br>PRADESH AND<br>BIHAR                  | MEERUT         | SRO,<br>AGRA            | 127 | 0   | 127 | 0  | 0   | 127 |
| 101 | UTTAR<br>PRADESH AND<br>BIHAR                  | MEERUT         | SRO,<br>NOIDA           | 478 | 0   | 478 | 0  | 0   | 478 |
| 102 | UTTAR<br>PRADESH AND<br>BIHAR                  | PATNA          | RO,<br>PATNA            | 114 | 40  | 154 | 1  | 31  | 122 |
| 103 | UTTAR<br>PRADESH AND<br>BIHAR                  | PATNA          | SRO,<br>BHAGALP<br>UR   | 128 | 0   | 128 | 0  | 0   | 128 |
| 104 | UTTAR<br>PRADESH AND<br>BIHAR                  | PATNA          | SRO,<br>MUZAFFA<br>RPUR | 721 | 0   | 721 | 0  | 0   | 721 |
| 105 | WEST BENGAL,<br>NORTH EAST<br>AND<br>JHARKHAND | GUWAHAT<br>I   | RO,<br>GUWAHAT<br>I     | 315 | 0   | 315 | 0  | 0   | 315 |
| 106 | WEST BENGAL,<br>NORTH EAST<br>AND<br>JHARKHAND | GUWAHAT<br>I   | SRO,<br>AGARTAL<br>A    | 254 | 5   | 259 | 0  | 1   | 258 |
| 107 | WEST BENGAL,<br>NORTH EAST<br>AND<br>JHARKHAND | GUWAHAT<br>I   | SRO,<br>SHILLONG        | 2   | 0   | 2   | 0  | 0   | 2   |
| 108 | WEST BENGAL,<br>NORTH EAST<br>AND<br>JHARKHAND | GUWAHAT<br>I   | SRO,<br>TINSUKIA        | 35  | 0   | 35  | 0  | 0   | 35  |
| 109 | WEST BENGAL,<br>NORTH EAST<br>AND<br>JHARKHAND | JALPAIGU<br>RI | RO,<br>JALPAIGU<br>RI   | 126 | 37  | 163 | 2  | 18  | 143 |
| 110 | WEST BENGAL,<br>NORTH EAST<br>AND<br>JHARKHAND | JALPAIGU<br>RI | SRO,<br>DARJEELI<br>NG  | 41  | 0   | 41  | 0  | 24  | 17  |



|     |                                                |                |                                   |       |      |       |     |      |       |
|-----|------------------------------------------------|----------------|-----------------------------------|-------|------|-------|-----|------|-------|
| 111 | WEST BENGAL,<br>NORTH EAST<br>AND<br>JHARKHAND | JALPAIGU<br>RI | SRO,<br>JANGIPUR                  | 17    | 8    | 25    | 0   | 3    | 22    |
| 112 | WEST BENGAL,<br>NORTH EAST<br>AND<br>JHARKHAND | JALPAIGU<br>RI | SRO,<br>SILIGURI                  | 199   | 91   | 290   | 1   | 37   | 252   |
| 113 | WEST BENGAL,<br>NORTH EAST<br>AND<br>JHARKHAND | KOLKATA        | RO,<br>KOLKATA                    | 256   | 52   | 308   | 0   | 79   | 229   |
| 114 | WEST BENGAL,<br>NORTH EAST<br>AND<br>JHARKHAND | KOLKATA        | BARRACK<br>PORE<br>(TITAGAR<br>H) | 54    | 2    | 56    | 0   | 13   | 43    |
| 115 | WEST BENGAL,<br>NORTH EAST<br>AND<br>JHARKHAND | KOLKATA        | SRO,<br>DURGAPU<br>R              | 284   | 138  | 422   | 0   | 108  | 314   |
| 116 | WEST BENGAL,<br>NORTH EAST<br>AND<br>JHARKHAND | KOLKATA        | SRO,<br>HOWRAH                    | 336   | 1    | 337   | 1   | 28   | 308   |
| 117 | WEST BENGAL,<br>NORTH EAST<br>AND<br>JHARKHAND | KOLKATA        | SRO,<br>PARK<br>STREET            | 47    | 46   | 93    | 0   | 17   | 76    |
| 118 | WEST BENGAL,<br>NORTH EAST<br>AND<br>JHARKHAND | KOLKATA        | SRO,<br>PORT<br>BLAIR             | 29    | 0    | 29    | 0   | 0    | 29    |
| 119 | WEST BENGAL,<br>NORTH EAST<br>AND<br>JHARKHAND | RANCHI         | RO,<br>RANCHI                     | 66    | 0    | 66    | 0   | 25   | 41    |
| 120 | WEST BENGAL,<br>NORTH EAST<br>AND<br>JHARKHAND | RANCHI         | SRO,<br>JAMSHED<br>PUR            | 108   | 24   | 132   | 0   | 21   | 111   |
|     |                                                |                | Total                             | 47200 | 5950 | 53150 | 278 | 6349 | 46523 |

HA Data as on 31.12.2018.

| SR.NO | ZONE                                          | REGION           | OFFICE                    | OB AS ON<br>STARTING<br>DATE | CASES<br>INITIATED<br>DURING THE<br>PERIOD | NET<br>WORK<br>LOAD | CASES<br>DELETED<br>DURING THE<br>PERIOD | CASES<br>DISPOSED<br>DURING THE<br>PERIOD | CASES<br>PENDING<br>DURING THE<br>PERIOD |
|-------|-----------------------------------------------|------------------|---------------------------|------------------------------|--------------------------------------------|---------------------|------------------------------------------|-------------------------------------------|------------------------------------------|
| A     | B                                             | C                | D                         | E                            | F                                          | G                   | H                                        | I                                         | J                                        |
| 1     | ANDHRA<br>PRADESH,<br>TELANGANA<br>AND ORISSA | BHUBANE<br>SHWAR | RO,<br>BHUBANES<br>WAR    | 50                           | 0                                          | 50                  | 0                                        | 0                                         | 50                                       |
| 2     | ANDHRA<br>PRADESH,<br>TELANGANA<br>AND ORISSA | BHUBANE<br>SHWAR | SRO,<br>BERHAMPU<br>R     | 4                            | 0                                          | 4                   | 0                                        | 0                                         | 4                                        |
| 3     | ANDHRA<br>PRADESH,<br>TELANGANA<br>AND ORISSA | BHUBANE<br>SHWAR | SRO,<br>KEONJHAR          | 10                           | 0                                          | 10                  | 0                                        | 0                                         | 10                                       |
| 4     | ANDHRA<br>PRADESH,<br>TELANGANA<br>AND ORISSA | BHUBANE<br>SHWAR | SRO,<br>ROURKELA          | 58                           | 0                                          | 58                  | 0                                        | 2                                         | 56                                       |
| 5     | ANDHRA<br>PRADESH,<br>TELANGANA<br>AND ORISSA | GUNTUR           | RO,<br>GUNTUR             | 42                           | 1                                          | 43                  | 0                                        | 0                                         | 43                                       |
| 6     | ANDHRA<br>PRADESH,<br>TELANGANA<br>AND ORISSA | GUNTUR           | SRO,<br>KADAPA            | 98                           | 0                                          | 98                  | 0                                        | 0                                         | 98                                       |
| 7     | ANDHRA<br>PRADESH,<br>TELANGANA<br>AND ORISSA | GUNTUR           | SRO,<br>RAJAMUND<br>RY    | 38                           | 14                                         | 52                  | 0                                        | 7                                         | 45                                       |
| 8     | ANDHRA<br>PRADESH,<br>TELANGANA<br>AND ORISSA | GUNTUR           | SRO,<br>VISHAKAPA<br>TNAM | 76                           | 0                                          | 76                  | 0                                        | 2                                         | 74                                       |
| 9     | ANDHRA<br>PRADESH,<br>TELANGANA<br>AND ORISSA | HYDERAB<br>AD    | RO,<br>HYDERABA<br>D      | 1095                         | 0                                          | 1095                | 0                                        | 0                                         | 1095                                     |
| 10    | ANDHRA<br>PRADESH,<br>TELANGANA<br>AND ORISSA | HYDERAB<br>AD    | SRO,<br>KUKATPALL<br>I    | 262                          | 10                                         | 272                 | 6                                        | 8                                         | 258                                      |
| 11    | ANDHRA<br>PRADESH,<br>TELANGANA<br>AND ORISSA | HYDERAB<br>AD    | SRO,<br>PATANCHE<br>RU    | 108                          | 1                                          | 109                 | 0                                        | 4                                         | 105                                      |
| 12    | ANDHRA<br>PRADESH,<br>TELANGANA<br>AND ORISSA | HYDERAB<br>AD    | SRO,<br>SIDDIPET          | 32                           | 0                                          | 32                  | 0                                        | 2                                         | 30                                       |
| 13    | ANDHRA<br>PRADESH,<br>TELANGANA<br>AND ORISSA | NIZAMAB<br>AD    | RO,<br>NIZAMABA<br>D      | 26                           | 0                                          | 26                  | 0                                        | 0                                         | 26                                       |



|    |                                      |               |                   |     |    |     |   |    |     |
|----|--------------------------------------|---------------|-------------------|-----|----|-----|---|----|-----|
| 14 | ANDHRA PRADESH, TELANGANA AND ORISSA | NIZAMAB AD    | SRO, KARIMNAGAR   | 37  | 0  | 37  | 0 | 0  | 37  |
| 15 | ANDHRA PRADESH, TELANGANA AND ORISSA | NIZAMAB AD    | SRO, WARANGAL     | 250 | 0  | 250 | 0 | 2  | 248 |
| 16 | DELHI AND UTTARAKHAND                | DEHRADUN      | RO, DEHRADUN      | 204 | 0  | 204 | 0 | 0  | 204 |
| 17 | DELHI AND UTTARAKHAND                | DEHRADUN      | SRO, HALDWANI     | 67  | 0  | 67  | 0 | 0  | 67  |
| 18 | DELHI AND UTTARAKHAND                | DELHI (NORTH) | RO, DELHI (NORTH) | 366 | 0  | 366 | 0 | 0  | 366 |
| 19 | DELHI AND UTTARAKHAND                | DELHI (SOUTH) | RO, DELHI (SOUTH) | 393 | 0  | 393 | 0 | 0  | 393 |
| 20 | DELHI AND UTTARAKHAND                | DELHI (SOUTH) | SRO, LAXMI NAGAR  | 134 | 0  | 134 | 0 | 0  | 134 |
| 21 | GUJARAT AND MADHYA PRADESH           | AHMEDABAD     | RO, AHMEDABAD     | 199 | 0  | 199 | 0 | 0  | 199 |
| 22 | GUJARAT AND MADHYA PRADESH           | AHMEDABAD     | SRO, NARODA       | 154 | 2  | 156 | 1 | 27 | 128 |
| 23 | GUJARAT AND MADHYA PRADESH           | AHMEDABAD     | SRO, RAJKOT       | 485 | 0  | 485 | 0 | 0  | 485 |
| 24 | GUJARAT AND MADHYA PRADESH           | AHMEDABAD     | SRO, VATWA        | 88  | 0  | 88  | 0 | 0  | 88  |
| 25 | GUJARAT AND MADHYA PRADESH           | INDORE        | RO, INDORE        | 164 | 15 | 179 | 9 | 13 | 157 |
| 26 | GUJARAT AND MADHYA PRADESH           | INDORE        | SRO, BHOPAL       | 88  | 0  | 88  | 0 | 0  | 88  |
| 27 | GUJARAT AND MADHYA PRADESH           | INDORE        | SRO, GWALIOR      | 98  | 0  | 98  | 0 | 0  | 98  |



|    |                                  |               |                      |     |    |     |   |    |     |
|----|----------------------------------|---------------|----------------------|-----|----|-----|---|----|-----|
| 28 | GUJARAT<br>AND MADHYA<br>PRADESH | INDORE        | SRO,<br>JABALPUR     | 217 | 0  | 217 | 0 | 1  | 216 |
| 29 | GUJARAT<br>AND MADHYA<br>PRADESH | INDORE        | SRO,<br>SAGAR        | 33  | 6  | 39  | 0 | 4  | 35  |
| 30 | GUJARAT<br>AND MADHYA<br>PRADESH | INDORE        | SRO,<br>UJJAIN       | 71  | 26 | 97  | 2 | 15 | 80  |
| 31 | GUJARAT<br>AND MADHYA<br>PRADESH | SURAT         | RO, SURAT            | 187 | 0  | 187 | 0 | 2  | 185 |
| 32 | GUJARAT<br>AND MADHYA<br>PRADESH | SURAT         | SRO,<br>BHARUCH      | 66  | 20 | 86  | 0 | 2  | 84  |
| 33 | GUJARAT<br>AND MADHYA<br>PRADESH | SURAT         | SRO, VAPI            | 79  | 0  | 79  | 0 | 0  | 79  |
| 34 | GUJARAT<br>AND MADHYA<br>PRADESH | VADODAR<br>A  | RO,<br>VADODARA      | 183 | 0  | 183 | 0 | 0  | 183 |
| 35 | HARYANA<br>AND<br>RAJASTHAN      | FARIDABA<br>D | RO,<br>FARIDABA<br>D | 102 | 4  | 106 | 0 | 2  | 104 |
| 36 | HARYANA<br>AND<br>RAJASTHAN      | FARIDABA<br>D | SRO,<br>KARNAL       | 102 | 15 | 117 | 0 | 7  | 110 |
| 37 | HARYANA<br>AND<br>RAJASTHAN      | GURGAON       | RO,<br>GURGAON       | 166 | 0  | 166 | 0 | 0  | 166 |
| 38 | HARYANA<br>AND<br>RAJASTHAN      | GURGAON       | SRO,<br>ROHTAK       | 76  | 3  | 79  | 0 | 2  | 77  |
| 39 | HARYANA<br>AND<br>RAJASTHAN      | JAIPUR        | RO, JAIPUR           | 334 | 1  | 335 | 0 | 27 | 308 |
| 40 | HARYANA<br>AND<br>RAJASTHAN      | JAIPUR        | SRO,<br>JODHPUR      | 129 | 7  | 136 | 0 | 34 | 102 |
| 41 | HARYANA<br>AND<br>RAJASTHAN      | JAIPUR        | SRO, KOTA            | 68  | 0  | 68  | 0 | 0  | 68  |

|    |                             |               |                                     |     |    |     |   |    |     |
|----|-----------------------------|---------------|-------------------------------------|-----|----|-----|---|----|-----|
| 42 | HARYANA<br>AND<br>RAJASTHAN | JAIPUR        | SRO,<br>UDAIPUR                     | 73  | 24 | 97  | 2 | 26 | 69  |
| 43 | KARNATKA<br>AND GOA         | BANGALO<br>RE | RO,<br>BANGALOR<br>E                | 270 | 22 | 292 | 2 | 15 | 275 |
| 44 | KARNATKA<br>AND GOA         | BANGALO<br>RE | SRO,<br>RAJARAJES<br>HWARI<br>NAGAR | 76  | 0  | 76  | 0 | 0  | 76  |
| 45 | KARNATKA<br>AND GOA         | GOA           | RO, GOA                             | 122 | 0  | 122 | 0 | 0  | 122 |
| 46 | KARNATKA<br>AND GOA         | GULBARG<br>A  | RO,<br>GULBARGA                     | 38  | 0  | 38  | 0 | 0  | 38  |
| 47 | KARNATKA<br>AND GOA         | GULBARG<br>A  | SRO,<br>BELLARY                     | 48  | 0  | 48  | 0 | 1  | 47  |
| 48 | KARNATKA<br>AND GOA         | GULBARG<br>A  | SRO, HUBLI                          | 155 | 13 | 168 | 0 | 51 | 117 |
| 49 | KARNATKA<br>AND GOA         | GULBARG<br>A  | SRO,<br>RAICHUR                     | 7   | 0  | 7   | 0 | 0  | 7   |
| 50 | KARNATKA<br>AND GOA         | MANGALO<br>RE | RO,<br>MANGALOR<br>E                | 41  | 10 | 51  | 1 | 19 | 31  |
| 51 | KARNATKA<br>AND GOA         | MANGALO<br>RE | SRO,<br>CHIKAMAG<br>ALUR            | 19  | 0  | 19  | 0 | 0  | 19  |
| 52 | KARNATKA<br>AND GOA         | MANGALO<br>RE | SRO,<br>MYSORE                      | 243 | 0  | 243 | 0 | 0  | 243 |
| 53 | KARNATKA<br>AND GOA         | MANGALO<br>RE | SRO,<br>SHIMOGA                     | 21  | 0  | 21  | 0 | 1  | 20  |
| 54 | KARNATKA<br>AND GOA         | MANGALO<br>RE | SRO,<br>UDUPPI                      | 49  | 7  | 56  | 0 | 14 | 42  |
| 55 | KARNATKA<br>AND GOA         | PEENYA        | RO,<br>PEENYA                       | 84  | 0  | 84  | 0 | 0  | 84  |



|    |                                         |               |                                       |      |    |      |   |    |      |
|----|-----------------------------------------|---------------|---------------------------------------|------|----|------|---|----|------|
| 56 | KARNATKA<br>AND GOA                     | PEENYA        | SRO,<br>BOMMASAN<br>DRA               | 99   | 1  | 100  | 0 | 2  | 88   |
| 57 | KARNATKA<br>AND GOA                     | PEENYA        | SRO, K R<br>PURAM<br>(WHITEFIE<br>LD) | 121  | 1  | 122  | 0 | 4  | 118  |
| 58 | MAHARASHTR<br>A AND<br>CHHATTISGA<br>RH | BANDRA        | RO,<br>BANDRA<br>(MUMBAI-<br>I)       | 489  | 0  | 489  | 0 | 0  | 489  |
| 59 | MAHARASHTR<br>A AND<br>CHHATTISGA<br>RH | KANDIVAL<br>I | RO, MALAD<br>(KANDIVAL<br>I)          | 363  | 0  | 363  | 0 | 3  | 360  |
| 60 | MAHARASHTR<br>A AND<br>CHHATTISGA<br>RH | KANDIVAL<br>I | SRO, NASIK                            | 237  | 0  | 237  | 0 | 0  | 237  |
| 61 | MAHARASHTR<br>A AND<br>CHHATTISGA<br>RH | NAGPUR        | RO,<br>NAGPUR                         | 503  | 10 | 513  | 1 | 20 | 492  |
| 62 | MAHARASHTR<br>A AND<br>CHHATTISGA<br>RH | NAGPUR        | SRO,<br>AKOLA                         | 233  | 0  | 233  | 0 | 0  | 233  |
| 63 | MAHARASHTR<br>A AND<br>CHHATTISGA<br>RH | NAGPUR        | SRO,<br>AURANGAB<br>AD                | 253  | 0  | 253  | 0 | 0  | 253  |
| 64 | MAHARASHTR<br>A AND<br>CHHATTISGA<br>RH | PUNE          | RO, PUNE                              | 419  | 25 | 444  | 3 | 17 | 424  |
| 65 | MAHARASHTR<br>A AND<br>CHHATTISGA<br>RH | PUNE          | SRO,<br>KOLHAPUR                      | 266  | 3  | 269  | 0 | 2  | 267  |
| 66 | MAHARASHTR<br>A AND<br>CHHATTISGA<br>RH | PUNE          | SRO,<br>SOLHAPUR                      | 62   | 0  | 62   | 0 | 0  | 62   |
| 67 | MAHARASHTR<br>A AND<br>CHHATTISGA<br>RH | RAIPUR        | RO,<br>RAIPUR<br>(CHATTISG<br>ARH)    | 1217 | 0  | 1217 | 0 | 0  | 1217 |
| 68 | MAHARASHTR<br>A AND<br>CHHATTISGA<br>RH | THANE         | RO, THANE<br>(MUMBAI-<br>II)          | 319  | 0  | 319  | 0 | 0  | 319  |
| 69 | MAHARASHTR<br>A AND<br>CHHATTISGA<br>RH | THANE         | SRO, VASHI                            | 236  | 0  | 236  | 0 | 0  | 236  |



|    |                             |            |                  |     |    |     |    |    |     |
|----|-----------------------------|------------|------------------|-----|----|-----|----|----|-----|
| 70 | PUNJAB AND HIMACHAL PRADESH | CHANDIGARH | RO, CHANDIGARH   | 532 | 8  | 540 | 0  | 18 | 522 |
| 71 | PUNJAB AND HIMACHAL PRADESH | CHANDIGARH | SRO, BHATINDA    | 290 | 31 | 321 | 1  | 53 | 267 |
| 72 | PUNJAB AND HIMACHAL PRADESH | LUDHIANA   | RO, LUDHIANA     | 128 | 19 | 147 | 2  | 21 | 124 |
| 73 | PUNJAB AND HIMACHAL PRADESH | LUDHIANA   | SRO, AMRITSAR    | 199 | 2  | 201 | 0  | 1  | 200 |
| 74 | PUNJAB AND HIMACHAL PRADESH | LUDHIANA   | SRO, JALANDHAR   | 158 | 0  | 158 | 0  | 0  | 158 |
| 75 | PUNJAB AND HIMACHAL PRADESH | SHIMLA     | RO, SHIMLA       | 134 | 11 | 145 | 0  | 17 | 128 |
| 76 | TAMIL NADU AND KERALA       | CHENNAI    | RO, CHENNAI      | 838 | 4  | 842 | 0  | 4  | 838 |
| 77 | TAMIL NADU AND KERALA       | CHENNAI    | SRO, AMBATTUR    | 579 | 77 | 656 | 15 | 31 | 619 |
| 78 | TAMIL NADU AND KERALA       | COIMBATORE | RO, COIMBATORE   | 103 | 13 | 116 | 0  | 2  | 114 |
| 79 | TAMIL NADU AND KERALA       | COIMBATORE | SRO, SALEM       | 28  | 1  | 29  | 0  | 4  | 25  |
| 80 | TAMIL NADU AND KERALA       | COIMBATORE | SRO, TRICHY      | 87  | 0  | 87  | 0  | 0  | 87  |
| 81 | TAMIL NADU AND KERALA       | MADURAI    | RO, MADURAI      | 46  | 10 | 56  | 0  | 10 | 46  |
| 82 | TAMIL NADU AND KERALA       | MADURAI    | SRO, NAGERCOIL   | 36  | 0  | 36  | 0  | 0  | 36  |
| 83 | TAMIL NADU AND KERALA       | MADURAI    | SRO, TIRUNELVELI | 172 | 26 | 198 | 0  | 31 | 167 |

|    |                               |                            |                                                |     |    |     |    |    |     |
|----|-------------------------------|----------------------------|------------------------------------------------|-----|----|-----|----|----|-----|
| 84 | TAMIL NADU<br>AND KERALA      | TAMBARA<br>M               | RO,<br>TAMBARAM                                | 571 | 46 | 617 | 3  | 14 | 600 |
| 85 | TAMIL NADU<br>AND KERALA      | TAMBARA<br>M               | SRO,<br>PONDICHE<br>RRY                        | 104 | 11 | 115 | 0  | 7  | 108 |
| 86 | TAMIL NADU<br>AND KERALA      | TAMBARA<br>M               | SRO,<br>VELLORE                                | 322 | 16 | 338 | 0  | 28 | 310 |
| 87 | TAMIL NADU<br>AND KERALA      | THIRUVA<br>NANTHAP<br>URAM | THIRUVAN<br>ANTHAPUR<br>AM<br>(TRIVENDR<br>UM) | 72  | 0  | 72  | 0  | 27 | 45  |
| 88 | TAMIL NADU<br>AND KERALA      | THIRUVA<br>NANTHAP<br>URAM | SRO,<br>KANNUR                                 | 27  | 0  | 27  | 0  | 0  | 27  |
| 89 | TAMIL NADU<br>AND KERALA      | THIRUVA<br>NANTHAP<br>URAM | SRO,<br>KOCHI<br>(COCHIN)                      | 199 | 14 | 213 | 2  | 54 | 157 |
| 90 | TAMIL NADU<br>AND KERALA      | THIRUVA<br>NANTHAP<br>URAM | SRO,<br>KOLLAM                                 | 26  | 9  | 35  | 0  | 2  | 33  |
| 91 | TAMIL NADU<br>AND KERALA      | THIRUVA<br>NANTHAP<br>URAM | SRO,<br>KOTTAYAM                               | 15  | 0  | 15  | 0  | 0  | 15  |
| 92 | TAMIL NADU<br>AND KERALA      | THIRUVA<br>NANTHAP<br>URAM | SRO,<br>KOZHIKOD<br>E<br>(CALICUT)             | 44  | 2  | 46  | 0  | 3  | 43  |
| 93 | UTTAR<br>PRADESH<br>AND BIHAR | KANPUR                     | RO,<br>KANPUR                                  | 293 | 37 | 330 | 28 | 44 | 258 |
| 94 | UTTAR<br>PRADESH<br>AND BIHAR | KANPUR                     | SRO,<br>ALLAHABA<br>D                          | 103 | 5  | 108 | 0  | 4  | 104 |
| 95 | UTTAR<br>PRADESH<br>AND BIHAR | KANPUR                     | SRO,<br>BAREILLY                               | 194 | 0  | 194 | 0  | 2  | 192 |
| 96 | UTTAR<br>PRADESH<br>AND BIHAR | KANPUR                     | SRO,<br>GORAKHPU<br>R                          | 71  | 0  | 71  | 0  | 9  | 55  |
| 97 | UTTAR<br>PRADESH<br>AND BIHAR | KANPUR                     | SRO,<br>LUCKNOW                                | 336 | 0  | 336 | 0  | 0  | 336 |



|     |                                                   |                |                         |     |     |      |     |     |     |
|-----|---------------------------------------------------|----------------|-------------------------|-----|-----|------|-----|-----|-----|
| 98  | UTTAR<br>PRADESH<br>AND BIHAR                     | KANPUR         | SRO,<br>VARANASI        | 305 | 1   | 306  | 1   | 27  | 278 |
| 99  | UTTAR<br>PRADESH<br>AND BIHAR                     | MEERUT         | RO,<br>MEERUT           | 581 | 425 | 1006 | 175 | 216 | 615 |
| 100 | UTTAR<br>PRADESH<br>AND BIHAR                     | MEERUT         | SRO, AGRA               | 196 | 0   | 196  | 0   | 0   | 196 |
| 101 | UTTAR<br>PRADESH<br>AND BIHAR                     | MEERUT         | SRO,<br>NOIDA           | 102 | 9   | 111  | 0   | 18  | 93  |
| 102 | UTTAR<br>PRADESH<br>AND BIHAR                     | PATNA          | RO, PATNA               | 446 | 13  | 459  | 1   | 16  | 447 |
| 103 | UTTAR<br>PRADESH<br>AND BIHAR                     | PATNA          | SRO,<br>BHAGALPU<br>R   | 109 | 0   | 109  | 0   | 0   | 109 |
| 104 | UTTAR<br>PRADESH<br>AND BIHAR                     | PATNA          | SRO,<br>MUZAFFAR<br>PUR | 239 | 0   | 239  | 0   | 0   | 239 |
| 105 | WEST<br>BENGAL,<br>NORTH EAST<br>AND<br>JHARKHAND | GUWAHAT<br>I   | RO,<br>GUWAHATI         | 99  | 0   | 99   | 0   | 0   | 99  |
| 106 | WEST<br>BENGAL,<br>NORTH EAST<br>AND<br>JHARKHAND | GUWAHAT<br>I   | SRO,<br>AGARTALA        | 14  | 0   | 14   | 0   | 0   | 14  |
| 107 | WEST<br>BENGAL,<br>NORTH EAST<br>AND<br>JHARKHAND | GUWAHAT<br>I   | SRO,<br>SHILLONG        | 16  | 0   | 16   | 0   | 0   | 16  |
| 108 | WEST<br>BENGAL,<br>NORTH EAST<br>AND<br>JHARKHAND | GUWAHAT<br>I   | SRO,<br>TINSUKIA        | 31  | 0   | 31   | 0   | 0   | 31  |
| 109 | WEST<br>BENGAL,<br>NORTH EAST<br>AND<br>JHARKHAND | JALPAIGU<br>RI | RO,<br>JALPAIGUR<br>I   | 42  | 3   | 45   | 0   | 2   | 43  |
| 110 | WEST<br>BENGAL,<br>NORTH EAST<br>AND<br>JHARKHAND | JALPAIGU<br>RI | SRO,<br>DARJEELIN<br>G  | 3   | 0   | 3    | 0   | 1   | 2   |
| 111 | WEST<br>BENGAL,<br>NORTH EAST<br>AND<br>JHARKHAND | JALPAIGU<br>RI | SRO,<br>JANGIPUR        | 35  | 0   | 35   | 0   | 0   | 35  |



|     |                                                   |                |                                           |       |      |       |     |      |       |
|-----|---------------------------------------------------|----------------|-------------------------------------------|-------|------|-------|-----|------|-------|
| 112 | WEST<br>BENGAL,<br>NORTH EAST<br>AND<br>JHARKHAND | JALPAIGU<br>RI | SRO,<br>SILIGURI                          | 127   | 0    | 127   | 0   | 10   | 117   |
| 113 | WEST<br>BENGAL,<br>NORTH EAST<br>AND<br>JHARKHAND | KOLKATA        | RO,<br>KOLKATA                            | 179   | 1    | 180   | 0   | 2    | 178   |
| 114 | WEST<br>BENGAL,<br>NORTH EAST<br>AND<br>JHARKHAND | KOLKATA        | SRO,<br>BARRACKP<br>ORE<br>(TITAGARH<br>) | 143   | 7    | 150   | 0   | 1    | 149   |
| 115 | WEST<br>BENGAL,<br>NORTH EAST<br>AND<br>JHARKHAND | KOLKATA        | SRO,<br>DURGAPUR                          | 74    | 1    | 75    | 0   | 1    | 74    |
| 116 | WEST<br>BENGAL,<br>NORTH EAST<br>AND<br>JHARKHAND | KOLKATA        | SRO,<br>HOWRAH                            | 47    | 5    | 52    | 0   | 0    | 52    |
| 117 | WEST<br>BENGAL,<br>NORTH EAST<br>AND<br>JHARKHAND | KOLKATA        | SRO, PARK<br>STREET                       | 65    | 0    | 65    | 0   | 0    | 65    |
| 118 | WEST<br>BENGAL,<br>NORTH EAST<br>AND<br>JHARKHAND | KOLKATA        | SRO, PORT<br>BLAIR                        | 9     | 0    | 9     | 0   | 0    | 9     |
| 119 | WEST<br>BENGAL,<br>NORTH EAST<br>AND<br>JHARKHAND | RANCHI         | RO,<br>RANCHI                             | 335   | 5    | 340   | 0   | 0    | 340   |
| 120 | WEST<br>BENGAL,<br>NORTH EAST<br>AND<br>JHARKHAND | RANCHI         | SRO,<br>JAMSHEDP<br>UR                    | 105   | 0    | 105   | 0   | 0    | 105   |
|     |                                                   |                | Total                                     | 21511 | 1053 | 22564 | 255 | 1015 | 21294 |



# Compliance e-Proceedings - EPFO, India

MINISTRY OF LABOUR & EMPLOYMENT, GOVERNMENT OF INDIA



MIS Report

Office wise report from (01/01/2018) to (31/12/2018)

Case Type : 7A

Printed on Tuesday 15th of January 2019 10:49:07

|                         | OB AS ON STARTING<br>DATE | CASES INITIATED DURING THE<br>PERIOD | CASES DISPOSED DURING THE<br>PERIOD | CASES<br>PENDING |
|-------------------------|---------------------------|--------------------------------------|-------------------------------------|------------------|
| AGARTALA                | 11                        | 14                                   | 12                                  | 13               |
| AGRA                    | 75                        | 165                                  | 26                                  | 214              |
| AHMEDABAD               | 134                       | 123                                  | 11                                  | 246              |
| AKOLA                   | 31                        | 241                                  | 49                                  | 223              |
| ALLAHABAD               | 89                        | 23                                   | 6                                   | 106              |
| AMBATTUR                | 59                        | 654                                  | 104                                 | 609              |
| AMRITSAR                | 104                       | 102                                  | 36                                  | 170              |
| AURANGABAD              | 241                       | 10                                   | 1                                   | 250              |
| BANDRA                  | 466                       | 10                                   | 4                                   | 472              |
| BANGALURU               | 108                       | 291                                  | 78                                  | 321              |
| BAREILLY                | 175                       | 13                                   | 0                                   | 188              |
| BARRACKPORE<br>TITAGARH | 96                        | 55                                   | 4                                   | 146              |
| BELLARY                 | 10                        | 39                                   | 0                                   | 49               |
| BERHAMPUR               | 1                         | 20                                   | 13                                  | 8                |
| BHAGALPUR               | 0                         | 123                                  | 9                                   | 114              |
| BHARUCH                 | 2                         | 169                                  | 88                                  | 83               |
| BHATINDA                | 77                        | 233                                  | 74                                  | 236              |
| BHOPAL                  | 2                         | 150                                  | 4                                   | 148              |
| BHUBANESWAR             | 24                        | 66                                   | 33                                  | 57               |
| BOMMASANDRA             | 55                        | 289                                  | 154                                 | 190              |
| CHANDIGARH              | 372                       | 33                                   | 3                                   | 402              |
| CHENNAI                 | 395                       | 915                                  | 90                                  | 1220             |
| CHIKAMAGALUR            | 16                        | 7                                    | 0                                   | 23               |
| COIMBATORE              | 20                        | 269                                  | 106                                 | 183              |
| DARJEELING              | 0                         | 8                                    | 6                                   | 2                |
| DEHRADUN                | 11                        | 172                                  | 69                                  | 114              |
| NORTH DELHI             | 142                       | 131                                  | 12                                  | 261              |
| SOUTH DELHI             | 232                       | 125                                  | 0                                   | 357              |
| DURGAPUR                | 36                        | 39                                   | 7                                   | 68               |
| FARIDABAD               | 82                        | 56                                   | 3                                   | 135              |
| GOA                     | 52                        | 41                                   | 3                                   | 90               |
| GORAKHPUR               | 50                        | 10                                   | 0                                   | 60               |
| GULBARGA                | 3                         | 69                                   | 48                                  | 24               |
| GUNTUR                  | 12                        | 41                                   | 18                                  | 35               |
| GURGAON                 | 6                         | 237                                  | 64                                  | 179              |
| GUWAHATI                | 28                        | 15                                   | 1                                   | 42               |

|                           |     |     |     |     |
|---------------------------|-----|-----|-----|-----|
| GWALIOR                   | 32  | 69  | 8   | 93  |
| HALDWANI                  | 56  | 14  | 2   | 68  |
| HOWRAH                    | 19  | 37  | 4   | 51  |
| HUBLI                     | 43  | 228 | 140 | 131 |
| HYDERABAD                 | 672 | 326 | 63  | 935 |
| INDORE                    | 2   | 70  | 16  | 56  |
| JABALPUR                  | 15  | 310 | 119 | 206 |
| JAIPUR                    | 5   | 472 | 175 | 302 |
| JALANDHAR                 | 22  | 436 | 194 | 264 |
| JALPAIGURI                | 26  | 18  | 3   | 41  |
| JAMSHEDPUR                | 74  | 33  | 2   | 105 |
| JANGIPUR                  | 23  | 14  | 6   | 31  |
| JODHPUR                   | 49  | 50  | 13  | 86  |
| KADAPA                    | 78  | 5   | 0   | 83  |
| KANDIVALI                 | 317 | 31  | 11  | 337 |
| KANNUR                    | 4   | 66  | 51  | 19  |
| KANPUR                    | 20  | 300 | 55  | 265 |
| KARIMNAGAR                | 21  | 61  | 28  | 54  |
| KARNAL                    | 61  | 65  | 13  | 113 |
| KEONJHAR                  | 1   | 11  | 7   | 5   |
| KOCHI COCHIN              | 70  | 168 | 66  | 172 |
| KOLHAPUR                  | 222 | 11  | 2   | 231 |
| KOLKATA                   | 129 | 45  | 5   | 169 |
| KOLLAM                    | 3   | 31  | 14  | 20  |
| KOTA                      | 111 | 32  | 8   | 135 |
| KOTTAYAM                  | 2   | 40  | 22  | 20  |
| KOZHIKODE<br>(CALICUT)    | 0   | 237 | 193 | 44  |
| K R PURAM<br>(WHITEFIELD) | 81  | 24  | 2   | 103 |
| KUKATPALLI                | 230 | 40  | 7   | 263 |
| LAXMI NAGAR               | 2   | 92  | 16  | 78  |
| LUCKNOW                   | 248 | 53  | 1   | 300 |
| LUDHIANA                  | 7   | 304 | 188 | 103 |
| MADURAI                   | 10  | 67  | 28  | 49  |
| MANGALORE                 | 1   | 140 | 111 | 30  |
| MEERUT                    | 115 | 437 | 79  | 473 |
| MUZAFFARPUR               | 152 | 90  | 6   | 236 |
| MYSORE                    | 139 | 287 | 137 | 289 |
| MYSORE ROAD               | 3   | 154 | 106 | 51  |
| NAGERCOIL                 | 4   | 112 | 48  | 68  |
| NAGPUR                    | 292 | 200 | 72  | 420 |
| NARODA                    | 103 | 22  | 2   | 123 |
| NASIK                     | 58  | 201 | 57  | 202 |
| NIZAMABAD                 | 21  | 39  | 2   | 58  |
| NOIDA                     | 50  | 95  | 27  | 118 |
| PARK STREET               | 34  | 33  | 0   | 67  |



|               |             |              |             |              |
|---------------|-------------|--------------|-------------|--------------|
| PATANCHERU    | <u>103</u>  | <u>32</u>    | <u>8</u>    | <u>124</u>   |
| PATNA         | <u>306</u>  | <u>167</u>   | <u>44</u>   | <u>429</u>   |
| PEENYA        | <u>46</u>   | <u>119</u>   | <u>40</u>   | <u>125</u>   |
| PONDICHERY    | <u>55</u>   | <u>69</u>    | <u>11</u>   | <u>113</u>   |
| PORT BLAIR    | <u>1</u>    | <u>17</u>    | <u>0</u>    | <u>18</u>    |
| PUNE          | <u>115</u>  | <u>334</u>   | <u>81</u>   | <u>368</u>   |
| RAICHUR       | <u>0</u>    | <u>9</u>     | <u>4</u>    | <u>5</u>     |
| RAIPUR        | <u>96</u>   | <u>1140</u>  | <u>756</u>  | <u>480</u>   |
| RAJAMUNDY     | <u>5</u>    | <u>107</u>   | <u>71</u>   | <u>41</u>    |
| RAJKOT        | <u>445</u>  | <u>51</u>    | <u>8</u>    | <u>488</u>   |
| RANCHI        | <u>86</u>   | <u>406</u>   | <u>159</u>  | <u>333</u>   |
| ROHTAK        | <u>29</u>   | <u>87</u>    | <u>32</u>   | <u>84</u>    |
| ROURKELA      | <u>47</u>   | <u>14</u>    | <u>6</u>    | <u>55</u>    |
| SAGAR         | <u>23</u>   | <u>15</u>    | <u>0</u>    | <u>38</u>    |
| SALEM         | <u>12</u>   | <u>116</u>   | <u>51</u>   | <u>77</u>    |
| SHILLONG      | <u>14</u>   | <u>10</u>    | <u>2</u>    | <u>22</u>    |
| SHIMLA        | <u>42</u>   | <u>81</u>    | <u>33</u>   | <u>90</u>    |
| SHIMOGA       | <u>44</u>   | <u>68</u>    | <u>0</u>    | <u>112</u>   |
| SIDDIPET      | <u>14</u>   | <u>24</u>    | <u>3</u>    | <u>35</u>    |
| SILIGURI      | <u>25</u>   | <u>123</u>   | <u>43</u>   | <u>105</u>   |
| SOLHAPUR      | <u>52</u>   | <u>3</u>     | <u>0</u>    | <u>55</u>    |
| SURAT         | <u>106</u>  | <u>55</u>    | <u>8</u>    | <u>153</u>   |
| TAMBARAM      | <u>227</u>  | <u>583</u>   | <u>87</u>   | <u>723</u>   |
| THANE         | <u>264</u>  | <u>87</u>    | <u>4</u>    | <u>346</u>   |
| TINSUKIA      | <u>37</u>   | <u>1</u>     | <u>0</u>    | <u>38</u>    |
| TIRUNELVELI   | <u>21</u>   | <u>346</u>   | <u>119</u>  | <u>248</u>   |
| TRICHY        | <u>14</u>   | <u>226</u>   | <u>77</u>   | <u>163</u>   |
| TRIVENDRUM    | <u>2</u>    | <u>232</u>   | <u>199</u>  | <u>35</u>    |
| UDAIPUR       | <u>32</u>   | <u>71</u>    | <u>17</u>   | <u>86</u>    |
| UDUPPI        | <u>41</u>   | <u>15</u>    | <u>2</u>    | <u>54</u>    |
| UJJAIN        | <u>68</u>   | <u>13</u>    | <u>0</u>    | <u>81</u>    |
| VADODARA      | <u>77</u>   | <u>197</u>   | <u>87</u>   | <u>187</u>   |
| VAPI          | <u>44</u>   | <u>85</u>    | <u>34</u>   | <u>95</u>    |
| VARANASI      | <u>136</u>  | <u>116</u>   | <u>32</u>   | <u>220</u>   |
| VASHI         | <u>167</u>  | <u>128</u>   | <u>18</u>   | <u>277</u>   |
| VATWA         | <u>14</u>   | <u>215</u>   | <u>53</u>   | <u>176</u>   |
| VELLORE       | <u>56</u>   | <u>430</u>   | <u>186</u>  | <u>300</u>   |
| VISHAKAPATNAM | <u>20</u>   | <u>82</u>    | <u>45</u>   | <u>57</u>    |
| WARANGAL      | <u>8</u>    | <u>315</u>   | <u>93</u>   | <u>230</u>   |
| <b>Total</b>  | <b>9738</b> | <b>16717</b> | <b>5658</b> | <b>20771</b> |



# Compliance e-Proceedings - EPFO, India

MINISTRY OF LABOUR & EMPLOYMENT, GOVERNMENT OF INDIA



MIS Report

Office wise report from (01/01/2018) to (31/12/2018)  
Case Type : 14B and 7Q/Penal Damages & Interest  
Printed on Tuesday 15th of January 2019 10:50:35

|                         | OB AS ON STARTING<br>DATE | CASES INITIATED DURING THE<br>PERIOD | CASES DISPOSED DURING THE<br>PERIOD | CASES<br>PENDING |
|-------------------------|---------------------------|--------------------------------------|-------------------------------------|------------------|
| AGARTALA                | 4                         | 68                                   | 63                                  | 9                |
| AGRA                    | 24                        | 93                                   | 66                                  | 51               |
| AHMEDABAD               | 91                        | 1297                                 | 749                                 | 633              |
| AKOLA                   | 0                         | 967                                  | 739                                 | 228              |
| ALLAHABAD               | 16                        | 74                                   | 14                                  | 76               |
| AMBATTUR                | 91                        | 5256                                 | 3046                                | 2301             |
| AMRITSAR                | 3                         | 509                                  | 396                                 | 116              |
| AURANGABAD              | 35                        | 300                                  | 164                                 | 171              |
| BANDRA                  | 2991                      | 2                                    | 0                                   | 2993             |
| BANGALURU               | 239                       | 1891                                 | 158                                 | 1972             |
| BAREILLY                | 0                         | 132                                  | 125                                 | 7                |
| BARRACKPORE<br>TITAGARH | 8                         | 150                                  | 117                                 | 41               |
| BELLARY                 | 37                        | 72                                   | 3                                   | 106              |
| BERHAMPUR               | 0                         | 78                                   | 66                                  | 12               |
| BHAGALPUR               | 3                         | 638                                  | 499                                 | 142              |
| BHARUCH                 | 1                         | 270                                  | 207                                 | 64               |
| BHATINDA                | 17                        | 3210                                 | 2793                                | 434              |
| BHOPAL                  | 343                       | 526                                  | 29                                  | 840              |
| BHUBANESWAR             | 805                       | 253                                  | 105                                 | 953              |
| BOMMASANDRA             | 116                       | 2014                                 | 1547                                | 577              |
| CHANDIGARH              | 21                        | 663                                  | 317                                 | 366              |
| CHENNAI                 | 924                       | 4061                                 | 2259                                | 2726             |
| CHIKAMAGALUR            | 90                        | 37                                   | 0                                   | 127              |
| COIMBATORE              | 2                         | 1299                                 | 1022                                | 279              |
| DARJEELING              | 3                         | 88                                   | 74                                  | 17               |
| DEHRADUN                | 18                        | 1017                                 | 679                                 | 356              |
| NORTH DELHI             | 112                       | 564                                  | 267                                 | 408              |
| SOUTH DELHI             | 911                       | 120                                  | 0                                   | 1031             |
| DURGAPUR                | 58                        | 605                                  | 297                                 | 366              |
| FARIDABAD               | 16                        | 324                                  | 184                                 | 156              |
| GOA                     | 24                        | 143                                  | 38                                  | 129              |
| GORAKHPUR               | 26                        | 24                                   | 13                                  | 37               |
| GULBARGA                | 7                         | 611                                  | 525                                 | 93               |
| GUNTUR                  | 140                       | 341                                  | 231                                 | 250              |
| GURGAON                 | 9                         | 534                                  | 337                                 | 206              |
| GUWAHATI                | 317                       | 0                                    | 0                                   | 317              |



|                           |             |             |             |             |
|---------------------------|-------------|-------------|-------------|-------------|
| GWALIOR                   | <u>49</u>   | <u>387</u>  | <u>154</u>  | <u>282</u>  |
| HALDWANI                  | <u>6</u>    | <u>65</u>   | <u>13</u>   | <u>58</u>   |
| HOWRAH                    | <u>181</u>  | <u>309</u>  | <u>212</u>  | <u>278</u>  |
| HUBLI                     | <u>9</u>    | <u>1050</u> | <u>828</u>  | <u>231</u>  |
| HYDERABAD                 | <u>116</u>  | <u>1348</u> | <u>899</u>  | <u>565</u>  |
| INDORE                    | <u>1</u>    | <u>1502</u> | <u>233</u>  | <u>1270</u> |
| JABALPUR                  | <u>13</u>   | <u>1015</u> | <u>607</u>  | <u>421</u>  |
| JAIPUR                    | <u>16</u>   | <u>2189</u> | <u>1034</u> | <u>1171</u> |
| JALANDHAR                 | <u>2</u>    | <u>282</u>  | <u>149</u>  | <u>135</u>  |
| JALPAIGURI                | <u>6</u>    | <u>352</u>  | <u>257</u>  | <u>101</u>  |
| JAMSHEDPUR                | <u>0</u>    | <u>321</u>  | <u>245</u>  | <u>76</u>   |
| JANGIPUR                  | <u>1</u>    | <u>47</u>   | <u>28</u>   | <u>20</u>   |
| JODHPUR                   | <u>18</u>   | <u>0</u>    | <u>0</u>    | <u>18</u>   |
| KADAPA                    | <u>2</u>    | <u>236</u>  | <u>6</u>    | <u>232</u>  |
| KANDIVALI                 | <u>306</u>  | <u>1708</u> | <u>253</u>  | <u>1761</u> |
| KANNUR                    | <u>95</u>   | <u>138</u>  | <u>122</u>  | <u>111</u>  |
| KANPUR                    | <u>0</u>    | <u>429</u>  | <u>175</u>  | <u>254</u>  |
| KARIMNAGAR                | <u>6</u>    | <u>124</u>  | <u>91</u>   | <u>38</u>   |
| KARNAL                    | <u>31</u>   | <u>449</u>  | <u>135</u>  | <u>345</u>  |
| KEONJHAR                  | <u>40</u>   | <u>68</u>   | <u>39</u>   | <u>69</u>   |
| KOCHI COCHIN              | <u>2020</u> | <u>534</u>  | <u>261</u>  | <u>2293</u> |
| KOLHAPUR                  | <u>225</u>  | <u>406</u>  | <u>250</u>  | <u>381</u>  |
| KOLKATA                   | <u>82</u>   | <u>519</u>  | <u>316</u>  | <u>285</u>  |
| KOLLAM                    | <u>157</u>  | <u>231</u>  | <u>139</u>  | <u>249</u>  |
| KOTA                      | <u>107</u>  | <u>227</u>  | <u>102</u>  | <u>232</u>  |
| KOTTAYAM                  | <u>20</u>   | <u>229</u>  | <u>199</u>  | <u>50</u>   |
| KOZHIKODE<br>(CALICUT)    | <u>0</u>    | <u>504</u>  | <u>502</u>  | <u>2</u>    |
| K R PURAM<br>(WHITEFIELD) | <u>261</u>  | <u>1767</u> | <u>930</u>  | <u>1098</u> |
| KUKATPALLI                | <u>168</u>  | <u>14</u>   | <u>10</u>   | <u>172</u>  |
| LAXMI NAGAR               | <u>6</u>    | <u>72</u>   | <u>69</u>   | <u>9</u>    |
| LUCKNOW                   | <u>70</u>   | <u>708</u>  | <u>282</u>  | <u>496</u>  |
| LUDHIANA                  | <u>1</u>    | <u>1956</u> | <u>1548</u> | <u>409</u>  |
| MADURAI                   | <u>9</u>    | <u>1283</u> | <u>755</u>  | <u>537</u>  |
| MANGALORE                 | <u>64</u>   | <u>1908</u> | <u>1754</u> | <u>218</u>  |
| MEERUT                    | <u>5</u>    | <u>628</u>  | <u>310</u>  | <u>322</u>  |
| MUZAFFARPUR               | <u>562</u>  | <u>447</u>  | <u>324</u>  | <u>685</u>  |
| MYSORE                    | <u>19</u>   | <u>3660</u> | <u>3371</u> | <u>308</u>  |
| MYSORE ROAD               | <u>1</u>    | <u>455</u>  | <u>283</u>  | <u>173</u>  |
| NAGERCOIL                 | <u>0</u>    | <u>463</u>  | <u>364</u>  | <u>99</u>   |
| NAGPUR                    | <u>1</u>    | <u>300</u>  | <u>209</u>  | <u>92</u>   |
| NARODA                    | <u>18</u>   | <u>105</u>  | <u>97</u>   | <u>26</u>   |
| NASIK                     | <u>24</u>   | <u>959</u>  | <u>671</u>  | <u>312</u>  |
| NIZAMABAD                 | <u>0</u>    | <u>56</u>   | <u>23</u>   | <u>33</u>   |
| NOIDA                     | <u>6</u>    | <u>319</u>  | <u>176</u>  | <u>149</u>  |
| PARK STREET               | <u>18</u>   | <u>226</u>  | <u>2</u>    | <u>242</u>  |



|               |              |              |              |              |
|---------------|--------------|--------------|--------------|--------------|
| PATANCHERU    | <u>8</u>     | <u>85</u>    | <u>67</u>    | <u>26</u>    |
| PATNA         | <u>9</u>     | <u>1094</u>  | <u>807</u>   | <u>296</u>   |
| PEENYA        | <u>80</u>    | <u>468</u>   | <u>104</u>   | <u>444</u>   |
| PONDICHERY    | <u>5</u>     | <u>515</u>   | <u>344</u>   | <u>176</u>   |
| PORT BLAIR    | <u>0</u>     | <u>0</u>     | <u>0</u>     | <u>0</u>     |
| PUNE          | <u>38</u>    | <u>1999</u>  | <u>873</u>   | <u>1164</u>  |
| RAICHUR       | <u>0</u>     | <u>103</u>   | <u>41</u>    | <u>62</u>    |
| RAIPUR        | <u>1568</u>  | <u>1501</u>  | <u>645</u>   | <u>2424</u>  |
| RAJAMUNDRY    | <u>11</u>    | <u>421</u>   | <u>297</u>   | <u>135</u>   |
| RAJKOT        | <u>79</u>    | <u>306</u>   | <u>109</u>   | <u>276</u>   |
| RANCHI        | <u>4</u>     | <u>1070</u>  | <u>899</u>   | <u>175</u>   |
| ROHTAK        | <u>17</u>    | <u>202</u>   | <u>120</u>   | <u>99</u>    |
| ROURKELA      | <u>210</u>   | <u>245</u>   | <u>142</u>   | <u>312</u>   |
| SAGAR         | <u>9</u>     | <u>495</u>   | <u>292</u>   | <u>212</u>   |
| SALEM         | <u>1</u>     | <u>895</u>   | <u>763</u>   | <u>133</u>   |
| SHILLONG      | <u>7</u>     | <u>7</u>     | <u>2</u>     | <u>12</u>    |
| SHIMLA        | <u>17</u>    | <u>472</u>   | <u>305</u>   | <u>184</u>   |
| SHIMOGA       | <u>34</u>    | <u>24</u>    | <u>0</u>     | <u>58</u>    |
| SIDDIPET      | <u>2</u>     | <u>41</u>    | <u>30</u>    | <u>13</u>    |
| SILIGURI      | <u>2</u>     | <u>397</u>   | <u>147</u>   | <u>252</u>   |
| SOLHAPUR      | <u>182</u>   | <u>20</u>    | <u>5</u>     | <u>197</u>   |
| SURAT         | <u>7</u>     | <u>770</u>   | <u>508</u>   | <u>269</u>   |
| TAMBARAM      | <u>46</u>    | <u>2254</u>  | <u>1364</u>  | <u>936</u>   |
| THANE         | <u>717</u>   | <u>215</u>   | <u>16</u>    | <u>916</u>   |
| TINSUKIA      | <u>13</u>    | <u>27</u>    | <u>1</u>     | <u>39</u>    |
| TIRUNELVELI   | <u>3</u>     | <u>1691</u>  | <u>1414</u>  | <u>280</u>   |
| TRICHY        | <u>277</u>   | <u>1288</u>  | <u>0</u>     | <u>1565</u>  |
| TRIVENDRUM    | <u>0</u>     | <u>1039</u>  | <u>984</u>   | <u>55</u>    |
| UDAIPUR       | <u>0</u>     | <u>229</u>   | <u>177</u>   | <u>52</u>    |
| UDUPPI        | <u>13</u>    | <u>418</u>   | <u>309</u>   | <u>122</u>   |
| UJJAIN        | <u>195</u>   | <u>0</u>     | <u>0</u>     | <u>195</u>   |
| VADODARA      | <u>34</u>    | <u>1095</u>  | <u>837</u>   | <u>292</u>   |
| VAPI          | <u>29</u>    | <u>325</u>   | <u>251</u>   | <u>103</u>   |
| VARANASI      | <u>10</u>    | <u>385</u>   | <u>317</u>   | <u>78</u>    |
| VASHI         | <u>183</u>   | <u>974</u>   | <u>35</u>    | <u>1122</u>  |
| VATWA         | <u>1</u>     | <u>174</u>   | <u>112</u>   | <u>63</u>    |
| VELLORE       | <u>4</u>     | <u>1065</u>  | <u>1030</u>  | <u>39</u>    |
| VISHAKAPATNAM | <u>35</u>    | <u>363</u>   | <u>272</u>   | <u>126</u>   |
| WARANGAL      | <u>0</u>     | <u>307</u>   | <u>293</u>   | <u>14</u>    |
| <b>Total</b>  | <b>16094</b> | <b>81205</b> | <b>49468</b> | <b>47814</b> |



कर्मचारी भविष्य निधि संगठन  
(श्रम एवं रोजगार मंत्रालय, भारत सरकार)  
**EMPLOYEES' PROVIDENT FUND ORGANISATION**  
(Ministry of Labour & Employment, Govt. of India)  
मुख्य कार्यालय / Head Office  
भविष्य निधि भवन, 14-भीकजी कामा प्लेस, नई दिल्ली-110 066.  
Bhavishya Nidhi Bhawan, 14, Bhikaiji Cama Place, New Delhi - 110 066.

No.C-I/1(33)2019/Vivekanand Vidyamandir/ 717

Date: 28.08.2019

To,

All Addl. Central P F Commissioners (Zones)  
All Regional P F Commissioners (Regional Offices)

**Sub:- Notice to establishments for inspection in the wake of Judgment dated 28.02.2019 of Hon'ble Supreme Court of India in civil appeal 6221 of 2011 and batch of SLPs- Regarding**

Sir,

Please refer to this Office letter no.LC-2(578)/2007/WB/18855 dated 14.03.19 regarding the judgment dated 28.02.19 of Hon'ble Supreme Court of India in the Civil Appeal 6221 of 2011 and other connected matters. It is further informed that review petition has been filed by some aggrieved parties before Hon'ble Supreme Court and is pending for adjudication.

2. It has come to notice of the EPFO, Head Office that several field offices have issued notice to the employers, quoting the aforesaid judgment of Hon'ble Apex Court of India, proposing inspection of records for past three to five years to ascertain the wage structure to find out if any allowances which were part of basic wages have been omitted for the purpose of compliance. There is no reason or justification to initiate roving inquiries into the wage structure of the complying establishments on the surmise that certain allowances in the nature of basic wages might not have been treated as part of pay for EPF contributions.

3. In all the cases where notices have been issued without any prima facie evidence of arbitrary bifurcation of wages with intention to avoid EPF liability, such notices should not be pursued further. Such action amounts to roving inquiries / investigations which is impermissible in law. Anyone found indulging in such practices may face administrative action.

4. Inspections / investigations shall be carried out after taking permission from CAIU and following the administrative guidelines and policy only in those cases where credible basis is available for forming a view that the employer has prima facie indulged in illegal practice of avoiding EPF liability by splitting the basic wages. Also the provision of Para 2(f) of the EPF Scheme, 1952 must be kept in view while computing any liability on account of illegal wage splitting.



**Pg. 2**

5. In the ongoing cases under Section 7A in which such issue has been framed the assessing officer may assess the dues, if any, after consideration of facts of the case. No coercive action shall be taken for recovery of dues till disposal of the review petition filed by concerned employers which is pending before Hon'ble Supreme Court of India.

[This issues with the approval of Central PF Commissioner]

Yours faithfully,



(Jagmohan)

**Addl. Central PF Commissioner-HQRS.(Compliance)**





कर्मचारी भविष्य निधि संगठन  
EMPLOYEES' PROVIDENT FUND ORGANISATION

श्रम एवं रोजगार मंत्रालय, भारत सरकार  
Ministry of Labour & Employment, Government of India  
14, भविष्य निधि भवन, भीकाजी कामा प्लेस, नई दिल्ली - 110066  
14, Bhavishya Nidhi Bhavan, Bhikaiji Cama Place, New Delhi 110 066  
www.epfindia.gov.in  
Phone No. 011-2616609, Email- jagmohan@epfindia.gov.in



No.C-III/Performance Monitoring/2018/Gen/01

Dated: 03.01.2019

To,

All Addl. Central P.F. Commissioners (Zones)  
All Regional P.F. Commissioners (In-charge of the Regions)

03 JAN 2019

Subject: Pending 7A cases – regarding

Sir,

It is intimated that the Ministry of Labour & Employment has expressed serious concern about long pendency of 7A cases for over 5 years in EPFO vide its letter no. R-11025/2/2018-SS-II (Pt.3) dated 07-12-2018. The matter was also discussed in the review meeting by the Secretary (L&E) held on 30-11-2018, in connection with the actionable points in the tour reports of the Nodal/Area officers.

2. Accordingly, following directions are issued to ensure monitoring and time-bound disposal of such 7A cases:

- (i) All concerned officers should liquidate all 7A cases pending for over 5 years within the period of next six months without fail, and all 7A cases pending for over 1 year should be liquidated by 31-12-2019.
- (ii) Explanation for 7A cases pending for over 5 years is required to be submitted by concerned Officer In-Charge of Regional Offices. Same are to be compiled by ACC (Zones) and forwarded to this office, along with their remarks by 15-02-2019.
- (iii) It should be ensured by concerned assessing officer that undue and long adjournments are not given in pending 7A cases, without justifiable grounds, to be recorded in writing. At the time of review of 7A orders by superior authority, in accordance with existing HO instructions, the concerned authority must record in his findings as to whether any undue and long adjournments were granted during the proceedings.

3. Above instructions are to be strictly followed and compliance should be ensured and reported through ACC (Zones).

Yours sincerely,

  
(Jagmohan)

Additional Central PF Commissioner (HQ) - Compliance



कर्मचारी भविष्य निधि संगठन  
(श्रम एवं रोजगार मंत्रालय, भारत सरकार)  
**EMPLOYEES' PROVIDENT FUND ORGANISATION**  
(Ministry of Labour & Employment, Govt. of India)  
मुख्य कार्यालय / Head Office  
भविष्य निधि भवन, 14-भोकाजी कामा प्लेस, नई दिल्ली-110 066.  
Bhavishya Nidhi Bhawan, 14, Bhikaiji Cama Place, New Delhi - 110 066.  
(CENTRAL ANALYSIS & INTELLIGENCE UNIT)

No.CAIU/011(72)2016/Shram Suvidha Portal

Date: 25.04.2018

/2566

03 MAY 2018

To

**All Regional P.F. Commissioner-I (In-charge of Regions).**

**Sub:- Inspection of Defaulting Establishments-reg.**

Madam/Sir,

Please refer to various instructions regarding guidelines and directions issued by Head Office for inspection of defaulting and other category of establishments as mandated by CAIU, etc.

It has been observed that due diligence has not been given on the instructions for inspection and submission of reports thereof. Certain cases have come to the notice of Head Office where the establishments are being inspected without mandate/permission from CAIU on inspection.

It has been felt desirable to reiterate the instructions on inspection of defaulting/ other establishments in the form of consolidated instructions as mentioned below:-

- (1) The following categories of establishments are mandated for inspection without referring/seeking permission for inspection from CAIU, Head Office :
  - (a) List of establishments generated through Shram Suvidha Portal of Ministry of Labour & Employment, Government of India for inspection.
  - (b) Defaulting establishments listed in category of "A" & "B" of CAIU Portal.
  - (c) Complaints cases referred by Head Office as per the details available in the Complaint Dashboard on CAIU Portal.
  - (d) Establishments having 20 or more employees having EPF wages less than Rs. 1000 as per Wage Analysis Report on CAIU Portal.
  - (e) Establishments during currency of enquiries under section 7A of the Act.
  - (f) Exempted establishments not filing monthly returns.

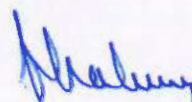


- (2) No establishment other than mentioned above should be inspected without permission from CAIU, Head Office.
- (3) If any information is made available to the RPFC-in-charge of the office that a particular establishment has not registered itself for coverage under the EPF & MP Act, 1952 despite being coverable under the Act, the RPFC-in-charge should take initiatives to contact and persuade such establishment for registration through Shram Suvidha Portal. If such establishment is not coming forward for coverage under this Act on its own in spite of persuasion made by the office, permission from CAIU, Head Office should be obtained and then the Enforcement Officer may be deputed to verify the records of the establishment and the establishment should be brought under the ambit of the Act from the date of eligibility in order to ensure extension of social security measures to the employees of such establishment.

The instructions issued for coverage of establishments from time to time and guidelines on inspection of 'start-up' units as issued by Government of India from time to time should be adhered to.

The instructions contained in this communication should be followed strictly and the Inspection Reports must be uploaded in the respective Portal within stipulated time.

Yours faithfully



(Dr. S.K. Thakur)  
Additional Central P.F. Commissioner-HQ(CAIU)

Copy to:-All ACCs (Zones) for information with request to ensure compliance of these instructions by the offices under your jurisdiction.





कर्मचारी भविष्य निधि संगठन  
(श्रम एवं रोजगार मंत्रालय, भारत सरकार)  
**EMPLOYEES' PROVIDENT FUND ORGANISATION**  
(Ministry of Labour & Employment, Govt. of India)  
मुख्य कार्यालय / Head Office  
भविष्य निधि भवन, 14-भिकाजी कामा प्लेस, नई दिल्ली-110 066.  
Bhavishya Nidhi Bhawan, 14, Bhikaiji Cama Place, New Delhi - 110 066.  
(CENTRAL ANALYSIS & INTELLIGENCE UNIT)

No.CAIU/011(5)2016/Inspection

Date: 27.02.2018

To

/20509

27 FEB 2018

All Addl. Central P.F. Commissioners (Zones)  
All Regional P.F. Commissioner-I (In-charge of Regions).

**Sub:-Modification in Inspection Policy in respect of defaulting establishments-Reg.**

- Ref: (i) Head Office circular No.MIS-2(4)CAIU/Web Portal/2014-15 dated 26.06.2014.  
(ii) C-III/110001/4/2/(25)2014/HQRS/Web Portal/10398 dated 30.07.2014.  
(iii) C-III/110001/4/2/(25)2014/HQRS/Web Portal/10451 dated 31.07.2014.  
(iv) C-III/110001/4/2/(25)2014/HQRS/Web Portal/12193 dated 14.08.2014.  
(v) C-III/110001/4/2/(25)2014/HQRS/Web Portal/14072 dated 01.09.2014.  
(vi) CAIU/Portal/2014/3577 dated 27.05.2015.

Sir,

At present, for conducting inspections permission is being taken from CAIU including for the cases reflected in monthly defaulter's lists displayed on the website by Head Office.

For the purpose of streamlining the inspection procedure, it has been decided that henceforth field offices need not seek permission for inspection in respect of cases listed in Category 'A' & 'B' of the "Defaulter's List (Categorywise)" to be displayed on the Dashboard of the CAIU Portal every month. It may be noted that in the categorywise list, there are three categories A, B & C with default for 4 or more wage months, for 2 or 3 wage months and for 1 wage month respectively. Regarding inspection of establishments falling in categories 'A' & 'B', RPFC may give priority to big defaulters keeping in view quantum of default in terms of remittances and number of employees. However, all other steps regarding inspection procedure should be followed in accordance with the extant Head Office guidelines on the matter.

View facility for a new report namely 'Defaulter Establishments (Categorywise FO)' has been provided to field offices for checking the list of current defaulting establishments by accessing the following link:-

CAIU Login→Dashboard→ Defaulter Establishments(Categorywise FO)

{This issues with the approval of CPFC}.

Yours faithfully

(A.K. Mandal)

Regional P.F. Commissioner-I(CAIU)





**कर्मचारी भविष्य निधि संगठन**  
(श्रम एवं रोजगार मंत्रालय, भारत सरकार)  
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भविष्य निधि भवन, 14-भिकाजी कामा प्लेस, नई दिल्ली-110 066.  
Bhavishya Nidhi Bhawan, 14, Bhikaiji Cama Place, New Delhi - 110 066.

For Web Circulation

File No. C-II/Policy Matters/2017-18/HO

Date: 14-12-2017

14 DEC 2017

To

**All Additional Central P F Commissioners,  
All Regional P F Commissioners,**

**Subject:-** Handling of complaints/grievances pertaining to compliance matters - reg.

Sir,

Compliance Wing of head Office had issued guidelines vide circular number C.III/7/1(3)Misc./08/WZ/(14)2008/MP/62879 dated 05.12.2008 (copy enclosed) to handle compliance related complaints. Now, complaints /grievances pertaining to compliance matters received through various sources in Head Office are uploaded on CAIU (compliance/grievances) portal and should be disposed off expeditiously. In all cases forwarded by Head Office on CAIU portal, RPFCs may depute EOs after registering these cases on Shram Suvidha Portal, without referring separately the matter back to CAIU, Head Office for getting permission for inspection.

2. Regarding calling the complainants in Inquiry, in supersession of instructions in aforesaid circular dated 05.12.2008, it is directed that complainant should be made party in the 7A cases. However, if complainant does not attend Inquiry under Section 7A on some date/dates, disposal of 7A cases may not be unduly delayed by Assessing Officers.

3. Normally compliance grievances involve compliance related issues only. However, at times there are allegations against some Officials or Officers of EPFO also. Cases of allegations involving vigilance angle need to be examined promptly by respective Disciplinary Authorities in field Offices. Additional CPFC, Zones/Regional P F Commissioner-I & II(OICs of ROs), who are also acting as Disciplinary cum Zonal/Regional Vigilance Authorities, would handle such complaints of allegations against officials working under them, as per Office Memorandum No 104/76/2011-AVD.I dated 18.10.2013(copy attached) issued by Central Vigilance Commission and guidelines of Vigilance Headquarters. Confidential actionable vigilance aspects may be directly reported to Vigilance Headquarters or Zonal Vigilance Directorates as the case may be and action taken report pertaining to compliance issues should be uploaded on CAIU (compliance grievances) portal.

(This is issued with approval of CPFC).

Encls: As above

(K. L. Taneja)

Addl. CPFC (HQ)(Compliance)

Copy to: 1.RPFC-I (CAIU), for relevant CAIU inspection policy file.  
2. DD(OL)- for Hindi version.



कर्मचारी भविष्य निधि संगठन  
Employees' Provident Fund Organisation  
(श्रम एवं रोजगार मंत्रालय, भारत सरकार)  
(Ministry of Labour & Employment, Govt. Of India)  
(मुख्य कार्यालय) / Corporate Headquarters  
भविष्य निधि भवन, 14 भीकाजी कार्मा प्लेस, नई दिल्ली - 110066.  
Bhavishya Nidhi Bhawan, 14-Bhikaiji Cama Place, New Delhi-110066



No. C.III/7/1(3)Misc./08/WZ/(14)2008/MP/

Dated:

E 5 दिसम्बर 2008  
DEC 2008

To

All ACC(Zones)  
All Regional Provident Fund Commissioners (In-charge of Region)  
All OICs, SROs

**Sub: Handling of complaints received on Compliance related matters- detailed procedure to be followed - reg.**

Sir,

References are being received in the Head Office from various Central Trade Unions and individuals that their complaints relating to compliance related issues are not properly handled in the field offices.

2. There has been number of references also to Head Office requesting to formulate a uniform procedure to be followed in respect of such complaints. The matter has since been examined and the following guidelines are issued for uniform compliance by all the Regions.

• **First Category**

In many cases the complaints are received through anonymous letters. While normally no cognizance is taken in respect of such anonymous complaints, if such anonymous complaints contains verifiable facts, such anonymous complaints can be acted upon by deputing an EO to the establishment mentioned in the complaint for causing a detailed inquiry in the matter.

• **Second Category**

Sometimes the complaints are received from individuals without mentioning any details or enclosing any documentary evidence. In such cases reference has to be made to the complainant to furnish whatever information/documentary evidences in his/her possession for initiating action. Only after receipt of such information/evidence further action need be taken in respect of such complaints to its logical end.

• **Third Category**

Complaints are also received from Trade Unions giving a general information regarding evasion in membership/non coverage of establishments. In such cases a reference has to be made to such Trade Unions to furnish documentary evidence if any in their possession substantiating the evasion and also the details of the establishments which have not been covered. After receipt of such information



further inquiry can be initiated in respect of such complaints for causing inspection/ action for enrollment/ coverage as the case may be.

• **Fourth Category**

In respect of complaints received from Trade Unions giving specific information regarding evasion in membership, inquiry under para 26B **has to be first initiated** to determine the eligibility of the member. The employer, the concerned employees and the complainant Trade Unions need to be called for the inquiry before deciding the issue.

After deciding the eligibility for enrollment of the employee inquiry u/s 7A has to be initiated for assessment of the dues payable in respect of such members. At the time of inquiry under section 7A the complainant may be called for the inquiry if required depending upon the facts and circumstances of each case.

• **Fifth Category**

Many references are being received from PMO, Ministry of Labour and Member of Parliament/Assembly and CBT Members etc. (VIP References) regarding matters relating to non-enrollment/non-coverage of establishments. In such cases the EO need to be deputed immediately to the concerned establishment/area and a detailed report need to be obtained without making any back references.

The various complaints which are generally received have been categorized under the five heads above. There may be other complaints which does not fall under the above five categories. All OICs are requested to deal with all such cases on the lines broadly indicated above which are only illustrative and not exhaustive.

It should be ensured that all references received are acted upon with due diligence and urgency and prompt reply sent to the complainants and to Head Office where the cases are referred for investigation and report.

(This issues with the approval of Central PF Commissioner)

Yours faithfully,

( P. SUDHAKARABU )

Addl. Central P.F. Commissioner(Compliance)

Copy to :

1. FA&CAO/ALL ACCS in Head Office/CVO
2. Director(Audit)/Zonal Audit Officers
3. Director, NATRSS/All ZTIs Training Institutes.
4. All RPFCs/APFCs in Head Office
5. PS to CPFC
6. Hindi Cell for Hindi translation.

( K. RAJAGOPALAN )

REGIONAL P.F. COMMISSIONER-I(Compliance)

No.104/76/2011-AVD.I  
Government of India  
Ministry of Personnel & Public Grievances & Pensions  
(Department of Personnel & Training)

New Delhi, Dated October 18, 2013

OFFICE MEMORANDUM

Subject:- Guidelines regarding handling of complaints in Ministries/Departments.

The undersigned is directed to say that the instructions regarding dealing with anonymous and pseudonymous complaints as contained in this Department's OM No. 321/4/91-AVD.III, dated 29<sup>th</sup> September, 1992 and as reiterated vide DOP&T's OM No. 371/38/97-AVD.III, dated 3/11/1997, being at variance with instructions issued by CVC in this regard vide curricular No.3(V)/99/2 dated 29<sup>th</sup> June, 1999, No. 98/DSP/9, dated 31<sup>st</sup> January, 2002 and 11<sup>th</sup> October, 2002, had been receiving the attention of the Government for the past some time.

2. The matter was examined afresh in consultation with the Central Vigilance Commission. Subsequent to the Public Interest Disclosure & Protection of Informers' Resolution - 2004 (PIDPI), the Commission has created a mechanism for handling complaints where identity of the complainant is kept secret and the complainant is provided protection. This has been endorsed and operationalized by the Central Government with the approval of the competent authority.

3. In view of the fact that complainants who desire to protect their identity now have the protection of the Public Interest Disclosure & Protection of Informers' Resolution - 2004 (PIDPI), the following procedure is laid down for handling anonymous and pseudonymous complaints, in supersession of instructions contained in DoP&T's OM No. 321/4/91-AVD.III dated 29<sup>th</sup> September, 1992:

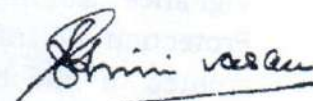
- (i) No action is required to be taken on anonymous complaints, irrespective of the nature of allegations and such complaints need to be simply filed.
- (ii) Complaints containing vague allegations could also be filed without verification of identity of the complainant.



7

(iii) If a complaint contains verifiable allegations, the administrative Ministry/Department may take cognizance of such complaint with the approval of the competent authority to be designated by the Ministry/Department as per their distribution of work. In such cases, the complaint will be first sent to the complainant for owning/disowning, as the case may be. If no response is received from the complainant within 15 days of sending the complaint, a reminder will be sent. After waiting for 15 days after sending the reminder, if still nothing is heard, the said complaint may be filed as pseudonymous by the Ministry/Department.

4. Instructions contained in para-3 above would also be applicable (with appropriate competent authority to be designated under para 3 (iii) above) for dealing with complaints against Secretaries to the Government of India or Chief Executives / CMDs / Functional Director of PSEs/PSBs/FIs, which will continue to be referred to the Cabinet Secretariat for placing before the Group of Secretaries headed by the Cabinet Secretary/Secretary (Co-ordination) in the Cabinet Secretariat, as the case may be, as per procedure given in Department's OM No. 104/100/2009-AVD.I, dated 14/1/2010 and DPE's OM No. 15(1)/2010-DPE(GM), dated 11/3/2010, as amended from time to time.



( G. Srinivasan )

Under Secretary to the Government of India

To,

1. All Ministries/Departments as per standard circulation list
2. Secretary, Central Vigilance Commission
3. Department of Public Enterprises
4. All Desks/Sections of DOP&T
5. Guard File
6. NIC, DOP&T Cell for placing a copy of this OM on the website of the Ministry.



कर्मचारी भविष्य निधि संगठन  
(श्रम एवं रोजगार मंत्रालय, भारत सरकार)  
**EMPLOYEES' PROVIDENT FUND ORGANISATION**  
(Ministry of Labour & Employment, Govt. of India)  
मुख्य कार्यालय / Head Office  
भविष्य निधि भवन, 14-भोकाजी कामा प्लेस, नई दिल्ली-110 066.  
Bhavishya Nidhi Bhawan, 14, Bhikaiji Cama Place, New Delhi - 110 066.

No. C-I/3(41)2017/7A-14B/Software

Date:

To

The Addl. Central PF Commissioner (Zones),  
All RPFCs-I & II, Regional Offices

29 AUG 2017

**Sub:-Instructions regarding conduct of quasi-judicial proceedings in field offices.**

Sir,

It has come to notice that there has been an instance of unnecessarily making a separate 7A proceedings room in a field office. It is informed that no such exclusive/separate room is allowed as per existing instructions.

2. In this regard, it is stated that

- a) 7A & 14B proceedings can be conducted without mixing up routine/office work and should be held in officers own cubicle/chamber as it is not an exclusive work but part of the work entrusted to an officer. This will also be economically prudent in terms of space and time.
- b) It is also advised to fix the 7A/14B enquires by each officer depending upon his/her workload on any one or two days in a week in forenoon or afternoon sessions.

3. This is for your information and necessary compliance.

[This issues with the approval of CPFC]

Yours faithfully,

*Suresh Chandra*

(S.C. Goyal)

**Addl. Central PF Commissioner (Compliance)**





कर्मचारी भविष्य निधि संगठन  
(श्रम एवं रोजगार मंत्रालय, भारत सरकार)  
**EMPLOYEES' PROVIDENT FUND ORGANISATION**

(Ministry of Labour & Employment, Govt. of India)

मुख्य कार्यालय / Head Office

भविष्य निधि भवन, 14-भीकाजी कामा प्लेस, नई दिल्ली-110 066.

Bhavishya Nidhi Bhawan, 14, Bhikaiji Cama Place, New Delhi - 110 066.

No. C-I/1(63)2017/e-court/

Date: 24 JUL 2017

To

All ACCs (Zones)

All RPFCs-I/RPFCs-II, Regional Offices

**Sub:- Implementation of e-court software- revised procedure.**

Sir,

As you are aware, in the e-court software the allotment of 7A & 14B cases among assessing authorities is automatic so as to ensure that the workload is spread uniformly and cases are allotted randomly.

2. Accordingly, it is imperative that all APFCs/RPFC-IIs/RPFC-I user-id is immediately created except for officers who are barred from sensitive postings. Thereafter, the user role of court administration be given to officers currently working in Compliance only.
3. As 7A & 14B cases shall be randomly assigned to all assessing authorities, it is necessary that responsibility of initiation of 7A & 14B cases is separately and specifically assigned to respective section(s)/EO(s)/officer(s) responsible for initiation of first notice where due in accordance with the original jurisdiction to hold 7A/14B inquiry vide head office circular No. C-I/1(05)16/7A/MoL&E/6242 dated 22.06.2017.
4. Therefore, OICs shall be fully responsible to ensure that the administrative structure is appropriately put and initiation of 7A & 14B cases is done in time and no delay shall occur in initiation of first notice proposing such inquiry to respective employer followed with filing of actual case at e-court.
5. It is also clarified that for initiating 7A to decide applicability dispute also first a code no. must be allotted to the establishment by the concerned RO.
6. Further, with immediate effect for all new cases all hearings, proceedings/daily orders, filing order etc. must be through above software only. However, physical file shall continue to be updated by keeping print outs from e-court software till further orders.
7. For immediate compliance.

Yours faithfully,

*(Signature)*  
20/7/17

(M. Narayanappa)

Additional Central PF Commissioner (HQ)



कर्मचारी भविष्य निधि संगठन

(श्रम एवं रोजगार मंत्रालय, भारत सरकार)

# EMPLOYEES' PROVIDENT FUND ORGANISATION

(Ministry of Labour & Employment, Govt. of India)

मुख्य कार्यालय / Head Office

भविष्य निधि भवन, 14-भोकाजी कामा प्लेस, नई दिल्ली-110 066.

Bhavishya Nidhi Bhawan, 14, Bhikarji Cama Place, New Delhi - 110 066.

No. C-I/1(5)16/7A/MOL&E

Date:

22 JUN 2017

To

All ACCs (Zones)

All RPFCs-In-Charge of ROs and SROs

## Sub:-Jurisdiction to conduct enquiries under Section 7A and 14B by officers in different hierarchies in field offices.

Sir,

Instructions regarding jurisdiction to conduct inquiries under section 7A and 14B by officers in different hierarchies in the field offices, were issued by the following Head Office circulars:

- Letter No. RRC.II/28(31)07/53677 to 53777 dated 17.10.2007.
- Letter No. Coord./5(16)2009/Misc./5380 dated 29.10.2009.
- Letter No. Coord.5(16)2009/Misc/11525 dated 11.09.2012.
- Letter No. CAIU/011(75)16/DL/Adm. Guidelines/16222 dated 21.09.2016

2. Consequent upon the conversion of all the Sub-Regional Offices to Regional Office, there is a need to revise the instructions as given in the above referred circulars. Accordingly, the jurisdiction to conduct inquiries under section 7A and 14B by officers in different hierarchies in the field offices is revised and shall be as given below:-

| Sl. No | Type of Establishments                       | RO where RPFC-II is in-charge | In RO where RPFC-I is in-charge and no RC-II is posted | In RO where RPFC-I is in-charge and where RPFC-II is also posted |
|--------|----------------------------------------------|-------------------------------|--------------------------------------------------------|------------------------------------------------------------------|
| 1.     | Establishments with members up to 250        | APFC                          | APFC                                                   | APFC                                                             |
| 2.     | Establishments with members from 251 to 1000 | RPFC-II/ Officer In-Charge    | RPFC-I/ Officer In-Charge                              | RPFC-II (C&R)                                                    |
| 3.     | Establishment with members from 1001 onwards |                               |                                                        | RPFC-I/ Officer In-Charge                                        |

3. RPFC-I or RPFC-II of the Regional office can not assign the 7A & 14B cases falling in the original jurisdiction of RPFC-I or RPFC-II to an officer working under him. Additional CPFC (Zone), as temporary measure, can assign the 7A & 14B cases falling under the original jurisdiction of RPFC-I or RPFC-II to another RPFC-I or RPFC-II in the zone only if the workload of RPFC-I or RPFC-II has reached unmanageable limit or where there is no RPFC-I/II in the Regional Office on account of transfer, leave or any other reason to be recorded in writing.

Yours faithfully,

*M. Narayanappa*  
21/6/17

(M. Narayanappa)

Addl. Central PF Commissioner - HQ (Compliance)





## कर्मचारी भविष्य निधि संगठन

Employees' Provident Fund Organisation  
(Ministry of Labour & Employment, Govt. of India)

केन्द्रीय) विश्लेषण एवं प्रज्ञता इकाई / CAIU

मुख्य कार्यालय / Head Office

Bhavishya Nidhi Bhawan, 14-Bhikaiji Cama Place, New Delhi-110066

No .CAIU/011/(75)16/DL/Adm. Guidelines

Dated: 21/09/2016

To

16222

21 SEP 2016

All Additional Central PF Commissioners,  
All Regional PF Commissioners-I,  
All Regional PF Commissioners-II,  
All Assistant PF Commissioners,

**Sub:** Arrangement for smooth exercise of powers under sections 7A, 7B, 7C/14B of the EPF & MP act, 1952 – Administrative scrutiny of the orders – Instructions – Regarding

**Ref:** 1. Letter no RRC.II/28(31)07/53677 to 53777 dated 17<sup>th</sup> Oct 2007  
2. Letter no Coord./5(16)2009/Misc dated 28<sup>th</sup> Oct 2009  
3. Letter no Coord.5(16)2009/Misc/11525 dated 11<sup>th</sup> Sep 2012

Madam/ Sir,

The jurisdiction to conduct the enquiries under section 7A and 14 B proceeding by officers in different hierarchies in the field offices, is being regulated by Head office circular no. (1)RRC.II/28(31)07/53677 dated 17.10.2007 and (2) Coord./5(16)2009/MISC/5380 dated 29.10.2009 and as per this circular following arrangements have been made:

| Establishment's member strength                  | Original Jurisdiction |               |
|--------------------------------------------------|-----------------------|---------------|
|                                                  | In SRO                | In RO         |
| 1. Establishment with members up to 250          | APFC                  | APFC          |
| 2. Establishment with members up to 251 to 1000  | RPFC II/OIC           | RPFC-II (C&R) |
| 3. Establishment with members up to 1001 onwards |                       | RPFC-I        |

1. As per Head Office circular no Coord. /5(16)2009/MISC/11525 dated 11.09.2012, It was decided to authorise RPFCs-In –Charge of the Region to

assign the work of conducting cases under section 7A and section 14 B to offices working under them beyond the original jurisdiction after reasons to be recorded in writing.

2. The Head office circular no Coord. /5(16)2009/MISC/11525 dated 11.09.2012 is further clarified/modified as below for delegation of authority for compliance with immediate effect:

- a) RPFC I-In-Charge of the Region , as temporary measure, can assign the work of conducting cases under section 7A and section 14 B to officers working under them beyond the original jurisdiction only in case of shortage of officers working under him after reason to be recorded in writing. Once sufficient officers are available, exercise of authority shall be strictly in terms of original jurisdiction of RPFC-II or APFC as the case be. RPFC-I of the Region shall exercise this authority in respect of SRO also under his jurisdiction.
- b) RPFC-I of the Region can not assign the 7A & 14 B cases falling in the original jurisdiction of RPFC-I to an officer working under him.
- c) Additional CPFC (Zone), as temporary measure, can assign the 7A & 14 B cases falling under the original jurisdiction of RPFC-I to another RPFC-I in the zone or RPFC-II only if the workload of RPFC-I has reached unmanageable limit or where there is no RPFC-I in the Region on account of transfer, leave or any other reason to be recorded in writing.

(This issues with the approval of CPFC)

Kindly Acknowledge receipt

Yours faithfully,

*M. Narayanappa*  
21/9/16

(M. NARAYANAPPA)

Additional Central Provident Fund Commissioner-I

Copy to:

1. PS to CPFC
2. PS to FA & CAO/CVO/ACCs (HQ)
3. All ACCs for information.
4. Deputy Director (Rajbhasha) with a request for Hindi translation.





कर्मचारी भविष्य निधि संगठन  
(श्रम एवं रोजगार मंत्रालय, भारत सरकार)  
**EMPLOYEES' PROVIDENT FUND ORGANISATION**  
(Ministry of Labour & Employment, Govt. of India)  
मुख्य कार्यालय / Head Office  
भविष्य निधि भवन, 14-धौकाजी कामा प्लेस, नई दिल्ली-110 066  
Bhavishya Nidhi Bhawan, 14, Bhikaiji Cama Place, New Delhi - 110 066.

No. C-I/1(5)16/7A/MoL&E

Date: 01 SEP 2016

To

13959  
The RPFC-Is/RPFC-IIs,  
Incharge of Regional Office/Sub-Regional Office.

**Sub: Prompt disposal of pending 7A cases –inclusion of weightage for 7A case disposal for ranking of RO/SRO in e.samiksha portal.**

Sir/Madam,

As you are aware that timely and expeditious disposal of pending 7A cases is of utmost importance to ensure that the employees working in the establishments to which the EPF & MP Act applies are extended due benefits in Employees' Provident Funds Scheme, 1952, Employees' Pension Scheme, 1975 and Employees' Deposit Linked Insurance Scheme, 1976.

2. Though in some cases there may be some complexity leading to delay in finalization of inquiries, it is to be ensured that majority of cases are disposed off within three months of initiation of inquiry at the most. The progress of 7A enquiries from 01.04.2016 to 31.07.2016 showing the opening balance, cases initiated and disposed during the period (Zone-wise) is enclosed for reference please.

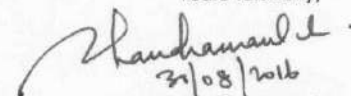
3. In order to ensure that the Assessing Officer gives due importance to this item of work and Officer In-charges ensure timely disposal of 7A cases by constant review and monitoring, it is proposed that henceforth the disposal percentage of 7A cases may also be made an indicator of the ranking given to a RO/SRO in EPFO E.Samiksha. The percentage of 7A enquiries disposed will be the performance parameter.

4. Accordingly, all OICs are requested to ensure that the 7A cases are properly examined and reviewed to ensure prompt disposal without any un-necessary and unjustified delays.

(This issues with the approval of ACC-I (Compliance.)

Encl: As above.

Yours faithfully,



(C. Chakraborty)

Addl. Central PF Commissioner-II (Compliance)

Copy to Office of ACC (Zones) for information and necessary follow up action please.



Office ID : 014000 Office Type : NDC - 1014 EPFO Office Version No. V2.0 Release No. 2.02 - 01/07/2016

### COMPLIANCE - 7A & 14B CASES DASHBOARD

16/08/2016

END

Select Any One Option : ☒ 7A ☐ 14B  
 FROM DATE : 01/04/2016 TO DATE : 31/07/2016  
 SELECT STATUS : ALL  
 SEARCH FOR : ALL

| SR.NO | ZONE                                 | REGION        | OFFICE             | OB AS ON STARTING DATE | CASES INITIATED DURING THE PERIOD | NET WORK LOAD | CASES DELETED DURING THE PERIOD | CASES DISPOSED DURING THE PERIOD | CASES PENDING DURING THE PERIOD |
|-------|--------------------------------------|---------------|--------------------|------------------------|-----------------------------------|---------------|---------------------------------|----------------------------------|---------------------------------|
| 1     | ANDHRA PRADESH, TELANGANA AND ORISSA | BHUBANESHWAR  | RO, BHUBANESHWAR   | 145                    | 16                                | 161           | 0                               | 22                               | 139                             |
| 2     | ANDHRA PRADESH, TELANGANA AND ORISSA | BHUBANESHWAR  | SRO, BHERAMPUR     | 67                     | 22                                | 89            | 1                               | 33                               | 55                              |
| 3     | ANDHRA PRADESH, TELANGANA AND ORISSA | BHUBANESHWAR  | SRO, KEONJHAR      | 16                     | 30                                | 46            | 12                              | 10                               | 24                              |
| 4     | ANDHRA PRADESH, TELANGANA AND ORISSA | BHUBANESHWAR  | SRO, ROURKELA      | 98                     | 24                                | 122           | 97                              | 11                               | 14                              |
| 5     | ANDHRA PRADESH, TELANGANA AND ORISSA | GUNTUR        | RO, GUNTUR         | 136                    | 52                                | 188           | 7                               | 47                               | 134                             |
| 6     | ANDHRA PRADESH, TELANGANA AND ORISSA | GUNTUR        | SRO, KADAPA        | 166                    | 2                                 | 168           | 0                               | 2                                | 166                             |
| 7     | ANDHRA PRADESH, TELANGANA AND ORISSA | GUNTUR        | SRO, RAJAMUNDRY    | 105                    | 12                                | 117           | 1                               | 21                               | 95                              |
| 8     | ANDHRA PRADESH, TELANGANA AND ORISSA | GUNTUR        | SRO, VISHAKAPATNAM | 212                    | 76                                | 288           | 2                               | 47                               | 239                             |
| 9     | ANDHRA PRADESH, TELANGANA AND ORISSA | HYDERABAD     | RO, HYDERABAD      | 1380                   | 370                               | 1750          | 163                             | 92                               | 1495                            |
| 10    | ANDHRA PRADESH, TELANGANA AND ORISSA | HYDERABAD     | SRO, KUKATPALLI    | 391                    | 84                                | 475           | 31                              | 92                               | 352                             |
| 11    | ANDHRA PRADESH, TELANGANA AND ORISSA | HYDERABAD     | SRO, PATANCHERU    | 286                    | 93                                | 379           | 3                               | 104                              | 272                             |
| 12    | ANDHRA PRADESH, TELANGANA AND ORISSA | HYDERABAD     | SRO, SIDDIPET      | 6                      | 31                                | 37            | 0                               | 10                               | 27                              |
| 13    | ANDHRA PRADESH, TELANGANA AND ORISSA | NIZAMABAD     | RO, NIZAMABAD      | 56                     | 4                                 | 60            | 1                               | 7                                | 52                              |
| 14    | ANDHRA PRADESH, TELANGANA AND ORISSA | NIZAMABAD     | SRO, KARTINAGAR    | 0                      | 55                                | 55            | 1                               | 21                               | 33                              |
| 15    | ANDHRA PRADESH, TELANGANA AND ORISSA | NIZAMABAD     | SRO, WARANGAL      | 30                     | 28                                | 58            | 3                               | 6                                | 49                              |
| 16    | DELHI AND UTTARAKHAND                | DEHRADUN      | RO, DEHRADUN       | 174                    | 48                                | 222           | 17                              | 23                               | 182                             |
| 17    | DELHI AND UTTARAKHAND                | DEHRADUN      | SRO, HALDWANI      | 78                     | 8                                 | 86            | 0                               | 9                                | 77                              |
| 18    | DELHI AND UTTARAKHAND                | DELHI (NORTH) | RO, DELHI (NORTH)  | 198                    | 30                                | 228           | 3                               | 36                               | 189                             |
| 19    | DELHI AND UTTARAKHAND                | DELHI (SOUTH) | RO, DELHI (SOUTH)  | 376                    | 93                                | 469           | 12                              | 89                               | 368                             |



|    |                              |               |                             |     |     |      |    |     |     |
|----|------------------------------|---------------|-----------------------------|-----|-----|------|----|-----|-----|
| 20 | DELHI AND UTTARAKHAND        | DELHI (SOUTH) | SRO, LAXMI NAGAR            | 142 | 30  | 172  | 3  | 0   | 169 |
| 21 | GUJARAT AND MADHYA PRADESH   | AHMEDABAD     | RO, AHMEDABAD               | 189 | 30  | 219  | 2  | 21  | 196 |
| 22 | GUJARAT AND MADHYA PRADESH   | AHMEDABAD     | SRO, NAKODA                 | 279 | 6   | 285  | 0  | 30  | 255 |
| 23 | GUJARAT AND MADHYA PRADESH   | AHMEDABAD     | SRO, RAJKOT                 | 644 | 73  | 717  | 2  | 34  | 681 |
| 24 | GUJARAT AND MADHYA PRADESH   | AHMEDABAD     | SRO, VATWA                  | 81  | 9   | 90   | 0  | 3   | 87  |
| 25 | GUJARAT AND MADHYA PRADESH   | INDORE        | RO, INDORE                  | 115 | 28  | 143  | 4  | 28  | 111 |
| 26 | GUJARAT AND MADHYA PRADESH   | INDORE        | RO, BHOPAL                  | 76  | 13  | 89   | 1  | 13  | 75  |
| 27 | GUJARAT AND MADHYA PRADESH   | INDORE        | SRO, GWALTOR                | 142 | 22  | 164  | 5  | 35  | 124 |
| 28 | GUJARAT AND MADHYA PRADESH   | INDORE        | SRO, JABALPUR               | 165 | 35  | 200  | 0  | 15  | 185 |
| 29 | GUJARAT AND MADHYA PRADESH   | INDORE        | SRO, SAGAR                  | 35  | 43  | 78   | 43 | 10  | 25  |
| 30 | GUJARAT AND MADHYA PRADESH   | SURAT         | SRO, SURAT                  | 184 | 147 | 90   | 22 | 56  | 253 |
| 31 | GUJARAT AND MADHYA PRADESH   | SURAT         | RO, BHARUCH                 | 55  | 6   | 61   | 2  | 7   | 52  |
| 32 | GUJARAT AND MADHYA PRADESH   | SURAT         | SRO, VAPI                   | 59  | 20  | 79   | 7  | 7   | 65  |
| 33 | GUJARAT AND MADHYA PRADESH   | VADODARA      | RO, VADODARA                | 115 | 11  | 126  | 0  | 25  | 101 |
| 34 | GUJARAT AND MADHYA PRADESH   | FARIDABAD     | RO, FARIDABAD               | 245 | 32  | 277  | 4  | 41  | 229 |
| 35 | HARYANA AND RAJASTHAN        | FARIDABAD     | SRO, KARNAL                 | 84  | 44  | 128  | 0  | 20  | 108 |
| 36 | HARYANA AND RAJASTHAN        | GURGAON       | RO, GURGAON                 | 313 | 256 | 569  | 8  | 207 | 354 |
| 37 | HARYANA AND RAJASTHAN        | GURGAON       | SRO, ROHTAK                 | 45  | 74  | 119  | 7  | 35  | 588 |
| 38 | HARYANA AND RAJASTHAN        | JAIPUR        | RO, JAIPUR                  | 359 | 251 | 610  | 7  | 2   | 32  |
| 39 | HARYANA AND RAJASTHAN        | JAIPUR        | SRO, JOHPUR                 | 23  | 11  | 34   | 0  | 1   | 43  |
| 40 | HARYANA AND RAJASTHAN        | JAIPUR        | RO, KOTA                    | 43  | 1   | 44   | 0  | 1   | 140 |
| 41 | HARYANA AND RAJASTHAN        | JAIPUR        | SRO, UDAIPUR                | 58  | 102 | 160  | 1  | 10  | 164 |
| 42 | HARYANA AND RAJASTHAN        | JAIPUR        | RO, BANGALORE               | 146 | 57  | 203  | 0  | 39  | 66  |
| 43 | KARNATKA AND GOA             | BANGALORE     | SRO, RAJARAJESHWARI NAGAR   | 69  | 4   | 73   | 1  | 4   | 138 |
| 44 | KARNATKA AND GOA             | GOA           | RO, GOA                     | 124 | 48  | 172  | 13 | 21  | 31  |
| 45 | KARNATKA AND GOA             | GULBARGA      | RO, GULBARGA                | 29  | 5   | 34   | 1  | 2   | 10  |
| 46 | KARNATKA AND GOA             | GULBARGA      | SRO, BELLARY                | 20  | 13  | 33   | 4  | 19  | 38  |
| 47 | KARNATKA AND GOA             | GULBARGA      | SRO, HUBLI                  | 51  | 26  | 77   | 0  | 39  | 4   |
| 48 | KARNATKA AND GOA             | GULBARGA      | SRO, RAICHUR                | 1   | 8   | 9    | 2  | 3   | 20  |
| 49 | KARNATKA AND GOA             | MANGALORE     | RO, MANGALORE               | 13  | 29  | 42   | 0  | 22  | 5   |
| 50 | KARNATKA AND GOA             | MANGALORE     | SRO, CHIKAMAGALUR           | 10  | 21  | 31   | 20 | 6   | 224 |
| 51 | KARNATKA AND GOA             | MANGALORE     | SRO, MYSORE                 | 223 | 49  | 272  | 15 | 33  | 10  |
| 52 | KARNATKA AND GOA             | MANGALORE     | SRO, SHIMOGA                | 6   | 7   | 13   | 1  | 9   | 13  |
| 53 | KARNATKA AND GOA             | MANGALORE     | SRO, UDUPPI                 | 21  | 1   | 22   | 0  | 69  | 44  |
| 54 | KARNATKA AND GOA             | PEENYA        | RO, PEENYA                  | 83  | 35  | 118  | 5  | 31  | 145 |
| 55 | KARNATKA AND GOA             | PEENYA        | SRO, BOHMASANDRA            | 131 | 62  | 193  | 15 | 35  | 132 |
| 56 | KARNATKA AND GOA             | PEENYA        | SRO, K R PURAM (WHITEFIELD) | 82  | 89  | 171  | 4  | 38  | 284 |
| 57 | KARNATKA AND GOA             | BANDRA        | RO, BANDRA (MUMBAI-1)       | 248 | 121 | 369  | 47 | 17  | 189 |
| 58 | MAHARASHTRA AND CHHATTISGARH | KANDIVALI     | RO, MALAD (KANDIVALI)       | 79  | 135 | 214  | 8  | 28  | 168 |
| 59 | MAHARASHTRA AND CHHATTISGARH | KANDIVALI     | SRO, NASIK                  | 134 | 68  | 202  | 6  | 111 | 866 |
| 60 | MAHARASHTRA AND CHHATTISGARH | NAGPUR        | RO, NAGPUR                  | 846 | 155 | 1001 | 24 | 93  | 333 |
| 61 | MAHARASHTRA AND CHHATTISGARH | NAGPUR        | SRO, AKOLA                  | 466 | 13  | 419  | 3  | 53  | 333 |
| 62 | MAHARASHTRA AND CHHATTISGARH | NAGPUR        |                             |     |     |      |    |     |     |

16-08-2016

|     |                              |                    |                                       |     |     |      |     |     |     |
|-----|------------------------------|--------------------|---------------------------------------|-----|-----|------|-----|-----|-----|
| 63  | MAHARASHTRA AND CHHATTISGARH | NAGPUR             | SRO, AURANGABAD                       | 470 | 40  | 510  | 0   | 87  | 423 |
| 64  | MAHARASHTRA AND CHHATTISGARH | PUNE               | RO, PUNE                              | 421 | 72  | 493  | 12  | 44  | 437 |
| 65  | MAHARASHTRA AND CHHATTISGARH | PUNE               | SRO, KOLHAPUR                         | 255 | 48  | 303  | 2   | 37  | 284 |
| 66  | MAHARASHTRA AND CHHATTISGARH | PUNE               | SRO, SOLHAPUR                         | 121 | 19  | 140  | 45  | 52  | 43  |
| 67  | MAHARASHTRA AND CHHATTISGARH | RAIPUR             | RO, RAIPUR (CHHATTISGARH)             | 380 | 234 | 614  | 5   | 154 | 485 |
| 68  | MAHARASHTRA AND CHHATTISGARH | THANE              | RO, THANE (MUMBAI-II)                 | 173 | 78  | 251  | 10  | 100 | 141 |
| 69  | MAHARASHTRA AND CHHATTISGARH | THANE              | SRO, VASHI                            | 133 | 62  | 195  | 5   | 17  | 173 |
| 70  | PUNJAB AND HIMACHAL PRADESH  | CHANDIGARH         | RO, CHANDIGARH                        | 394 | 242 | 636  | 32  | 133 | 471 |
| 71  | PUNJAB AND HIMACHAL PRADESH  | CHANDIGARH         | RO, BHATTINDA                         | 561 | 186 | 747  | 12  | 148 | 587 |
| 72  | PUNJAB AND HIMACHAL PRADESH  | LUDHIANA           | RO, LUDHIANA                          | 178 | 231 | 409  | 10  | 115 | 284 |
| 73  | PUNJAB AND HIMACHAL PRADESH  | LUDHIANA           | SRO, AMRITSAR                         | 267 | 758 | 1025 | 247 | 80  | 698 |
| 74  | PUNJAB AND HIMACHAL PRADESH  | LUDHIANA           | SRO, JALANDHAR                        | 315 | 8   | 323  | 0   | 3   | 320 |
| 75  | PUNJAB AND HIMACHAL PRADESH  | SHIMLA             | RO, SHIMLA                            | 291 | 108 | 399  | 17  | 74  | 308 |
| 76  | TAMIL NADU AND KERALA        | CHENNAI            | RO, CHENNAI                           | 452 | 596 | 1046 | 46  | 273 | 729 |
| 77  | TAMIL NADU AND KERALA        | CHENNAI            | RO, COIMBATORE                        | 132 | 52  | 184  | 17  | 44  | 123 |
| 78  | TAMIL NADU AND KERALA        | COIMBATORE         | RO, COIMBATORE                        | 247 | 124 | 371  | 9   | 113 | 249 |
| 79  | TAMIL NADU AND KERALA        | COIMBATORE         | SRO, SALEM                            | 112 | 42  | 154  | 0   | 22  | 132 |
| 80  | TAMIL NADU AND KERALA        | MADURAI            | SRO, TRICHY                           | 4   | 450 | 454  | 18  | 80  | 356 |
| 81  | TAMIL NADU AND KERALA        | MADURAI            | RO, MADURAI                           | 182 | 178 | 360  | 100 | 181 | 79  |
| 82  | TAMIL NADU AND KERALA        | MADURAI            | SRO, NAGERCOIL                        | 103 | 20  | 123  | 19  | 25  | 79  |
| 83  | TAMIL NADU AND KERALA        | MADURAI            | SRO, TIRUNELVELI                      | 103 | 55  | 158  | 3   | 60  | 95  |
| 84  | TAMIL NADU AND KERALA        | TAMBARAM           | RO, TAMBARAM                          | 226 | 65  | 261  | 26  | 147 | 118 |
| 85  | TAMIL NADU AND KERALA        | TAMBARAM           | SRO, PONDICHERRY                      | 76  | 41  | 117  | 2   | 39  | 76  |
| 86  | TAMIL NADU AND KERALA        | TAMBARAM           | SRO, VELLORE                          | 182 | 84  | 266  | 12  | 113 | 141 |
| 87  | TAMIL NADU AND KERALA        | THIRUVANANTHAPURAM | RO, THIRUVANANTHAPURAM (THIRUVENDRUM) | 100 | 84  | 184  | 1   | 62  | 121 |
| 88  | TAMIL NADU AND KERALA        | THIRUVANANTHAPURAM | SRO, KANNUR                           | 56  | 96  | 152  | 5   | 63  | 84  |
| 89  | TAMIL NADU AND KERALA        | THIRUVANANTHAPURAM | SRO, KOCHI (COCHIN)                   | 477 | 44  | 521  | 1   | 134 | 386 |
| 90  | TAMIL NADU AND KERALA        | THIRUVANANTHAPURAM | SRO, KOLLAM                           | 38  | 17  | 55   | 1   | 19  | 35  |
| 91  | TAMIL NADU AND KERALA        | THIRUVANANTHAPURAM | SRO, KOTTAYAM                         | 25  | 40  | 65   | 0   | 14  | 51  |
| 92  | TAMIL NADU AND KERALA        | THIRUVANANTHAPURAM | SRO, KOZHIKODE (CALICUT)              | 25  | 52  | 77   | 1   | 54  | 22  |
| 93  | UTTAR PRADESH AND BIHAR      | KANPUR             | RO, KANPUR                            | 281 | 13  | 294  | 1   | 15  | 278 |
| 94  | UTTAR PRADESH AND BIHAR      | KANPUR             | SRO, ALLAHABAD                        | 105 | 5   | 110  | 1   | 7   | 102 |
| 95  | UTTAR PRADESH AND BIHAR      | KANPUR             | SRO, BAREILLY                         | 76  | 14  | 90   | 0   | 11  | 79  |
| 96  | UTTAR PRADESH AND BIHAR      | KANPUR             | SRO, GORAKHPUR                        | 17  | 25  | 42   | 0   | 2   | 40  |
| 97  | UTTAR PRADESH AND BIHAR      | KANPUR             | SRO, LUCKNOW                          | 332 | 0   | 332  | 0   | 14  | 318 |
| 98  | UTTAR PRADESH AND BIHAR      | KANPUR             | SRO, VARANASI                         | 515 | 89  | 604  | 2   | 23  | 579 |
| 99  | UTTAR PRADESH AND BIHAR      | MEERUT             | RO, MEERUT                            | 202 | 0   | 202  | 0   | 0   | 202 |
| 100 | UTTAR PRADESH AND BIHAR      | MEERUT             | SRO, AGRA                             | 81  | 23  | 104  | 3   | 25  | 76  |
| 101 | UTTAR PRADESH AND BIHAR      | MEERUT             | SRO, NOIDA                            | 356 | 242 | 598  | 4   | 133 | 461 |
| 102 | UTTAR PRADESH AND BIHAR      | PATNA              | RO, PATNA                             | 446 | 1   | 447  | 1   | 1   | 445 |
| 103 | UTTAR PRADESH AND BIHAR      | PATNA              | SRO, BHAGALPUR                        | 90  | 18  | 108  | 4   | 3   | 101 |
| 104 | UTTAR PRADESH AND BIHAR      | PATNA              | SRO, MUZAFFARPUR                      | 164 | 41  | 205  | 10  | 6   | 189 |



## Compliance 7A-14B Cases DasiBoard

|     |                                       |            |                             |       |      |       |      |      |       |
|-----|---------------------------------------|------------|-----------------------------|-------|------|-------|------|------|-------|
| 105 | WEST BENGAL, NORTH EAST AND JHARKHAND | GUWAHATI   | RO, GUWAHATI                | 370   | 21   | 341   | 22   | 38   | 281   |
| 106 | WEST BENGAL, NORTH EAST AND JHARKHAND | GUWAHATI   | SRO, AGARTALA               | 36    | 25   | 61    | 0    | 18   | 43    |
| 107 | WEST BENGAL, NORTH EAST AND JHARKHAND | GUWAHATI   | SRO, SHILLONG               | 7     | 18   | 25    | 1    | 2    | 17    |
| 108 | WEST BENGAL, NORTH EAST AND JHARKHAND | GUWAHATI   | SRO, TINSUKIA               | 71    | 7    | 78    | 0    | 13   | 65    |
| 109 | WEST BENGAL, NORTH EAST AND JHARKHAND | JALPAIGURI | RO, JALPAIGURI              | 53    | 17   | 70    | 1    | 14   | 55    |
| 110 | WEST BENGAL, NORTH EAST AND JHARKHAND | JALPAIGURI | SRO, DARJEELING             | 11    | 5    | 16    | 1    | 8    | 7     |
| 111 | WEST BENGAL, NORTH EAST AND JHARKHAND | JALPAIGURI | SRO, JANGIPUR               | 41    | 25   | 66    | 1    | 20   | 45    |
| 112 | WEST BENGAL, NORTH EAST AND JHARKHAND | JALPAIGURI | SRO, SILIGURI               | 256   | 65   | 321   | 3    | 97   | 261   |
| 113 | WEST BENGAL, NORTH EAST AND JHARKHAND | KOLKATA    | RO, KOLKATA                 | 289   | 33   | 322   | 12   | 52   | 258   |
| 114 | WEST BENGAL, NORTH EAST AND JHARKHAND | KOLKATA    | SRO, BARRACKPORE (TITAGARH) | 139   | 31   | 170   | 6    | 19   | 145   |
| 115 | WEST BENGAL, NORTH EAST AND JHARKHAND | KOLKATA    | SRO, DURGAPUR               | 104   | 14   | 118   | 1    | 6    | 111   |
| 116 | WEST BENGAL, NORTH EAST AND JHARKHAND | KOLKATA    | SRO, HOWRAH                 | 11    | 19   | 30    | 8    | 2    | 20    |
| 117 | WEST BENGAL, NORTH EAST AND JHARKHAND | KOLKATA    | SRO, PARK STREET            | 45    | 18   | 63    | 2    | 13   | 48    |
| 118 | WEST BENGAL, NORTH EAST AND JHARKHAND | KOLKATA    | SRO, PORT BLAIR             | 16    | 0    | 16    | 0    | 0    | 16    |
| 119 | WEST BENGAL, NORTH EAST AND JHARKHAND | RANCHI     | RO, RANCHI                  | 282   | 177  | 459   | 25   | 156  | 268   |
| 120 | WEST BENGAL, NORTH EAST AND JHARKHAND | RANCHI     | SRO, JAMSHEDPUR             | 172   | 22   | 194   | 3    | 27   | 164   |
|     |                                       |            | Total                       | 21156 | 8406 | 29562 | 1439 | 5076 | 23047 |

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कर्मचारी भविष्य निधि संगठन  
**Employees' Provident Fund Organisation**

(श्रम एवं रोजगार मंत्रालय, भारत सरकार)

(Ministry of Labour & Employment, Govt. of India)

मुख्य कार्यालय / Head Office

भविष्य निधि भवन, 14, भीकाएजी कामा प्लेस, नई दिल्ली - 110 066.

Bhavishya Nidhi Bhawan, 14-Bhikaiji Cama Place, New Delhi-110066

[www.epfindia.gov.in](http://www.epfindia.gov.in)

[www.epfindia.nic.in](http://www.epfindia.nic.in)

No . Compliance/C-III/011/3(18)2015/DL/DO-Ref

Dated: 01/08/2016

To,

All Additional Central PF Commissioners,  
All Regional PF Commissioners-I,  
All Regional PF Commissioners-II,  
All Assistant PF Commissioners,

01 AUG 2016

**Sub: Inspection of Security/Manpower/Facility Management Establishments.**

**Madam/ Sir,**

Large number of establishments engaged in providing security services, supply of manpower facility management establishments and construction companies are covered under EPF & MP act 1952. Several complaints are received regarding underreporting of employees/ contribution under the act in respect of such establishments. Often, the nature of such complaints is that these establishments have not enrolled all of the employees deployed with different principal employer/ clients.

2. In this regard, it is observed that while inspecting compliance of such establishments/ companies under EPF & MP Act, 1952 only absolute number of employees are reported by field officers and this may not give correct picture about number of employees engaged.

3. Hence, it has been decided that from now onwards **(a.)** it shall be mandatory on the part of Enforcement Officers, to report numbers of employer in respect of these security/manpower/facility management establishments with reference to each of principal employer/clients being served by these establishments and **(b.)** In case of any 7A proceeding, in respect of such establishments, it shall be mandatory on the part of officers working as Departmental Representatives to report numbers of employees in respect of these security/manpower/facility management establishments with reference to each of the principal employers/clients being served by these establishments.



4. Further, while carrying out inspection of principal employers it must be ascertained whether the details of contract awarded have been uploaded by the principal employer in the EPF portal and the same should be reported in the inspection report. The Inspection Proforma (Unexempted Establishments) has accordingly been modified with the inclusion of live items 2A & 7A in the proforma. A copy of the modified Inspection Proforma is enclosed for ensuring that all future inspections are firstly, carried out keeping the instructions in the circular in view, and secondly duly reported in the revised proforma.

*(This issues with the approval of CPFC)*

**Yours faithfully,**

*Narayan*  
11/8/16

**(M. NARAYANAPPA)**  
**Additional Central Provident Fund Commissioner-I**

**Encls.: As above**

**Copy to:**

1. PS to CPFC

2. PS to FA & CAO/CVO/*ACC(HQ)* All ACCs } For information.

3. DD (Rajbhasha) with a request for Hindi translation.

**EMPLOYEES' PROVIDENT FUND ORGANISATION  
REGIONAL/SUB-REGIONAL OFFICE**

**INSPECTION PROFORMA (UNEXEMPTED ESTABLISHMENTS)**

DATE OF INSPECTION : (dd/mm/yyyy)  
PERIOD OF INSPECTION : (dd/mm/yyyy)

**PART-A – OPTIONAL INSPECTIONS (Para 3c) of Inspection Scheme)**

1. LIN:

2. Number of employees engaged by the establishment

- a) Engaged directly: \_\_\_\_\_  
b) Engaged on contract or through a contact \_\_\_\_\_  
c) Excluded employees: \_\_\_\_\_

**2A Name of different Principal Employers and Number of total employees engaged with them:**

| Name                  | PF Code No. |
|-----------------------|-------------|
| a)                    | _____       |
| b)                    | _____       |
| c)                    | _____       |
| Add row (if required) | Total _____ |

3. Number of employees in respect of whom remittance is made in the month of report.

Total:

- a) Engaged directly \_\_\_\_\_  
b) Engaged on contract or through a contractor: \_\_\_\_\_

4. Drop in Remittance

- a) Average drop in amount remitted in Rs. \_\_\_\_\_  
b) Percent drop in remittance: \_\_\_\_\_  
c) Reasons for drop in remittance: \_\_\_\_\_

\*Add detailed explanatory sheet if required:

5. Drop in Membership:

- a) Average reduction in membership:  
b) Percent drop in membership  
c) Reasons for drop in membership\*

\*Add detailed explanatory sheet if required



6. Declaration Form in accordance with Para 34 of the EPF Scheme 19052) not furnished in respect of following members:

| Sl. No. | Name of the employee | Date of Birth | Date of Joining |
|---------|----------------------|---------------|-----------------|
| 1       |                      |               |                 |
| 2       |                      |               |                 |

7. Workers whose statement are recorded during inspection:-

| Name of the Worker | EPF Account No./UAN | Whether agree to reasons mentioned in para 4 & 5 above (Y/N) |
|--------------------|---------------------|--------------------------------------------------------------|
|                    |                     |                                                              |
|                    |                     |                                                              |
|                    |                     |                                                              |

i) In case of disagreement submissions/documentary evidence submitted:

ii) In case of disagreement, lit of record(s) seized by the Inspector:

7A: whether the establishment being principal employer has uploaded their  
(i) work order(ii) contractor details in the principal employer portal of EPFO  
**Yes/No**  
(No enclose the list of contractors not uploaded)

8. Any other point which the Inspector desires to bring to the notice of RPFC:

### **PART-B – MANDATORY INSPECTIONS (Para 3 a) of the Inspection Scheme)**

9. Whether the establishment to be inspected is :

a) New coverage – Y/MN

b) Establishment registered on ECR portal, not marked as closed and not complying – **Y/N**

c) Establishments reported for closure – **Y/N**

10. Number of employees eligible but not enrolled as members of the Fund

| S.No. | Name of the employee | Date of Birth | Date of Joining |
|-------|----------------------|---------------|-----------------|
| 1     |                      |               |                 |
| 2     |                      |               |                 |

Add separate list, if required

11. List of pending Recovery Certificates against the establishment: **Y/N/NA**  
(If 'Y' attach details)

12. List of pending assessment cases (Section 7A/14B of the Act): **Y/N/NA**  
(If 'Y' attach details)

13. List of pending court cases-court wise and periodicity wise : **Y/N/NA**  
(If 'Y' attach details)

14. List of pending prosecution cases: **Y/N/NA**  
(If Y attach details)

15. Whether there is any short/excess remittance in establishment ledger: **YES/NO**

16. Whether any member/representative of the Workers Union of the Factory/Establishment were contacted? If so:

a) Brief description of the points discussed

b) Name(s) of the Union(s)

c) Name of the Office Bearer(s):

17. Declaration Form in accordance with Para 34 of the EPF Scheme, 1952 not furnished in respect of following members:

| S.No. | Name of the employee | Date of Birth | Date of Joining |
|-------|----------------------|---------------|-----------------|
| 1     |                      |               |                 |
| 2.    |                      |               |                 |

Add separate list, if required

18. Any other point which the Inspector desires to bring to the notice of RPFC:

Name of the Enforcement Officer-----Signature-----

Date of last inspection:

Name of the Enforcement Officer who conducted the last inspection:





कर्मचारी भविष्य निधि संगठन  
(श्रम एवं रोजगार मंत्रालय, भारत सरकार)  
**EMPLOYEES' PROVIDENT FUND ORGANISATION**  
(Ministry of Labour & Employment, Govt. of India)  
मुख्य कार्यालय / Head Office  
भविष्य निधि भवन, 14-भोकाजी कामा प्लेस, नई दिल्ली-110 066.  
Bhavishya Nidhi Bhawan, 14, Bhikaiji Cama Place, New Delhi - 110 066.

No. C-III/110001/4/3(7) MIS.C/2013Vol.II

Dated: 15.06.2016

To

All Additional CPFCs,  
All Regional P.F. Commissioners,  
All Assistant P.F. Commissioners

**Sub: Administrative Guidelines for Proceedings  
Under Section 7A of The EPF & MP Act 1952.**

Ref : (a) .H.O.circular no.7 (1)2012/RCs RM dt.06.08.2014  
(b) .H.O.circular III/110001/4/3(7) MIS.C/2013Vol.II/22147  
dt.06.02.2016

Madam/Sir,

In continuation of head office circular dated 06.08.2014 and dated 06.02.2016 in the reference cited, following guidelines; purely from administrative side, for conducting proceedings under section 7A of the EPF & MP Act is being issued.

It has been observed that in large number of establishment, benefits envisaged under the schemes framed under EPF & MP Act do not accrue to the workers due to continued pendency of 7A proceedings and protracted litigation ;especially in respect of establishments where determination of dues for several years are involved.

Hence for the purpose of uniformity and in the interest of expeditious disposal of proceeding, following guidelines are issued for adherence:

**(a). Newly covered establishments with retrospective date of coverage and where several years are involved and the establishment has not yet commenced the compliance, the proceeding under section 7A of EPF & MP Act may be initiated for the current year and**

which must be concluded within three months of issue of 7A notice and a separate 7A enquiry may be initiated to determine the dues for the period prior to the current year.

(b). In respect of 7A enquiry for evasion of membership and non enrolment of contract employees where determination of dues for several years are involved, the proceeding under section 7A of the EPF & MP Act may be initiated for the current year; which must be concluded within three months of issue of 7A notice and a separate 7A enquiry may be initiated to determine the dues for the period prior to the current year.

(This issues with the approval CPFC)

Yours faithfully,

*Narayan*  
15/6/16

(M.Narayanappa)

Addl. Central PF Commissioner-I  
(Compliance & CAIU)

जारी किया  
ISSUED





कर्मचारी भविष्य निधि संगठन  
(श्रम एवं रोजगार मंत्रालय, भारत सरकार)  
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Bhavishya Nidhi Bhawan, 14, Bhikaiji Cama Place, New Delhi - 110 066.

Web circulation

No. C-III/110001/4/3(71)MIS.C/2013/DI/Vol II/

Date:-08.02.2016

To ,

All Additional CPFCs  
All Regional PF Commissioners  
All Assistant PF Commissioners

**Sub: Guidelines for Quasi-judicial proceedings under Section 7A of the Employees Provident Funds & Miscellaneous Provisions Act 1952-regarding.**

Madam/Sir,

In continuation of Head Office Circular No.7 (1)2012/RCs R M dated 06.08.2014 on the above subject, the following instructions for conducting Quasi-judicial proceedings under Section 7A are being issued.

The Executive Committee, CBT, EPF in its 82<sup>nd</sup> meeting held on 20<sup>th</sup> August, 2015 had directed to place the report of Committee constituted to examine and identify the technical reasons where the Hon'ble Courts have passed orders against the EPFO and suggest necessary corrective/remedial measures. A Committee constituted for the purpose consisting of senior officers has broadly identified the following two reasons related to Compliance regarding procedure to be adopted while conducting 7A enquiry which lead to the adverse decision against the Department:

- i. Denial of natural justice:
- ii. Order passed by the adjudicating authority without proper justification -

Hence the authorized officers conducting the 7A inquiry are advised to strictly adhere to the following norms of conducting 7A enquiry under the EPF & MP Act, 1952:-

- a) Whenever a 7A inquiry is initiated, the basis for initiation of 7A inquiry such as EO's reports etc must be served to the establishment/employer.
- b) It must be ensured that 7A notice with enclosures is served on proper person and acknowledgment is kept on record. The service of notice must also be mentioned in the 7A order.

- c) The principals of natural justice must be adhered to during the course of 7A proceeding and the employer must be allowed reasonable opportunity to represent their case.
- d) While determining dues under Section 7A, the basis of calculation of dues must be spelt out in the speaking order passed under Section 7A.
- e). Assessing Authority/Officer must pass speaking order so that the orders do not suffer from any procedural infirmity. Speaking Order includes discussion of evidence of both the parties and reason for arriving at the finding.

(This issues with the approval of Central PF Commissioner)

**Yours faithfully**

*Narayanappa*  
8/2/16

**(M.Narayanappa)**  
**Additional Central PF Commissioners-I**  
**(Compliance)**

बारी किया  
ISSUED



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कर्मचारी भविष्य निधि संगठन  
(श्रम एवं रोजगार मंत्रालय, भारत सरकार)  
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Bhavishya Nidhi Bhawan, 14, Bhikaiji Cama Place, New Delhi - 110 066.

No. CAIU/011/3(1)15/M/34405

Date:

01 JAN 2011

The Regional PF Commissioners  
in-charge of Regional / Sub-Regional Offices

**Subject:- Ensuring compliance in respect of multi-location establishments**

Sir,

Enrolment of workers engaged by multi-location establishments, especially through contractors or on contract is an enduring issue. Most of the complaints relating to non-enrolment of employees under EPFO is found pertaining to this category of employees. Parliamentary committees have been seized of the matter and instructions have been received from Government of India also to ensure that all such employees are enrolled under EPFO and extended due benefits.

2. The matter has been reviewed and following instructions are being issued to ensure enrolment of all such eligible employees under EPFO:-

- i. It shall be the responsibility of the concerned RO/SRO to ensure that all employees working within its physical jurisdiction and who are eligible to be enrolled as PF members are so enrolled.
- ii. This has to be ensured irrespective of the fact whether any of such employees belong to an establishment which has been issued the PF code number by another RO/SRO.
- iii. The RO/SRO within whose jurisdiction such employees are working shall be referred to as "**Local office**" for the purpose of ensuring compliance of such employees under the EPF and MP Act, 1952. The RO/SRO where the establishment is registered under the EPF and MP Act, 1952, even though its employees are working into the physical jurisdiction of another RO/SRO, shall be referred to as "**Main office**" for the purpose of ensuring compliance in respect of such employees under the Act.
- iv. The **Local office** shall cause inspection of the establishment, record the particulars of the employees found working on-site and verify the compliance status in respect of all such employees. The verification in respect of employees

belonging to establishments registered with **Local office** shall be done with reference to office records.

- v. For verifying compliance status of employees belonging to an establishment which has been issued EPF code number by another RO/SRO, the **Local office** shall ensure that a reference is made to the said **Main office** containing details of the on-site physical inspection visit.
- vi. The said reference shall include name, father's/spouse's name, date of birth, date of joining, wages, UAN/PF account number (if available), PAN (if available), Aadhaar (if available) and mobile number (if available).
- vii. The **Main office**, once it receives a reference from the local office, shall verify its records and if required cause physical inspection of the registered office of the establishment within its jurisdiction and submit a comprehensive report to the **Local office** containing the details specifically in respect of the employees whose list has been received from the local office as also any other details which are revealed by such inspection.
- viii. The **Main office** shall complete this task in not more than 30 days after receiving a reference from the **Local office**.

3. Thus, irrespective of the RO/SRO where the PF code number has been issued to an establishment, it shall be the responsibility of the RO/SRO within whose jurisdiction employees of such establishments are physically working, to ensure compliance under the EPF and MP Act, 1952.

(This issues with the approval of CPFC)

Yours sincerely



(Rajesh Bansal)

**Additional Central PF Commissioner (Hqrs.)**

**Copy through web circulation to:-**

1. ACC (Zones) with the direction to ensure compliance to the above orders scrupulously.
2. All Officers, EPFO Headquarters,

**Copy for information:-**

1. PS to CPFC
2. Rajbhasha for Hindi version.





कर्मचारी भविष्य निधि संगठन  
**EMPLOYEES' PROVIDENT FUND ORGANISATION**  
 (श्रम एवं रोजगार मंत्रालय, भारत सरकार)  
 (MINISTRY OF LABOUR & EMPLOYMENT, GOVT. OF INDIA)

मुख्यालय: HEAD OFFICE

भविष्य निधि भवन / BHAVISHYA NIDHI BHAWAN

14, भीकाजी कामा प्लेस, नई दिल्ली-110066 / 14-BHIKAJI CAMA PLACE, NEW DELHI-110066

Website : [www.epfindia.gov.in](http://www.epfindia.gov.in)

No. C-14(18)2015/UP/Gorakhpur.

Dated: 20.04.2015.

To

By name to: The Regional P.F. Commissioner,  
 Sh.V.V.B.Singh Sub Regional Office, EPFO,  
 Opposite Carmel Girls School, P.O. Labour Camp,  
 Civil Lines, Labour Camp, Gorakhpur - 273 009

Sub: Levy of Damages U/S 14 B - Discretion to vary rates of damages - reg.

Ref: Your Letter No.14068/EPF/SRO/GKP/Legal dated 07-04-2015

Sir,

Please refer to your letter cited above. The matter has been examined and the views of Head Office are provided below.

2. It can be seen that the Section 14B of the EPF & MP Act, 1952 provides that the Commissioner may recover from the employer by way of penalty such damages not exceeding the amount of arrears, as may be specified in the Scheme. Since the Act clearly specifies that the levy of damages shall be as specified in the Scheme, the rates specified under the EPF Scheme 1952 under Para 32A shall be adopted without any deviation. It is therefore clear that the Act does not provide any discretion on the Inquiry Authority for varying the rates of Damages to be recovered from the defaulting employer. The EPF Scheme 1952, under Para 32B, separately provides for reduction / waiver of damages levied as per which the Central Board, EPF is empowered for the purpose. Therefore the Employer aggrieved by the order of levy of Penal Damages has to approach the Central Board of EPF for reduction / waiver of the same. The CBT will then consider the case on merits separately subject to the provisions of the EPF & MP Act 1952 and the Schemes framed thereunder.

3. It can be seen that the Authority levying Penal Damages under Section 14B of the EPF & MP Act, 1952 shall provide an opportunity of hearing to the party concerned for meeting the requirements of the law of principles of natural justice. The requirements of the principles of law of natural justice is that all the parties concerned shall be provided with an opportunity to present their case before a decision against their interest is taken.

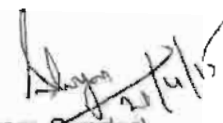
In the case of levy of penal damages, issues to be considered are, whether there is a delay in remittance, whether the delay stated in the notice is correct, whether the delay is due to some situation beyond the control of the employer like disruption to normalcy of public life due to disturbance like natural calamities, strike, bandh, etc. In such cases where the delay is due to situation stated above, the authority can consider and revise the amount / date.

4. Since there are two different authorities specified for two different purposes under the law i.e. for levy of damages and for reduction / waiver of damages, the authorities cannot interfere with one another's powers for the sake of regularity in the action.

5. It is therefore opined that the above may be placed before the Court for consideration and the court can be informed that since the power to reduce or waive damages is available at a different level the employers aggrieved by the PD Order can approach such competent authority for consideration after the damages are levied by inquiry authority and there is no need for inquiry authority to exercise the same power.

This issues with approval of ACC (Compliance).

Yours faithfully,

  
(Shyam Sunder)

REGIONAL P.F. COMMISSIONER (COMPLIANCE)

Copy to:

1. RPFC-I, RO, EPFO, Kanpur
2. Addl. CPFC, (UP & BR)
3. RPFC, NDC with a request to upload in the EPFO website





कर्मचारी भविष्य निधि संगठन

श्रम मंत्रालय भारत सरकार

**Employees' Provident Fund Organisation  
(Ministry of Labour, Govt. Of India)**

भविष्य निधि भवन, 14-भीकाजी कामाप्लेस, नई दिल्ली .110066

**BhavishyaNidhiBhawan, 14- BhikaijiCama Place, New Delhi – 110066**

[www.epfindia.gov.in](http://www.epfindia.gov.in), [www.epfindia.nic.in](http://www.epfindia.nic.in)

**WEB CIRCULATION**

No. C-III/Compliance-2001/Cir/E.I/

Date: 07.01.2015

To

All Regional PF Commissioners,  
In-Charge of Regional/Sub-Regional Offices.

31/509  
7 JAN 2015

**Subject : Issue of notices to defaulting establishments on initiation of proceedings under Section 7A/14B of the Employees' Provident Funds & Miscellaneous Provisions Act, 1952 through e-mail - regarding**

Sir,

A facility for Online Registration of Establishments (OLRE) has been provided for the employers to get themselves registered under the Employees' Provident Funds & Miscellaneous Provisions Act, 1952 (the Act) for Provident Fund code number.

2. Establishments are now required to register themselves online for PF code number. While registering themselves the employers are required to fill up Form 5A regarding particulars of all the branches and departments, owners, occupiers, directors, partners, manager or any other person or persons who have the ultimate control over the affairs of such factory or establishment in e-format. A provision has also been made in the Form 5A to register the e-mail id of the establishment. It has also been instructed that the existing establishments are also required to fill up Form 5A online.

3. As per the existing practice, whenever proceedings are initiated either under Section 7A of the Act for deciding applicability/assessment of dues against the defaulting establishments or under Section 14B of the Act for levy of damages, notices are issued to the establishments by post.

4. Now, since the employers provide their e-mail id in Form 5A, it has been decided that in addition to notices issued by post, notices shall also be sent in the e-mail id of the establishment.

5. This shall be strictly adhered to.

(This issues with the approval of CPFC.)

Yours faithfully,

(P. K. Udgate)

Additional CPFC-I (Compliance)

Copy to:

Additional CPFCs (Zones) for information.

(P. K. Udgate)

Additional CPFC-I (Compliance)



कर्मचारी भविष्य निधि संगठन  
(श्रम एवं रक्षण मंत्रालय, भारत सरकार)  
**EMPLOYEES' PROVIDENT FUND ORGANISATION**  
(Ministry of Labour & Employment, Govt. of India)  
मुख्य कार्यालय / Head Office  
भविष्य निधि भवन, 14-भिकाजी कामा प्लस, नई दिल्ली-110 066  
Bhavishya Nidhi Bhawan, 14, Bhikaiji Cama Place, New Delhi - 110 066.

No. C-III/110001/4/2(25)2014/HQ/WP/13496

Dated: 26.08.2014

To

All Addl. Central PF Commissioners,  
Zonal Office,  
All Regional PF Commissioners  
In-charge of Regional / Sub Regional Offices

**Subject:** Constitution of the Central Analysis and Intelligence Unit (CAIU) in EPFO.

**Reference:** Head Office letter No. C-III/110001/4/2(25)2014/HQ/WP/12193 dated 14.08.2014.

Sir,

Please refer to the above referred letter circulated on the subject cited above. In this connection, it is informed that the constitution of CAIU in EPFO has been modified wherein last Para '4' on page 4-5 and Para "Report Submission" on page 5 has been deleted while the rest of the part thereof remains the same. This is for your information and necessary action please.

Yours faithfully,

(Rajesh Bansal)  
Addl. Central PF Commissioner (HQrs)

Copy for information and necessary action to:-

1. FA & CAO
2. ACC (HQrs) (Shri V.N. Sharma)
3. All ACC-I & II
4. CVO
5. Director (NATRSS)
6. Director (Audit)
7. PS to CPFC - for information
8. DD (OL) for providing Hindi version
9. Web Administrator with a request to upload the same on the official website.

(Rajesh Bansal)  
Addl. Central PF Commissioner (HQrs)



## **CENTRAL ANALYSIS AND INTELLIGENCE UNIT**

### **ANNEXURE-I**

#### **OBJECTIVE**

To introduce an effective e-governance system in the compliance setup of EPF organization and ensure a transparent and effective service delivery mechanism for its stake holders. Creation of database for targeted monitoring of establishments to achieve an optimum level of coverage of establishments and membership by developing linkages with other enforcement agencies. To act as the nodal agency for facilitating compliance, tracking, monitoring and initiating default control measures under the provisions of the EPF & MP Act, 1952.

#### **HOW TO ACHIEVE**

The CAIU will be a combination of in-house expertise on the matters of compliance and information service division of EPFO. The functions of the agency will be in the following areas:

1. Collation of data collected from ESIC with the EPFO data and allotment of Labour Identification Number (LIN) in all cases where they are not already allotted after process of de-duplication.
2. Data collection and creation of database through liaison with other enforcement agencies like Labour Commissioner, ESIC, Income Tax, Central Excise and other State and Central Government agencies which may have actionable information. The CAIU will ensure development of suitable software which

will sift out relevant information from the database which may relate to the engagement of manpower in various sectors of the economy and develop models in consultation with domain experts.

3. Processing of information received from field and conducting survey, physical inspections, search and seizure of records, if required.
4. Selection of cases for initiating proceedings for determination of dues under section 7A of the Act as per guidelines issued by Head Office.
5. Centralized monitoring of all complaints and ensuring compliance action wherever actionable information has been revealed by the complainants.

### **STRUCTURE**

The CAIU will be located in the Headquarters office of EPFO. It will be headed by an officer of the level of Additional CPFC (I or II). The proposed structure initially will have four RPFC –II level officers who will be monitoring the compliance of establishments. The work distribution among the officers will be done on the basis of clustering of schedule heads provided under section 1 (3) of the Act. They will be assisted by Eight Assistant PF Commissioners. The APFCs will ensure day to day monitoring of key result areas like data collection, returns submission by field offices, monitoring of complaints and follow up matters relating to IT and any legal issues.



The work distribution may be modified depending on the work load in each sector of the economy.

There will be one post of DD (IS) and two post of AD (IS), four post of Programmers and twelve Data Processing Assistants who will provide IT assistance to the CAIU.

### **OPERATIONLIZATION**

The CAIU will be treated as a separate unit of the EPFO Headquarters. The required servers, computers and other IT equipments will be allotted to the unit. Initially the unit will start with the ECR data available in-house. The database of establishments covered in ESIC and other Labour departments in the Central Government as well as the State Government will be obtained and collated with the EPF data. The process of de-duplication in regard to the establishments shall be carried out with the assistance of the IS division to arrive at database of all establishments registered with Labour enforcement agencies of State and Central Government.

The CAIU will liaison with other departments/ministries of the State and Central government like Central Board of Secondary Education, Universities, Indian Railway, Food and Drugs Administration, Ministry of Steel and Mines, Ministry of Commerce, Ministry of Industries, Ministry of Micro, Small and Medium Industries, Ministry of Corporate Affairs etc and obtain available data in regard to all establishments registered with them.

Similarly, associations like Confederation of Indian Industry, PHD Chamber of Commerce, ASSOCHAM, Builder Association and such other organizations may also be contacted and persuaded to share the data in regard to the establishments as well as any other data which is relevant to engagement of the manpower.

This may require legislative changes in the EPF & MP Act, 1952, to empower EPFO for the collection of such information.

CAIU will also liaison with the trade unions at the national level as well as state level/district level to obtain the data in regard to the establishments as well as the manpower engaged by such establishments.

CAIU will also make necessary publicity in the print/electronic media to explain the aims and objectives of the CAIU to the general public at large and seek information in regard to the establishments, manpower engaged and establishments not complying with EPF Act.

CAIU will develop and provide, in public domain, modes for providing information and filing grievances like a dedicated webpage, mobile numbers, using of applications such as "whatsapp", drop box facility at field offices, etc.

CAIU will engage an agency for translation of complaints received in regional languages other than Hindi and English.

### **THE WAY AHEAD**

The creation and operation of the CAIU will be done strictly as per timelines allotted for each activity. The timelines are to be

strictly adhered to by all concern. The immediate steps to be taken in this respect are as under:

- i) Notifications of detailed working instructions on CAIU 22.08.2014
- ii) Uploading of Inspection Reports by field offices to EPF website (pending creation of central portal) 22.08.2014
- iii) Transfer of all existing pending complaints relating to compliance area from field offices to central database 30.08.2014
- iv) Launching of unified single website portal 01.09.2014
- v) Allotment of LIN to all establishments after de-duplication 08.09.2014
- vi) Pushing of list to field offices for inspection of establishments as per inspection scheme 15.09.2014

.....





Tele: 011-26172671  
Fax: 011-26189910

**कर्मचारी भविष्य निधि संगठन**  
(श्रम एवं रोजगार मंत्रालय भारत सरकार)  
**Employees' Provident Fund Organisation**  
(Ministry of Labour & Employment, Govt. of India)  
मुख्य कार्यालय/Head Office

भविष्य निधि भवन, 14 भीकाजी कामा भवन, नई दिल्ली 110066  
**Bhavishya Nidhi Bhawan, 14- Bhikaiji Cama Place, New Delhi – 110066**

**No. 7(1)2012/RCs Review Meeting/**

**Date: 06-08-2014**

All Additional CPFCs  
All Regional PF Commissioners  
All Assistant PF Commissioners

**Subject:- Guidelines for Quasi-judicial proceedings under Section 7A of the Employees' Provident Funds & Miscellaneous Provisions Act 1952 – regarding**

Sir,

Please refer to circulars of even number dated 30.11.2012 and 18.12.2012 on the captioned subject. The said issue has been reexamined and following revised guidelines are being issued for quasi-judicial proceedings under Section 7A of the Act.

2. **INITIATION OF INQUIRY** - Inquiries should be initiated only after actionable and verifiable information is placed for consideration of the compliance officers. Following could be the source information for initiation of enquiries: -

- a) A system generated report of probable and/or actual defaults based on receipts/remittances position of the establishments. Mapping of individual establishments regarding the amount remitted as well as the number of employees for whom the establishment is remitting the dues. (Remittance drop in excess of ₹ 10,000/- and 15%. Membership drop in excess of 50 members and 15%).
- b) Verifiable complaints or information received from general public at large may be another source for initiation of investigations and/or enquiry.
- c) Reports submitted by the Enforcement Officers.

3. The authorised officer conducting the inquiry shall examine the compliance history of the establishment viz.:-

- a) Amount remitted and the number of employees for whom the establishment is complying.
- b) On clicking the number of members, a randomly sorted list of names of members for whom compliance has been reported by the establishment during the month should be available. This list shall not contain either the PF account number or the PF balances of the members.

- c) Compliance history of the establishments, wherein, details such as pending quasi-judicial enquiries, pending recovery certificates, pending legal cases in respect of a particular establishment etc. be made available.
4. As far as possible the authorised officers shall follow following procedure:-
- a) Information received about default will be entered in a Central Register to be maintained on a central server.
  - b) On receipt of the information, notice shall be issued to the establishment enclosing the information on the basis of which the instant notice has been issued. If the establishment accepts the contents of the notice, then the matter may be verified for further necessary action.
  - c) If no response is received then the EO shall be advised to investigate and file a report in the matter. The investigation report of the EO shall be according to the "Form of Inspection Report" as issued vide EPF headquarters circular number C-III/110001/4/2(25)2014/Hqrs./Web Portal/10398 dated 30-07-2014 (at serial number 307 Office Orders/Circulars - 2014-15).
  - d) The Compliance branch shall examine the investigation report submitted by the EO and decide whether any case is made out for initiation of quasi-judicial enquiries.
  - e) If, on the basis of the report of the EO, it is decided that it is a fit case for initiation of enquiry under section 7A of the Act, then the report of the EO and observations there on of the Compliance branch shall be forwarded to the Assessing officer for initiation of an enquiry under section 7A of the Act.
  - f) Before recommending any case, the Compliance branch shall specifically verify, whether any report/record is available on the file indicating the status of the establishment, i.e. whether it is a closed establishment etc.
  - g) Complete investigation report should be available on record before initiation of inquiry is recommended by the Compliance branch. In cases where the complete report is not received the Compliance branch shall record reasons in writing for initiating the proposal for the said enquiry.
  - h) No inquiry shall be initiated unless a prima-facie case exists on the basis of the said report.
  - i) The Assessing Officers shall, on receipt of the report from Compliance branch open a separate file for conducting the quasi-judicial enquiry. This file shall start with the issue of summons for conducting enquiry under section 7A. The enquiry shall be deemed to have initiated only if proof of service of notice is available on record.
  - j) The 7A notice shall be accompanied by the documents on the basis of which an enquiry is proposed to be conducted. A copy of draft notice is attached (**Annexure A**) for reference.
  - k) The 7A summons shall be for a specific period i.e. the notice shall not be an open ended notice and a specific period of default should be compulsorily mentioned in the notice.
  - l) It should be compulsorily ensured that the legal process of serving of notice as per the Code of Civil Procedure is followed before any further action is initiated for conducting a formal enquiry.
  - m) If during pendency of 7A enquiry further default is noticed, either another summon be issued to the establishment for extending the period of current 7A enquiry or a fresh 7A enquiry be initiated.
  - n) During the enquiry a departmental representative should lead the case of the Department. This is a legal requirement and is to be compulsorily ensured.

5. The Act mandates that the orders issued by any assessing officer shall be a "speaking order". Accordingly, to ensure that the orders so issued, do not suffer from any procedural infirmity, an indicative structure of the assessment order is appended. **(Annexure B)**

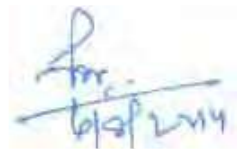
6. After completion of enquiry the 7A file shall not be merged with the enforcement file. Wherever, it is brought to the notice of the Additional CPFC (Zone) that an order passed under Section 7A of the Act is apparently against the intent of legislation, he shall cause investigation of the same. After such an investigation if the Additional CPFC (Zone) is prima facie satisfied, he shall order for filing appeal against such order before appropriate legal forum. The decision of the Additional CPFC (Zone) shall be final.

7. As regards multi-location establishments, the following shall be noted & observed:-

- a) In cases where such establishments are filing returns and remittances at a single location, the information of returns and remittances shall be made available to all the Regional Commissioners for the purpose of ensuring compliance under the Act.
- b) The Regional Commissioner under whose jurisdiction one or more than one unit of such multi - location establishments is physically situated shall cause periodic inspection of such establishments and make available the inspection report through a function of upload to be provided on epfindia portal.
- c) The compliance position as available from the return and remittances submitted by the establishment and as emerging out of actual inspection of the branch/branches of the establishment shall be available in a consolidated manner at one central location to the Regional Commissioner under whose jurisdiction such establishments are reporting compliance and who shall, if required, cause an assessment enquiry under relevant provisions of the Act.
- d) The inspection report of such establishments shall be according to the "Form of Inspection Report" as issued vide EPF headquarters circular number C-III/110001/4/2(25)2014/Hqrs./Web Portal/10398 dated 30-07-2014 (at serial number 307 Office Orders/Circulars - 2014-15).

(This issues with the approval of Central PF Commissioner)

Yours faithfully



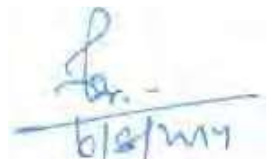
(P.K. Udgata)

ADDITIONAL CENTRAL PF COMMISSIONER-I

Enclosures: as above

Copy for information and necessary action to:-

1. CVO
2. ACC – HQ (VNS)
3. ACC – HQ (RB)
4. FA & CAO



(P.K. Udgata)

ADDITIONAL CENTRAL PF COMMISSIONER-I



To

\_\_\_\_\_

\_\_\_\_\_

**Notice under Section 7A of the Employees' Provident Funds and Miscellaneous Provisions Act, 1952.**

WHEREAS upon consideration of the records and documents particulars whereof are given in the **Schedule 'A'** hereunder written and also the report of the Enforcement Officer of this Department dated \_\_\_\_\_ I am prima facie of the opinion that in spite of applicability of the Provident Fund Act and the Scheme framed there under, \_\_\_\_\_ to \_\_\_\_\_ your \_\_\_\_\_ establishment \_\_\_\_\_ namely M/s \_\_\_\_\_

Code No \_\_\_\_\_, you have failed and neglected and/or evaded payment of Provident Fund dues in respect of the persons employed by you having Provident Fund membership / persons employed by you and have not been made member of Provident Fund in violation of the provisions of the aforesaid Act and the Scheme, particulars whereof are given below:-

**(Specify in short the nature and basis of claim based upon the report and the documents available)**

AND WHEREAS I, \_\_\_\_\_ Regional Provident Fund Commissioner / Assistant Provident Fund Commissioner am empowered under Section 7A of the Employees' Provident Funds and Miscellaneous Provisions Act, 1952 to make enquiry and determine the amount due from your establishment under the provisions of the Employees' Provident Funds & Miscellaneous Provisions Act, 1952, Employees' Provident Funds Scheme, 1952, Employees' Pension Scheme, 1995 and the Employees' Deposit Linked Insurance Scheme, 1976.

The undersigned proposes to make enquiry and determine the amount payable by your establishment upon consideration of the aforesaid documents, report and your response and reply if any, submitted by you.

You are hereby given a reasonable opportunity of representing your case as provided under Section 7A(3) of the Act and you are requested to show cause and/or give explanation and/or submit your representation, response and reply to this notice along with all the relevant documents and particulars upon which you intend to rely upon for the judicious determination of the amount payable by your establishment within days.

The copies of the report dated (dd/mm/yyyy) of Mr./Ms \_\_\_\_\_, the Enforcement Officer of Provident Fund Department which is self explanatory, and also the documents/records referred to, in Schedule 'A' hereunder are enclosed herewith to give you an opportunity for representing your case and to enable you to give your representation, response and reply to this notice for judicious inquiry and fair determination of the subject matter of this notice.

Please take notice that if you fail to give your representation and/or reply to this notice, I shall proceed to hold the enquiry in the aforesaid matters, ex-parte, on merits and order shall be passed upon consideration of the available records and documents determining the amount due from your establishment under the provisions of the Employees' Provident Fund & Miscellaneous Provisions Act, 1952, Employees' Provident Fund Scheme, 1952, Employees' Pension Scheme, 1995 and Employees' Deposit Linked Insurance Scheme, 1976, hereunder.

Issued under my seal and signature at this date of (dd/mm/yyyy)

Regional / Assistant Provident Fund Commissioner

**Schedule 'A'**

- 1.
- 2.
- 3.
- 4.
- 5.

Encl : Documents referred to in Schedule 'A' and the Inspection Report referred to above.

**STRUCTURE OF THE ASSESSMENT ORDER (PARA 6)**

| <b>Sub-Head</b>                                                                | <b>Details</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
|--------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Basic Introduction of the establishment</b>                                 | This part may include basic introduction of the establishment like Code No. etc,                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| <b>Background of the 7A</b>                                                    | This part may include basic reasons for initiation of 7A and details of specific documents summoned at the time of initiation of enquiry.                                                                                                                                                                                                                                                                                                                                                                                                             |
| <b>Appearance During the enquiry</b>                                           | This part may include persons appearing on behalf of the establishment, appearing on behalf of the department and complainant, if any. This part should also include only the specific dates of hearing. Thus a bare perusal of the order would show the number of opportunities provided to the establishment as well as appearances during the enquiry. The service of summons to the establishment/complainant should be specifically recorded by the Assessing Officer in this part of the enquiry report.                                        |
| <b>Records produced during the enquiry</b>                                     | This part may mention in detail a list of records produced by the establishment /E.O./Complainant during the enquiry. At the same time, if complete set of records are not produced by the establishment/complainant as summoned, a comparative summary of records not produced despite summons/notices can be mentioned in this part.                                                                                                                                                                                                                |
| <b>Information as per records produced</b>                                     | This part of the assessment order may only give statement of facts (and not opinion/analysis etc) as appearing in the records produced by the establishment/complainant/ union/E.O. etc.                                                                                                                                                                                                                                                                                                                                                              |
| <b>Submission of the establishment:</b>                                        | This part may elaborately record submission made by the establishment during the enquiry.                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| <b>Submission of the Complainant, if any</b>                                   | This part may include submission of the complainant, if any, in detail                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| <b>Submission of E.O</b>                                                       | This part may include details of view point of the EPFO represented through E.O.                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| <b>Deliberation recorded in the Daily Order Sheet</b>                          | Any specific event/issue recorded in the Daily Order Sheet or any serious development during the proceeding should find mention in this part, so as to highlight the intent of the establishment/complainant before any Appellate Forum/Court, if required. However, normal routine developments like adjournments, next date etc should not be recorded in this part.                                                                                                                                                                                |
| <b>Rule Provision</b>                                                          | This part of the order may specifically contain rule provisions as appearing in Act/scheme. No analysis of rule provision should be mentioned in this part.                                                                                                                                                                                                                                                                                                                                                                                           |
| <b>Analysis of facts/evidence vis-a-vis rule provisions</b>                    | This part may contain the analysis of the facts and evidences produced before the assessing officer vis-a-vis relevant rule provision quoted in preceding paragraphs. This part may deal with each and every aspect of facts/evidence raised by either establishment/E.O or complainant if any. The reasons for reaching a particular conclusion may be specifically highlighted in this part. The reasons for accepting/rejecting either establishment or E.O. or complainant's submission may also find specific mention in this part of the order. |
| <b>Finding based upon analysis of facts/evidence vis-a-vis Rule provisions</b> | This part may record findings of the Assessing Officer with respect to each issue raised during the proceeding. Since the basis of arriving at any conclusion is already mentioned in the preceding part, repetition of the same may not be required at this stage.                                                                                                                                                                                                                                                                                   |
| <b>Order</b>                                                                   | This part may contain details of the final order i.e. either assessment or decision regarding applicability. In case of assessment, however, since the enquiry period is specific, in order to avoid any kind of confusion, the amount determined must be mentioned as A. total amount due for the period, B. amount already deposited and C. residual amount due from the establishment. However, it is only the residual amount that should be reflected as Amount due from the establishment.                                                      |



कर्मचारी भविष्य निधि संगठन  
श्रम एवं रोजगार मंत्रालय, भारत सरकार  
**Employees' Provident Fund Organisation**  
**Ministry of Labour & Employment, Government of India**  
मुख्य कार्यालय / Head Office  
भविष्य निधि भवन, 14- भीकाजी कामा प्लेस, नई दिल्ली - 110066  
Bhavishya Nidhi Bhawan, 14-Bhikaji Cama Place, New Delhi-110066  
[www.epfindia.gov.in](http://www.epfindia.gov.in)

No. Conf.54(1)2013-14/CPFC/Tour Reports

Dated: 16<sup>th</sup> July 2014

To

The Additional CPFCs – in- charge of Zones  
The Regional PF Commissioners – in-charge of ROs/SROs

**Subject: Establishment Master cleaning in EPFO – regarding.**

The issue of establishment master cleaning has been discussed repeatedly in the review meetings of Zonal ACCs as well as the review meetings attended by officers-in-charge of various Regional and Sub-regional offices during last 6-7 months. This issue has also been discussed with senior officers meeting held regularly at EPF headquarters. The issue of marking establishments as closed was an agenda for discussion in the review meeting of Zonal ACCs held on 6<sup>th</sup> & 7<sup>th</sup> March 2014 and then again on 13<sup>th</sup> & 14<sup>th</sup> June 2014. Committees of Zonal ACCs constituted to examine this issue recommended that in all the cases where only code number exists and there is no transaction, no pending assessment inquiry and no complaint pending in office the establishment be marked as closed after the APFC (Enforcement) gives reasoned order in the file. It was also recommended that list of all such establishments be displayed on EPFO website (national and regional websites) Further the establishments marked as closed and de-registered after the above activity be placed in public domain through newspaper advertisement, web portal and reference to employee trade unions.

2. The cleaning of establishment master data is essential for ensuring that:-

- Actual numbers of live establishment are identified. (For determination of exact workload of an office).
- Identification and rectification of negative/excess entries in establishment DCBRs.
- Identification and correct classification of unclassified challans (e.g. 999 receipts).
- Exemption status of each of the establishments in respect of PF, Pension, EDLI is correctly recorded. This is directly linked to the contribution being remitted by the establishments. Further the exemption status is also crucial for the smooth



functioning of portals i.e. IT return for exempted establishments, OTCP, Compliance MIS etc.

- e) Statutory rate of contribution is correctly captured. (For monitoring of compliance)
- f) The correct industry code and industry type is captured. This will ensure not only correct reporting but also allow comparison with data bases of other Government organisations for identifying coverage gaps.
- g) Correct recording of establishment status i.e. whether the establishment is live/closed/under liquidation/under BIFR for facilitating necessary compliance action.
- h) It will facilitate not only proper service to these establishments and their members but will also allow proper deployment of organisational resources in term of manpower and money for servicing such establishments.

3. An essential attribute of cleaning of establishment master is cancellation of code numbers issued to establishment who are no longer operational. The establishments are allotted code numbers in pursuance of administrative instructions and for facilitating the establishments in complying with the statutory provisions. There being no provisions in the Act and/or Scheme for allotment of code numbers to establishments, it has emerged that de-registration and decoding of establishments should be done through administrative order only.

4. **Following record needs to be verified and updated from the records available in office:-**

- i. **Coverage Section** (Section of the Act under which the establishment is covered i.e. - Section 1(3) (a), Section 1(3) (b), Section 1(4), Section 2A).
- ii. **Establishment status, i.e. Ownership type viz. –**
  - a Central Government controlled / Central Government department/ State Government controlled / State Government department/ Local bodies/Municipal Corporations/ Cooperative societies/ Joint Stock Companies/ Partnership firms/ Proprietorship firms/ Registered society/ Firms run by Trust/ Central PSUs/ State PSUs /Autonomous bodies/statutory bodies / Private Ltd Company/NGO.
  - b **Others – Ideally there should be no entry under this category. This category is to be used ONLY IN EXCEPTIONAL CIRCUMSTANCES and the reasons should be recorded for the same by the concerned APFC (Compliance) in the file.**
- iii. **Industry Code** - Check and verify that correct industry code is mentioned. The entries (no. & %) in the “others” category should ideally be nil. In any case “others” may be used ONLY IN EXCEPTIONAL CIRCUMSTANCES. Certain coverages made under Section 1(4) of the Act may be required to be classified as “others”.
- iv. **Statutory rate of contribution** (either 12% or 10% or no other- to verify and certify all cases of other than 12%).
- v. **Exemption status.-** The status of exemption of the establishment from the EPF Scheme 1952, EPS 1995 and EDLI 1976 has to be correctly marked in the establishment

Master. Possible combinations of markings against the establishment should be either - (UUU, EUU, EUE, UUE, UEE, UEU, EEU, EEE) in respect of EPF/EPSE/EDLI.

vi. Fill & verify address details of establishments i.e. Address Line1/ Address Line 2 / City / District/ State/ PIN Code /Country.

vii. Fill and verify the Enforcement Group & Enforcement Clerk (Series 500 in Application software) and Inspectorate Circle (Series 800 in Application software).

b) Following record would require filed level inspection and verification:-

- i. Establishment status- (Closed/Working/Liquidation/BIFR)
- ii. Actionable status (100-109) - may require inspection.

5. The cleaning of Establishment Masters has to be divided into three distinct periods i.e.:-

- a) Establishments where code numbers were issued prior to 01.04.2009.
- b) Establishments where code number were issued during 01.04.2009 and 31.03.2014.  
Above classification is being made because the new Application Software had become operational w.e.f. financial year 2009-2010 onwards.
- c) All establishments which have been issued code number on or after 01.04.2014.

6. For assisting filed offices in the data cleaning, an MIS Dashboard has been launched on 2<sup>nd</sup> July 2014 (circular no. 234, Office Circulars 2014-15). The said dashboard contains a downloadable excel file of the establishment master of each office. This may be referred in completing the task as at paras 4 & 5 above.

7. In view of the above, following directions are being issued:-

**A. Establishments registered before 01-04-2009**

- i) All establishments in respect of which some competent authority (courts/appropriate Government) has declared that such establishment or class of establishments do not come under the purview of the Act, e.g. Government schools which have been issued a code number in various States such as Bihar, Rajasthan etc. be de-registered and decoded.
- ii) All sub-code numbers issued and no longer in use and having no member accounts should be de-registered and decoded.
- iii) All cases of merger/amalgamation of establishments where one establishment has merged into another establishment or where merger of two or more establishments has resulted into creation of a new entity, the code number of previous establishment (s) shall be de-registered and decoded, e.g., Hotel Janpath which has now merged into ITDC.
- iv) Establishments already marked as closed after report of the EO be de-registered and decoded.

- v) Establishments where some remittance was made and where all member accounts have been finally settled, there is no complaint, no pending inquiry, shall be de-registered and code number cancelled after getting report of the concerned EO in the format appended as Annexure to this letter.
- vi) All establishments where no contribution has been received till date, there is no member account and no enquiry is pending for disposal and there is no ECR registration, be de-registered and their code number cancelled after getting report of the concerned EO in the format appended as Annexure to this letter.
- vii) Cases of such establishments where code number was issued after receipt of coverage application along with the demand draft, there have been no subsequent transaction either of return or payment thereafter, no complaint and no assessment inquiry and where annual accounts were updated by apportioning the amount received through first demand draft equally between the persons whose names were mentioned in coverage proforma be deregistered and decoded. In such cases also report from EO be taken in the format prescribed as Annexure.

**B. Establishments registered between 01-04-2009 and 31-03-2014**

- i) Directions as at 'A' above shall apply to all such establishments. However, in such cases, the establishments will not be decoded but will be marked as closed as was being done earlier.
- ii) The establishments which were complying prior to launch of ECR but have not registered under ECR shall be mandatorily inspected and brought under compliance fold or decoded/closed as per instructions in this circular.

**C. Establishments registered on or after 01-04-2014**

- i) Establishments in respect of whom no compliance has been received continuously for a period of six months, their EPF code number shall be de-activated and establishment marked as **Closed**. Such establishments shall be earmarked for mandatory inspection.
- ii) The establishments which have registered under ECR but are not complying regularly shall be mandatorily inspected and brought under compliance fold.
- iii) Establishments' compliance position shall be monitored on month-to-month basis and in case of default and/or delayed remittance necessary compliance action shall be initiated immediately.

8. Monitoring of compliance position of the establishments and the establishments master cleaning exercise shall be mandatorily reviewed in the monthly Compliance meeting in each office and the progress recorded in minutes. The minutes of these meetings shall be mailed to two next higher levels in hierarchy as directed earlier.



9. All establishments whose code numbers are cancelled shall be referred to Central Analysis and Intelligence Unit (CAIU) for investigation and report by collating data from other Government sources such as Registrar of Companies in respect of Companies, Income Tax Department in respect of all firms.

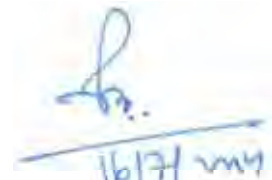
10. As on 01-07-2014, 1.61 lac establishments are marked as inoperative. These establishments are having 62.84 lac accounts. These establishments need to be verified to check whether any remittance is being received in respect of such establishments. Further, the member balances in such establishments need to be verified to ascertain whether any "operative member accounts" are there and also to ascertain the range of member balance accumulations.

11. All existing establishments shall also mandatorily require to register through On-line registration of Establishments (OLRE) portal, the exercise is likely to make the establishment master clean in respect of all complying establishments.

12. All establishments whose code numbers are cancelled will be shown on EPF website as a separate searchable list. Further, in the establishment search enquiry, their status shall be shown as "EPF Code Number cancelled". If at a later date it is found that any such establishment whose code number was cancelled was found to be in existence, it shall be subjected to assessment enquiry under Section 7A of the Act and if required issued a new EPF code number after such enquiry from the date the Act is found applicable after the enquiry under Section 7A of the Act.

13. These instructions are being issued for strict compliance and time bound action. All field offices are directed to examine the instructions and provide feedback on further refinement in the process. Phase-II of the instructions in this regard shall be issued after analyzing the feedback received from the field offices.

Yours sincerely,



(P.K. Udgata)

Addl. Central PF Commissioner (Compliance)

Enclosure: As above.

**FORMAT**

I, **(NAME)** **\_(Designation)** have surveyed the **(name and address of the establishment)** on **(dd/mm/yyyy)**. After physical inspection I have identified that the establishment is not operating on the address available on records with EPFO. The same has been confirmed from neighbourhood and witness of following two persons affirming the same is appended.

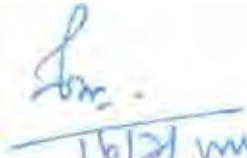
| Sl. No. | Name | Mobile No. | Verification Document<br>{PAN Card/Aadhar/Voter ID/<br>EPIC/Others (Please specify)} |
|---------|------|------------|--------------------------------------------------------------------------------------|
| 1.      |      |            |                                                                                      |
| 2.      |      |            |                                                                                      |

I recommend that the establishment may be marked as closed in the establishment master by the compliance branch.

(Name and Signature of EO)

Copy for information an necessary action to :

1. FA & CAO
2. ACC HQ (VNS)
3. ACC HQ (RB)
4. CVO
5. All ACCs Grade-I
6. All RPFCs/APFCs
7. PS to CPFC for information
8. DD(OL) for providing Hindi version



16/2/2019

(P.K. Udgata)

Addl. Central PF Commissioner (Compliance)





**कर्मचारी भविष्य निधि संगठन  
(श्रम मंत्रालय भारत सरकार)**

**Employees' Provident Fund Organisation**

**(Ministry of Labour, Govt. Of India)**

**मुख्य कार्यालय/Head Office**

**भविष्य निधि भवन, 14-भीकाजी कामा प्लेस, नई दिल्ली-110066**

**Bhavishya Nidhi Bhawan, 14- Bhikaji Cama Place, New Delhi – 110066**

**www.epfindia.gov.in ; www.epfindia.nic.in**

**NO.C-III/110001/4/3(71)Misc./2013/DL/**

**Date : 08.10.2013**

**To**

**- 8 OCT 2013**

**All Regional P.F. Commissioners  
In-Charge of Regional/Sub Regional Offices**

**Subject : Compliance under the EPF & MP Act, 1952 in respect of  
the employees engaged by or through contractors.**

**Sir,**

A number of complaints are received by the organization on non-extension of social security benefits in the form of provident fund, pension and insurance as envisaged under the Employees' Provident Funds and Miscellaneous Provisions Act, 1952 and Schemes framed there under especially to the casual, contractual and outsourced employees working in different establishments, Government Departments, Undertakings and Autonomous bodies, both Central and State. Accordingly, the very purpose of this social legislation is defeated.

2. The word employee has been defined to mean any person who is employed for wages in any kind of work, manual or otherwise, in or in connection with the work of an establishment and who gets his wages directly or indirectly from the employer, and includes any person employed by or through a contractor in or in connection with the work of the establishment. The Act does not differentiate between casual, contractual and regular employees.

3. Various Government Departments, Undertakings and Autonomous bodies, both Central and State, outsource the activities like watch-ward, housekeeping, data-entry etc. to different agencies and contractors and the persons engaged by such agencies and contractors to execute the above activities are not extended due benefits of provident fund, pension and insurance. This increases the number of grievances to the organization.

4. Paragraph 30(3) of the Employees' Provident Funds Scheme, 1952 provides that it shall be the responsibility of the principal employer to pay both the contribution payable by himself in respect of the employees directly employed by him and also in respect of the employees employed by or through a contractor and also administrative charges. This is not enforced in true spirit by various Government Departments, Undertakings and Autonomous bodies, both Central and State. Wherever enforced, there is no proper scrutiny at the time of the payment of their bills as to whether the agencies and contractors are depositing contributions due from them under the Act and the Schemes framed thereunder which is commensurate with the wages paid to such out sourced staff.

5. Instances have come to notice that the placement agencies and security agencies, which provide guards and other personnel to Government Departments, Undertakings and Autonomous Bodies often take employer's contribution on full wages from these employers and then bifurcate the wages of the personnel provided by them in to basic wages and various other allowances which do not form part of basic wages to evade the provident fund. This diversion of residual employer's contribution tantamount to pilfering of provident fund money. Thus, Governments Departments, Undertakings and Autonomous Bodies, which settle the periodic bills of agencies and contractors, unwillingly become a party to this pilferage.

6. Time has come to work on such issues of concern and to converse and inform these Government Departments, Undertakings and Autonomous Bodies about their role while engaging the various agencies and contractors and while settling their monthly bills with respect to deployment of such personnel.

7. In this background, all the Regional Provident Fund Commissioners In-Charge of Regional/Sub Regional Offices are advised to start a dialogue with the Government Departments, Undertakings and Autonomous Bodies functioning under your jurisdiction about their duties and responsibilities while engaging personnel for watch-ward, housekeeping, data-entry etc. through various agencies and contractors to check such pilferage of provident fund monies. The Officers-In-Charge are also advised to collect the details of personnel engaged through the various agencies and contractors from these Government Departments, Undertakings and Autonomous Bodies and check with the records available in their own offices about such agencies and contractors. Wherever pilfering of provident fund money is noticed, immediate action shall be initiated against the erring agencies and contractors to check such unhealthy practices harming the interest of the workers.

8. The Regional Provident Fund Commissioners In-Charge of Regional/Sub Regional Offices are advised to issue notices to the Government Departments, Undertakings and Autonomous Bodies functioning under your jurisdiction for arresting such unfair practices, which various

agencies and contractors adopt while supplying personnel. Enforcement Officers may be detailed to educate these Government Departments, Undertakings and Autonomous Bodies about the duties and responsibilities of the principal employers. They shall also be advised to ensure that :

- a) all the agencies and contractors to whom the work is outsourced are covered under the Act;
- b) all the personnel supplied by the agencies and contractors are extended benefits of provident fund etc. ; and
- c) all the personnel engaged get eligible benefits commensurate to the wages they get.

9. The Government Departments, Undertakings and Autonomous Bodies may be advised to watch the compliance status of various agencies and contractors to the provisions of the Act and the Schemes framed thereunder on the '**establishment search option**' on the official website of EPFO [www.epfindia.com](http://www.epfindia.com).

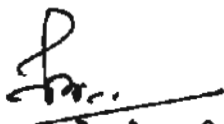
10. The specimens of draft letters to (a) various Government Departments/Undertakings/ Autonomous Bodies and (b) Big establishments already covered and deploying more than 500 employees/workers are enclosed herewith for use at your end.

11. A presentation on the role of Principal Employers and Contractors which has been attempted at this end is enclosed herewith for wide publicity for this purpose.

(This issues with the approval of CPFC.)

Enclosures : As above.

Yours faithfully,

  
8/10/23  
(P.K.UDGATA)

**Additional C.P.F.C. (Compliance)**



**DRAFT-I**

**FOR MINISTRIES AND GOVERNMENT DEPARTMENTS NOT COVERABLE  
UNDER THE ACT AND GOVERNMENT UNDERTAKINGS AND  
AUTONOMOUS BODIES COVERED UNDER THE ACT.**

**EMPLOYEES' PROVIDENT FUND ORGANISATION**

.....

.....

No.

Date:

To

.....

.....

.....

**Subject : Compliance under the EPF & MP Act, 1952 In respect of  
the employees engaged by or through contractors.**

Sir,

You may be aware that Employees' Provident Fund Organisation administers the Employees' Provident Funds and Miscellaneous Provisions Act, 1952 and the Schemes framed thereunder which aim to provide social security in the form of Provident Fund, Pension and Insurance to all the employees who are employed for wages in any kind of work, manual or otherwise, in or in connection with the work of an establishment and who get wages directly or indirectly from the employer and which includes any person employed by or through a contractor in or in connection with the work of the establishment and apprentices engaged (other than the apprentice under the Apprentice Act, 1961).

2. I am sure that for all the direct employees of your esteemed Ministry/Department/Undertakings/Autonomous Bodies, such benefits are in place under the relevant Government Rules. However, we understand that activities like watch and ward, house-keeping, data-entry etc. are outsourced to agencies and contractors. At times, the workers engaged by these agencies and contractors are deprived of Provident Fund, Pension and Insurance. Even if they receive such benefits, those do not commensurate with the wages they earn every month. Similarly, various agencies and contractors often receive employer's contribution on full wages from Ministries/Government Departments/Undertakings/Autonomous Bodies but while extending the provident fund benefits etc. to their workers, these agencies bifurcate the wages into basic wages and various other allowances, which are not within the ambit of basic wages, to evade the provident fund. This is nothing but subterfuge of wages. As a result, the poor workers are deprived of their legitimate share of provident fund etc. Further, the residual employer's contribution which these agencies do not pass on to their workers tantamounts to pilfering of provident fund money. Thus, Ministries and Governments Departments which settle the periodic bills of agencies and contractors unknowingly become a party to this pilferage. With your intervention it can be ensured that all such employees do get social security benefits.

3. While awarding various contracts, it may please be ensured that the agencies and contractors shall have Provident Fund Code Number and all the contract employees deployed by them are enrolled as members of Provident Fund. In this regard, your kind attention is drawn to Paragraph 30(3) of the Employees' Provident Fund Scheme, 1952 which provides that it shall be the responsibility of the principal employer to pay both the contributions payable by him in respect of the employees directly employed by him and also in respect of the employees employed by or through a contractor.

4. A provision has been made on the Official Website of EPFO, [www.epfindia.gov.in](http://www.epfindia.gov.in), on the "**establishment search option**" to verify as to whether the agencies and contractors having Provident Fund Code numbers are regularly depositing Provident Fund contributions every month in respect of all the employees deployed by them. The above facility may be utilized to check the compliance position of the agencies and contractors to the provisions of the Act and the Schemes framed thereunder to which the contracts are awarded by your Ministry/Department/Undertaking/Autonomous Body. Wherever the contractors do not have any Provident Fund Code number or if any non-compliance by any agency or contractor is noticed, the details of such establishments may please be informed to this office so that appropriate action can be initiated and poor workers' interest is protected.

5. The Enforcement Officer of this Office shall be visiting your Ministry/Department/Undertakings/Autonomous Bodies to further apprise you of the methodology. The opportunity will also enable to get the status of compliance with regard to contract employees engaged by your contractors.

6. You may appreciate the concern of this organisation in extending social security in the form of Provident Fund, Pension and Insurance to all the workers including contract workers. I am sure that with your support we will be able to serve the workforce in a better way.

Your cooperation in this regard will be highly solicited.

Yours faithfully,

(.....)

Regional PF Commissioner



**FOR MAJOR PRIVATE ESTABLISHMENTS (BOTH UN-EXEMPTED &  
EXEMPTED) COVERED UNDER THE EPF & MP ACT, 1952 AND HAVING  
MEMBERSHIP OF 500 AND ABOVE.**

**EMPLOYEES' PROVIDENT FUND ORGANISATION**

No.

Date:

To

.....  
.....  
.....

**Subject : Compliance under the EPF & MP Act, 1952 in respect of employees engaged by or through the Contractors.**

Sir,

You may be aware that Employees' Provident Fund Organisation administers the Employees' Provident Funds and Miscellaneous Provisions Act, 1952 and the Schemes framed thereunder which aim to provide social security in the form of Provident Fund, Pension and Insurance to all the employees who are employed for wages in any kind of work, manual or otherwise, in or in connection with the work of an establishment and who get wages directly or indirectly from the employer and which includes any person employed by or through a contractor in or in connection with the work of the establishment and apprentices engaged therein (other than the apprentice under the Apprentice Act, 1961).

2. You have been regularly complying with the provisions of the Act in respect of your direct employees under EPF Code no. .... . However, activities like watch and ward, house-keeping, data-entry etc. you must have outsourced to agencies and contractors. At times, the workers engaged by these agencies and contractors are deprived of Provident Fund, Pension and Insurance. Even if they receive such benefits, those do not commensurate with the wages they earn every month. Similarly, various agencies and contractors often receive employer's contribution on full wages from you but while extending the provident fund benefits etc. to their workers, these agencies bifurcate the wages into basic wages and various other allowances, which are not within the ambit of basic wages, to evade the provident fund. This is nothing but subterfuge of wages. As a result, the poor workers are deprived of their legitimate share of provident fund etc. Further, the residual employer's contribution which these agencies do not pass on to their workers tantamounts to pilfering of provident fund money. Thus, while settling the periodic bills of agencies and contractors which you engage, you become a party to this pilferage unknowingly. Your intervention in this regard will ensure that all such employees do get social security benefits.

3. While awarding various contracts, it may please be ensured that the agencies and contractors shall have Provident Fund Code Number and all the contract employees deployed by them are enrolled as members of Provident Fund. In this regard, your kind attention is drawn to Paragraph 30(3) of the Employees' Provident Fund Scheme, 1952 which provides that it shall be the responsibility of the principal employer to pay both the contributions payable by him in respect of the employees directly employed by him and also in respect of the employees employed by or through a contractor.

4. A provision has been made on the Official Website of EPFO, [www.epfindia.gov.in](http://www.epfindia.gov.in), on the "**establishment search option**" to verify as to whether the agencies and contractors having Provident Fund Code numbers are regularly depositing Provident Fund contributions every month in respect of all the employees deployed by them. The above facility may be utilized to check the compliance position of the agencies and contractors to the provisions of the Act and the Schemes framed thereunder to whom the contracts are awarded by you. Wherever the contractors do not have any Provident Fund Code number or if any non-compliance by any agency or contractor is noticed, the details of such establishments may please be informed to this office so that appropriate action can be initiated and poor workers' interest is protected.

5. The Enforcement Officer of this Office shall be visiting your establishment to ascertain the status of compliance in respect of the contract employees. You are requested to handover the details of the outsourced work together with the name and address of the contractor in the following format for verification so as to ensure compliance.

| Sl. No. | Name of Contractor outsourced Agency, Address | Work Order(s) no. and Date and duration of work | Nature Of work | No of employees | Wages paid | PF Code No. If any | Name of PF Office where PF and allied dues are deposited by contractor. |
|---------|-----------------------------------------------|-------------------------------------------------|----------------|-----------------|------------|--------------------|-------------------------------------------------------------------------|
|         |                                               |                                                 |                |                 |            |                    |                                                                         |

6. I am sure that your esteemed organisation is interested in compliance of laws of land and therefore, you will give full support to the Enforcement Officer of the department. You will give us no occasion to resort to other statutory provisions existing in Employees' Provident Funds and Miscellaneous Provisions Act, 1952 and Schemes framed thereunder. Our joint venture is that contract/outsourced employees get the social security benefits to which they are entitled to and to which your organisation is committed.

Yours faithfully

(.....)  
Regional PF Commissioner



**कर्मचारी भविष्य निधि संगठन**  
(श्रम मंत्रालय भारत सरकार)  
**Employees' Provident Fund Organisation**  
(Ministry of Labour, Govt. Of India)  
मुख्य कार्यालय / Head Office

THROUGH WEB CIRCULATION ONLY

भविष्य निधि भवन, 14-भीकाजी कामा प्लेस, नई दिल्ली-110066  
Bhavishya Nidhi Bhawan, 14- Bhikaji Cama Place, New Delhi - 110066  
[www.epfindia.gov.in](http://www.epfindia.gov.in) ; [www.epfindia.nic.in](http://www.epfindia.nic.in)

No. Coord./5(16)2009/Misc.

Date: 11 SEP 2012

To

All Addl. Central PF Commissioners  
All Regional PF Commissioners  
In- charge of the Regions/SROs

**Sub: Arrangements for smooth exercise of powers under Section 7A, 7B, 7C and 14B of the EPF & MP Act, 1952-Administrative scrutiny of the orders-Instructions-reg.**

Sir,

This is with reference to Head Office circular No. (1)RRC.II/28(31)07/53677 to 53777 dated 17<sup>th</sup> October, 2007 and (2) Coord/5(16)2009/Misc/3380 dated 29<sup>th</sup> October, 2009 (copies enclosed) assigning original jurisdiction for conducting of proceedings under Section 7A and 14B of Employees' Provident Funds & Miscellaneous Provisions Act, 1952 (EPF & MP Act, 1952) on the basis of members' strength of the establishment. The details are given below:

| Sl. No | Establishment's member strength           | Original Jurisdiction |             |
|--------|-------------------------------------------|-----------------------|-------------|
|        |                                           | In ROs                | In SROs     |
| 1      | Establishment with members up to 250      | APFC                  | APFC        |
| 2      | Establishment with members 251 to 1000    | RPFC-II               | RPFC-II/OIC |
| 3      | Establishment with members 1001 and above | RPFC-I                |             |

2. During the recent performance review meeting held at Chandigarh on 09.08.2012, at Hyderabad on 14.08.2012, at Mumbai on 24.08.2012 and at Kolkata on 31.08.2012, the Regional Provident Fund Commissioner-In-Charge of the Regions expressed practical difficulties in disposing the proceedings under Section 7A and Section 14B of the EPF & MP Act, 1952 due to shortage / non- availability of required officers particularly in the cadre of Assistant PF Commissioners.

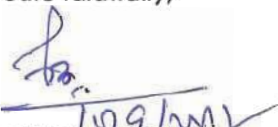


3. It was also pointed out that there is no scope available in the circular issued by Head Office on the subject for changing the original jurisdiction for conducting proceedings under Section 7A and Section 14B of the Act.

4. After detailed discussions, it was decided to authorize RPFC-In-Charge of the Regions to assign jurisdiction beyond the original jurisdiction to officers working under them to conduct cases under Section 7A and Section 14B where there is problem of shortage of officers.

5. Accordingly, RPFCs-In-Charge of the Regions are hereby authorized to assign the work of conducting cases under Section 7A and Section 14B to officers working under them beyond the original jurisdiction after reasons to be recorded in writing.

Yours faithfully,



(P.K.UDGATA)

Encls: as above

**Addl. Central P.F. Commissioner (Compliance)**

**Copy to :**

1. Financial Adviser and Chief Accounts Officer / All Additional Central PF Commissioners in Head Office / CVO / Chief Engineer
2. Director Audit / Zonal Audit Officers
3. Director NATRSS/All ZTIs
4. All RPFCs / APFCs in Head Office
5. RPFC NDC for information and web upload
6. All Deputy Directors (Vigilance)
7. Hindi cell for Hindi translation



(P.K.UDGATA)

**Addl. Central P.F. Commissioner (Compliance)**



कर्मचारी भविष्य निधि संगठन  
(श्रम एवं रोजगार मंत्रालय, भारत सरकार)  
**EMPLOYEES' PROVIDENT FUND ORGANISATION**  
(Ministry of Labour & Employment, Govt. of India)  
मुख्य कार्यालय / Head Office  
भविष्य निधि भवन, 14-भीकाजी कामा प्लेस, नई दिल्ली-110 066.  
Bhavishya Nidhi Bhawan, 14, Bhikaiji Cama Place, New Delhi - 110 066.

No. C-III/4(208)2011/HQ

Dated: 11.1 अक्टूबर 2011  
OCT 2011

To

All Addl. Central P.F. Commissioners (Zones)  
All RPFs (In - Charge of Region/SRO)

**Sub: - Review of long pending 7A/14B cases and initiation of coercive action against defaulting establishments - observations of the Committee on Petitions.**

Sir,

Attention is invited to various circulars containing instructions for processing cases initiated u/s 7A/7B/7C/14B and initiation of penal action/filing of prosecution against those establishments who commit default in submission of statutory returns/remittance of dues.

On review of the position reflected in the D.O. Narrative on Compliance Parameters, it has been observed that in a large number of cases proceedings u/s 7A are continuing for more than one year or two. This shows that desired focused and sincere efforts are yet to be taken in order to liquidate the pendency in concluding the proceedings launched u/s 7A/7B/7C/14B.

Likewise in cases where compliance is not achieved under various provisions of the Act and dues remain unrealized despite all efforts, coercive action like prosecution u/s 14 of the EPF & MP Act and filing FIR u/s 406/409 of Indian Penal Code becomes necessary. With half of the financial year left in hand, requirement for extra efforts and fixing accountability to achieve the target has become essential in order to meet the deadline. Hence, steps should be taken to ensure that all 7A/7B/7C/14B cases pending for more than one year are disposed off before 31.12.11. For this purpose monitoring mechanism to watch the development in 7A/14B matters as well recovery matters should be strengthened by conducting the monthly review. Therefore, following directions are reiterated to achieve the targets expecting due participation and responsibility of all concern:

**Initiation of disposal of 7A/14B cases**

- (i.) Proceedings initiated u/s 7A/14B of the EPF & MP Act should be concluded within a specified time. Cases where the employers have committed defaults after giving regular compliance for some time, proceedings initiated after a long gap of time and allowing these to continue for a considerable long time by granting too many adjournments should be avoided.
- (ii.) Normally all hearings u/s 7A & 14B cases should be completed within 3 months. In any case at the end of the financial year, no case should be pending for more than six months. Where the inquiry could not be completed within a

period of six months the Assessing Officer should record reasons for such non completion of the hearing and report of same should be submitted to next superior officer.

- (iii.) Once regular hearing is started, it should be completed expeditiously without giving unnecessary adjournments. The power to grant adjournment should be exercised very sparingly and that too where such adjournments becomes absolutely necessary in exceptional cases and for reasons to be recorded in writing. Adjournments should be for short periods as may be necessary having regard to the facts and circumstances of each case. Normally adjournment may be for 7 days and in no circumstances it should be for more than 15 days.
- (iv.) It may be more purposeful generally if the inquiries u/s 7A are initiated after obtaining report from the Enforcement Officers and / or sufficient material is available on record so that in the case of non-cooperation by the establishment, the Assessing Officer may be able to pass ex-parte order, except in circumstances specially recorded for initiating 7A without Enforcement Officer's report.
- (v.) The Assessing Officer should deliver the speaking Order on the day on which hearing is concluded; where it is not possible as such it should be ensured that it is done on a fixed time and date within one week.
- (vi.) The position of initiation and disposal of 7A/14B should be reviewed on monthly basis by the RPFC-I and ACC (Zone).
- (vii.) In order to ensure that inquiries u/s 7A/14B may not become a tool to provide opportunities for indulging in malpractices contents of the circular letters No. RRC/28(31)07/53677 dated 17.10.07 & Vig. XXV(02)2000/3017 dated 04.08.2010 are reiterated for strict compliance and the authorities specified therein must carry out supervisory checks in letter and spirit.

#### Initiation of penal action and filing of prosecution

Penal action in terms of filing prosecution u/s 14 of the EPF & MP Act against major and chronic defaulters and u/s 406/409 of the IPC in all cases of defaults will improve the current compliance position as well as recovery of dues. Position of these cases should be reviewed on monthly basis by the RPFC-I/ACC (Zone)

(This issues with the approval of Central PF Commissioner)

Yours faithfully,



(K.C. Pandey)

**Addl. Central P.F. Commissioner (Compliance)**

**Copy to: -**

- 1. RPFC, NDC for web upload
- 2. DD (OL) for Hindi version



(731)

Ph : 26172672  
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कर्मचारी भविष्य निधि संगठन  
(श्रम एवं रोजगार मंत्रालय, भारत सरकार)  
**EMPLOYEES' PROVIDENT FUND ORGANISATION**  
(Ministry of Labour & Employment, Govt. of India)

मुख्य कार्यालय / Head Office  
भविष्य निधि भवन, 14-भोकाजी कामा प्लेस, नई दिल्ली-110 066  
Bhavishya Nidhi Bhawan, 14, Bhikaiji Cama Place, New Delhi 110 066.

No.: Coord/5(16)2009/Misc/

Dated: 28-10-2009

To

All Addl. CPFCs, Zones  
All Regional P.F. Commissioners,  
All Officers in charge, Sub Regional Offices

29 OCT 2009

**Sub:- Arrangements for smooth exercise of powers under sections 7A, 7B, 7C/14B of the EPF & MP Act, 1952 – Administrative scrutiny of the orders– Instructions – Reg.**

**Ref:- This officer letter No. RRC-II/28(31)07/53677 to 53777 dt. 17<sup>th</sup> October, 2007.**

Sir,

Attention is invited to the above mentioned circular wherein revised instruction in supersession of earlier directions was issued for handling the cases initiated under section 7A, 7B, 7C and 14B of the Act for strict compliance then onwards. The matter is being revisited on the basis of feedback received and following clarification is issued:-

1. It has come to the notice of Head Office that the instructions issued are being interpreted differently by officers in a manner which does not appear to conform to the Head Office instructions. Taking a serious view of the matter, it is once again advised to all the field offices that directions contained in the Head Office circular have to be followed meticulously without any deviation.
2. However, should any circumstance or situation arises where the guidelines contained in this circular are difficult to implement due to any practical or administrative reasons, RPFC -I in charge of the Region shall forward a self contained proposal with proper justification to Head Office for consideration. Till issue of further instruction from the Head Office, the guidelines of the above circular shall prevail.
3. **Revised original jurisdiction under section 7A; Establishments of SRO with more than 1000 members:** In view of the practical difficulties and logistic problems expressed by the field offices, now the following arrangement for handling 7A cases is being issued in partial modification to the earlier direction dated 17<sup>th</sup> October, 2007:-

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**For SROs**

|               |                                  |
|---------------|----------------------------------|
| APFC          | Estt. with members upto 250      |
| RPFC-II / OIC | Estt. with more than 250 members |

**For ROs**

|               |                                   |
|---------------|-----------------------------------|
| APFC          | Estt. with members upto 250       |
| RPFC-II (C&R) | Estt. with 251 to 1000 members    |
| RPFC-I        | Estt. with more than 1000 members |

4. In view of the above arrangement, all RPFC-I, In-charge of the Regions are requested to transfer all such 7A cases relating to SRO jurisdiction to the respective SRO and forward a list of these 7A cases to Head Office by 15<sup>th</sup> November 2009.

It is further clarified that except for the above, all other arrangement for conducting 7A cases as contained in head office circular no. RRC-II/28(31)07/53677 to 53777 dt. 17<sup>th</sup> October, 2007 shall continue as it is and all RPFC-I are requested to continue to review the cases for timely disposal, proper assessment and subsequent recovery action as well as quality of the speaking orders.

5. **Handling of 7A cases remanded back by Courts:**

Very often, 7A cases are being remanded back by various courts / tribunal for rehearing. It has also been observed, that disposal of such cases is done in a routine manner. Therefore in order to have proper adjudication of such matters it is decided that henceforth, the hearing of remanded back cases is to be conducted by an officer, administratively one level higher than the original assessing officer as explained below except for the cases of RPFC I:-

|                            |                                  |
|----------------------------|----------------------------------|
| Original Assessing Officer | Assessing Officer on Remand Back |
| APFC                       | RPFC-II                          |
| RPFC-II                    | RPFC-I                           |

The details of all such remand back cases to be forwarded to Head Office in the following Performa on quarterly basis to RPFC (Compliance), Head Office, the first one by 15<sup>th</sup> November, 2009 and subsequently as per schedule of other quarterly returns:

| S. N o. | Name of Estt. With Code No. | Notice Period | date of 7A order | Amt. assessed | Name & Designation of 7A Authority | Reason for remand back | Remanded back by Court/ Tribunal | Name & Designation of assessing authority subsequent on remand back | Date of final disposal | Amount assessed |
|---------|-----------------------------|---------------|------------------|---------------|------------------------------------|------------------------|----------------------------------|---------------------------------------------------------------------|------------------------|-----------------|
|         |                             |               |                  |               |                                    |                        |                                  |                                                                     |                        |                 |

6. **Forwarding list of all 7A cases to Head Office:** It has been decided that all the RPFC-I will forward the list of all 7A cases of their region including their SROs, office wise to Head Office in the following format as a onetime measure by 15<sup>th</sup> November, 2009.

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| S.No. | Name of Estt. With code no. | 7A notice Period | Date of initiation of 7A | No. of hearings conducted | Assessing Authority(name & designation) | Remarks with reasons for pendency |
|-------|-----------------------------|------------------|--------------------------|---------------------------|-----------------------------------------|-----------------------------------|
|       |                             |                  |                          |                           |                                         |                                   |

The revised instructions are issued taking into cognizance the increased number of defaulting establishments, the number of 7A/14B cases initiated, timely initiation of statutory action for managing the default position and utilizing the existing manpower. The implementation of these guidelines expects to improve the compliance scenario by prompt and expeditious action. The deviations at local level by field offices not only dilutes the authority of Head Office but also leads to non uniformity of procedure and non achievement of organizational goal in terms of compliance and recovery and service to subscriber area. Timely action under the statute is of utmost importance. Delay in initiation or finalization of statutory actions adversely affects compliance management making the dues unrealizable in the long run besides inviting criticism from different forums as well as affecting the service delivery to members who are the main focus of the organization. Therefore, instructions issued from Head Office require strict compliance in letter and spirit by all concerned.

All Addl. Central P.F. Commissioner, Zones are requested to review the position and confirm that the revised arrangements are put in place and ensure to forward the information as requested in the preceding paras.

Please acknowledge receipt.

(This issues with the approval of CPFC)

Yours faithfully

(P. Sudhakar Babu)

Addl. Central P.F. Commissioner (Compliance)

**Copy to:**

1. PS to CPFC
2. FA & CAO and CVO
3. All Addl. CPFCs, Head Office, Director, NATRSS
4. Chief Engineer, Head Office
5. All Officers, Head Office
6. RPFC (Compliance), Head Office - for further processing of information received from the field offices as prescribed in the circular.
7. All Zonal Vigilance Directorates, Zonal Audit Directorates, ZTIs
8. RPFC (NDC) for hosting the circular on the website.
9. Hindi Cell for Hindi Version.

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**कर्मचारी भविष्य निधि संगठन**  
**Employees' Provident Fund Organisation**  
 (भ्रम एवं रोजगार मंत्रालय, भारत सरकार)  
 (Ministry of Labour & Employment, Govt. Of India)  
 (मुख्य कार्यालय) / Corporate Headquarters  
 भविष्य निधि भवन, 14 भीकाएजी कामा प्लेस, नई दिल्ली - 110066.  
 Bhavishya Nidhi Bhawan, 14 Bhikaji Cama Place, New Delhi-110066



**No. LC-4/22/07/Sewa International/**

**Dated:**

To

All Regional PF Commissioners,  
 In-charge of the Regions.

**23 JUN 2009**

**Sub.: Powers exercised under section 7A of the Act – legal opinion – reg.**

Sir,

Legal opinion as regards protection provided under the law for officers discharging quasi-judicial function as part of their duties obtained from the Legal Advisor, Ministry of Labour & Employment in the context of an important case under the consideration of the Ministry of Labour & Employment and forwarded to this office is reproduced hereunder for the guidance of all concerned officers :-

**"..... Perusal of the provisions of Section 7A reveals that the powers exercised under section 7A of the Act are 'judicial proceedings' within the meaning of Section 193 and 228 and for the purpose of 196 of IPC. The same are appealable and hence may attract Section 1 of the Judicial Officers Protection Act, 1850 which reads as under :-**

**"1. Non-liability to suit of officers acting judicially, for official acts done in good faith, and of officers executing warrants and orders – No judge, Magistrate, Justice of the Peace, Collector or other person acting judicially shall be liable to be sued in any Civil Court for any act done or ordered to be done by him in discharge of his judicial duty, whether or not within the limits of his jurisdiction:**

**Provided that he at the time, in good faith, believed himself to have jurisdiction to do or order the act complained of; and no officer of any Court or other person, bound to execute the lawful warrants or orders of any such judge, Magistrate, Justice of the Peace, Collector or other person acting judicially shall be liable to be sued in any Civil Court, for the execution of any warrant or order, which he would be bound to execute, if within the jurisdiction of the person issuing the same."**

(authority Joint Secretary, MOL&E D.O. No. S-38016/18/2007-SS.I dated 12.5.09)

This issues with the approval of the Central PF Commissioner.

Yours faithfully,

(P. Sudhakar Babu)

**Addl. Central PF Commissioner (Compliance)**

Copy to:

1. FA & CAO / All ACCs in Head Office / CVO / All Zonal ACCs / Chief Engineer
2. Director (Audit) / Zonal Audit Officers
3. Director, NATRSS / All ZTIs Training Institutes
4. All RPFs / APFCs in Head Office
5. RPF (NDC) – for hosting the circular on the website
6. PS to Central PF Commissioner



कर्मचारी भविष्य निधि संगठन  
**Employees' Provident Fund Organisation**

(श्रम एवं रोजगार मंत्रालय, भारत सरकार)  
(Ministry of Labour & Employment, Govt. Of India)

(मुख्य कार्यालय) / Headquarters Office

भविष्य निधि भवन, 14 भीकाएजी कामा प्लेस, नई दिल्ली - 110066.

Bhavishya Nidhi Bhawan, 14-Bhikaiji Cama Place, New Delhi-110066

दूरभाष नं. 26173877

फैक्स नं. 26174207

No. RRC.II/28(31)07/53677 to 53777

Dated : 17<sup>th</sup> October, 2007

To

- (1) All Regional P.F. Commissioners  
In-Charge of the Regions
- (2) All Officers-in-Charge, Sub-Regional Offices

Subject Arrangements for smooth exercise of powers under Sections 7A, 7B, 7C/14B of the EPF & MP Act, 1952 – Administrative scrutiny of the orders – Instructions - Regarding.

\*\*\*

Sir,

It is observed that there is wide gap between the number of defaulting establishments as per CCTS as well as other reports and the number of cases in which action is initiated under Section 7A/14B of the Act. Unless timely action is not taken u/s 7A/14B, recovery thereafter will become difficult. Besides it will ultimately force the establishments to become chronic defaulters. Hence, there is an urgent need to increase the number of officers doing the original work of assessment, using the existing man power itself so that prompt action could be taken to assess the dues w.r.t. all defaulting establishments.

2. In supersession of the earlier instructions regarding the exercise of powers by the APFC/RPFC-II/RPFC-I under Sections 7A, 7B, 7C/14B, the following instructions are, therefore, issued for strict compliance hereafter.

➤ **Assessment under Section 7A:**

- The APFC (Comp.)/RPFC-II (C&R)/RPFC-I shall exercise the original jurisdiction under Section 7A;
- The allocation of work among them will be decided based on the member strength as indicated below, reckoned with reference to the subscriber strength for the month immediately preceding the

commencement of default (i.e. the latest information available on records):-

|                                            |         |
|--------------------------------------------|---------|
| Establishments with members upto 250       | APFC    |
| Establishments with members 251 to 1000    | RPFC-II |
| Establishments with members 1001 and above | RPFC-I  |

**Review under Section 7B:**

- (i) In respect of review application from the establishment the powers under Section 7B to review the orders passed under Section 7A will be exercised by an officer only after obtaining the views of the officer next above in the hierarchy;
- (ii) ***If the higher authority on scrutiny of the 7A orders find grounds for action under Section 7B, he shall cause suo moto order for review under Section 7B.***

**Exercising powers under Section 7C for determination of escaped amount:**

***Without prejudice to the powers available to the officer who has passed the order under Section 7A, the officer at higher level who conduct supervisory test check of the Assessment may, if he so thinks, direct the concerned officer to exercise the powers under Section 7C or may do it himself treating the orders passed under Section 7A as an order passed by himself in exercise of his original jurisdiction provided, however, that the powers shall be exercised by one of the two only in each case.***

**Levy of Damages under Section 14B:**

- (i) The powers will be exercised by the APFC (Comp.)/RPFC-II (C&R)/RPFC-I in the same manner as in the case of Section 7A following the same pattern of allocation of work among them;
- (ii) In addition to the above, If felt necessary in the circumstances of the Region, the RPFC-I may utilize the services of other APFCs/RPFCs also for this purpose by specific allocation of work to them;

**Administrative Scrutiny of Orders issued under Section 7A/14B:**

Instructions were Issued in the past that RPFC-II/RPFC-I should carry out supervisory test check of at least 10 assessment orders each month and communicate his remarks/instructions to the Assessing Officer, vide Head Office letter titled COMPLIANCE-2001, dated 27.5.2000, so as to



3

ensure/improve quality of the assessment orders. But some of the inspection reports/tour notes submitted by the officers after their inspection/tour of the Regions reveal that the same is not being carried out. It is once again reiterated that the RPFC-II/RPFC-I should carry out supervisory test check of the 7A/14B orders passed by the APFC/RPFC-II as the case may be every month and his remarks/instructions should be brought to the notice of the concerned Assessing Officer under intimation to RC-I/ACC of the Zone. Supervisory Test check should be done in respect of the following cases every month:

- (i) All cases initiated based on complaints referred by VIPs/HO/Vig/Trade Unions etc.
- (ii) All cases reviewed under Section 7B resulting in reduced assessment of dues.
- (iii) All cases closed without actual assessment of dues.
- (iv) 10% of the cases other than the above.

Where it is felt necessary during the test check to invoke the provisions of Section 7B/7C, the directions above for invoking the powers under Section 7B/7C, as the case may be, should be followed. Similar exercise may be done by ACC (Zone) at random, in respect of assessment orders passed by APFC/ RPFC-II/RPFC-I.

➤ **General:**

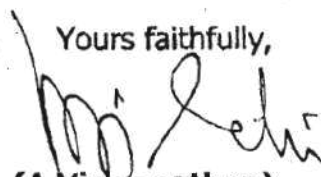
- (i) ***In respect of Sub-Regional Offices headed by APFC/Regions headed by RPFC-II the powers to be exercised by RPFC-II/RPFC-I in the above arrangement, will be exercised by the APFC/RPFC-II in-charge of the SRO/Region, as the case may be, unless alternate orders are issued in any particular case by the RPFC-I/Addl. C.P.F.C.(Zone).***
- (ii) Hob'ble Standing Committee on Labour/Trade Unions etc. have criticized in various forums about the undue delay in the finalization of cases. In view of the above, it is imperative on the part of the RPFC-I, to monitor the disposal of 7A/14B cases as promptly as possible preferably in 3 hearings in a period of 3 months. If there is any delay beyond 3 months, RPFC-I of the Region should personally review all such cases and ensure finalization within a reasonable period of not exceeding another 3 months. For this purpose, RPFC-I should obtain the information of disposal of cases under Section 7A/14B in the

2  
enclosed proforma on monthly basis and submit consolidated return of the Region to ACC(Zone) with his views.

- \* (iii) ACC(Zone) should in turn monitor the initiation and disposal of cases and take appropriate steps for speedy disposal. He will submit a consolidated return of the Zone (Region-wise) with his views to Head Office on quarterly basis.
- (iv) Relevant provisions of the Act relating to the assessment/levy and the detailed instructions issued on various occasions in the past should be kept in view and followed meticulously to ensure the proper exercise of the power and to avoid unwanted litigations/complaints of misuse of power.
- (v) ***While scrutinizing the cases decided under Section 7A/7B, if it is found that the decision is not according to law and against the interest of the Employees' Provident Fund Organization, provisions of Section 7-1 should be invoked.***
- (vi) All the pending 7A /14B cases as on the date of receipt of this letter should be transferred to the respective offices on the above lines and it should be confirmed that the said arrangement is put in place.

Encls: As above

Yours faithfully,



(A. Viswanathan)

Central Provident Fund Commissioner

Copy to:

- (1) PS to CPFC
- (2) FA&CAO
- (3) All Addl. Central P.F. Commissioners of Zones / Head Office
- (4) Director (NATRSS)
- (5) Chief Vigilance Officer
- (6) Director/Deputy Director (Vigilance)/All Zonal Directorates
- (7) All Zonal Training Institutes
- (8) All Zonal Audit Officer
- (9) RPFC(ASD), Headquarters
- (10) Hindi Cell for Hindi version

# Monthly Report on Initiation/Disposal of 7A/14B Cases

Officer: \_\_\_\_\_

Month: \_\_\_\_\_

| OB<br>as<br>on<br>1 <sup>st</sup><br>April | Initiated        |                | Disposed         |                | Inquiry pending at the end of the month for |            |             |                  |       | Remarks |
|--------------------------------------------|------------------|----------------|------------------|----------------|---------------------------------------------|------------|-------------|------------------|-------|---------|
|                                            | During the month | Upto the month | During the month | Upto the month | Less than 3 months                          | 3-6 months | 6-12 months | More than a year | Total |         |
|                                            |                  |                |                  |                |                                             |            |             |                  |       |         |
|                                            |                  |                |                  |                |                                             |            |             |                  |       |         |

Dated \_\_\_\_\_ Signature of the Assessing Officer



No.: Comp.05/Recovery/Cir/

82419

Dated: 10.2.2005

11 FEB 2005

To

All the Regional Provident Fund Commissioners  
In charge of Region, SRC and SAO

Subject:

Recovery of outstanding provident fund dues – reg.

Sir,

A review of the recovery performance as on 31.12.2004 has revealed that the organization is able to recover only 32.65% of the outstanding dues. The performance is only 60.7% against realisable current dues. The amount outstanding under realisable current dues is more than Rs.521 crores.

The Head Office has been reminding you time and again about the need for updating the assessment and recovery from the defaulting establishments. The achievement of 60.7% of recovery against current demand as against the target of 100% does not speak of any sincere efforts put in by the field officers. The position need to improve and I am not ready to accept any explanation for the under performance.

It has been made clear that recovery of current demand shall be the responsibility of the assessing officers and they shall have to achieve the full recovery during the current year itself. In case the officers feel that the recovery could be effected only by invoking the recovery provisions as contained in the IIInd schedule to the Income Tax Act and powers available under section 8F are not sufficient, the assessing officer may issue a recovery certificate to himself as he has also been notified as Recovery Officer and proceed with all recovery steps. The demand will however continue to be categorized under 'Current demand'. The assessing officers shall exercise their own discretion in issuing the Recovery Certificates to themselves. For this they shall not be required to seek approval from any higher official.

Yours faithfully,

*S.K. Khanna*  
(S.K. Khanna)

Additional CPFC (Compliance)

## Employees' Provident Fund Organisation

(Ministry of Labour, Government of India)

Bhavishyanidhi Bhawan,

14, Bhikaiji Cama Place,

New Delhi - 110066.

No. RRC/Compliance 2001/Genl./

Dated : 09-08-2001

To

All Regional Provident Fund Commissioners/  
Officers-in-Charge of Sub-Regional/Sub-Accounts Offices.

**Subject: Invocation of Section 7B – clarifications and instructions regarding.**

Sir,

Of late it has come to our notice that some Assessing Officers have been taking resort to the powers under Section 7B rather indiscriminately.

2. In fact in some cases, it has been noticed that long after assessments were made under section 7A, the cases have been re-opened under section 7B and the amounts assessed have been reduced drastically without passing any elaborate speaking orders in a very perfunctory order. This sort of reckless behaviour on the part of assessing officers need to be curbed and in fact would also attract adverse attention from the point of view of vigilance, prima facie.

3. In almost all legislations, a quasi-judicial functionary would become *functus officio* immediately on passing the orders. This means they all would not be able to re-open the inquiry and conduct any inquiry afresh. However, under EPF & MP Act, Section 7B provides for a review of orders passed under section 7A. the exercise of powers under section 7B is, however, restricted only to the following contingencies:-

(i) Discovery of new and important matter or evidence which was not within the knowledge of the employer or could not be produced by him at the time when the order was made even after the exercise of due diligence.

(ii) A mistake or error apparent on the face of the records.

4. Again in the second-proviso to sub-section (4) of section 7B, it has been stressed that the assessing officer before whom application for review has been filed should reject the application, if, the employer does not produce sufficient proof to the



effect that he has discovered new matter or evidence which was not within his knowledge or could not be produced by him when the order was made.

5. It could, therefore, be seen that unless the employer comes up with irrefutable evidence about discovery of new facts or evidence **which was not within his knowledge even after due diligence**, the Assessing Officer should not decide to re-open the issue. The burden of proof is on the employer to bring sufficient proof, which dispute his best efforts he could not produce at the time of inquiry or before the order was passed. In other words, a mere submission by the employer that he was not aware of the facts at the time of inquiry, or some vague submission that the material evidence or records was not available at the time of inquiry, would not be enough.

6. Further, under section 7B, an application can be entertained only if the same is filed in form number 9 within 45 days of passing the order under section 7A. With a view to curb the indiscriminate use of section 7B, the following procedure should invariably be followed in all cases in future.

- (i) Applications received under section 7B beyond 45 days have to be rejected outright.
- (ii) Applications received under section 7B within 45 days, when the employer has also filed an appeal against the 7A should be rejected outright.
- (iii) Applications under section 7B submitted without the proforma in form number 9 is to be rejected.
- (iv) An applications received by the assessing officer (including by a successor in office) well within the limitation period and in the prescribed format should be carefully scrutinized to satisfy whether the petition satisfies the ingredients laid down under section 7B as has been clarified above including production of sufficient proof that the employer was not knowing certain important matter of evidence at the time of the inquiry or before the passing of the order.
- (v) Based on the above parameters, if the assessing officer feels that case has to be re-opened, he has to put up an elaborate note furnishing the reasons why he proposes to re-open the cases and get administrative approval from the Regional Provident Fund Commissioner-in-charge of SROs/SAOs or Regional Provident Fund Commissioner (Compliance and Recovery). The same procedure will hold good in the case of Regional Provident Fund Commissioner-II, if, he has conducted an inquiry under section 7A (on specific directions of the Regional Provident Fund Commissioner-I), in case he wish to accede to the request of an employer to re-open the hearing under section 7B.
- (vi) In case the Regional Provident Fund Commissioner feels after a careful perusal of all the facts and circumstances in the case that the case should not be reopened he should record and intimate the assessing



officer the reasons why he differs with the recommendations of the assessing officer to reopen the case.

- (vii) In case the Regional Provident Fund Commissioner disagrees with the proposal, the assessing officer should reject the request of the employer **citing reasons for rejection. However, the assessing officer should not cite the disagreement of Regional Provident Fund Commissioner as a reason for rejection in his order/communication to the employer.**

7. The administrative approval from the Regional Provident Fund Commissioners should be obtained expeditiously by the assessing officer. It would be his responsibility to ensure that the files/notings are sent to the Regional Provident Fund Commissioners to enable him to take a decision and to get his approval/concurrence for re-opening the hearing under section 7B expeditiously.

8. From the statistics furnished by the Regions, it is noticed that some cases under Section 7B are shown to be pending for disposal for a long period. Such cases should be reviewed by the RPFCs in charge of the SROs/SAOs and RPFC (Compliance & Recovery) respectively in their offices as per the above guidelines and finalized within a month and a report submitted to RPFC in charge of the Region. RPFC-I should report about the outcome of the hearings in respect of such cases before the end of September 2001 to the Head Office

Yours faithfully,

---Sd/---

(K.B. Yadav)

Addl. CPFC (C)

Copy to:

1. PS to CPFC
2. Addl. CPFC, North Zone and West Zone.
3. Programme Officer, South Zone and East Zone.
4. Director, NATRSS.
5. Regional Provident Fund Commissioners, Head Office.

---Sd/---

(S. Raghuram)

Regional Provident Fund Commissioner (C)



EMPLOYEES' PROVIDENT FUND ORGANISATION, (GENERAL OFFICE)  
HUDCO VISHALA, 14, BHIKAJI CAMA PLACE, R.K. PURAM,  
(C) NEW DELHI-110066.

No. Misc. 1(2)/89/14407

Dated the: 25/3/1997  
26/3/1997.

All Regional P.F. Commissioners/  
All Officers in Charge, Sub Regional Offices.

Sub: Employees Provident Funds & Misc. Provisions  
Act, 1952 and Scheme framed thereunder -  
Waiver of employees share of Contribution  
not deducted from the employees regarding.

Please refer to this office circular No. Misc. 1(2)  
89/E.I dated 13/6/91 forwarding therewith a copy of Govt's  
letter No. R-11025(25)/87-SS. II dated 6/10/89 wherein in  
exercise of powers conferred in Para 78 of the EPF & MP Act,  
1952, the Central Government directed waiver of the recovery  
of the employees share of contribution not deducted from the  
wages of the employees during the period mentioned below:-

- (1) Pre-discovery Period : This will include the period  
commencing on the date from which the Act is legally applicable  
to factory or establishment and the date on which a formal  
notice for coverage under the Act is served on the employer  
by the provident fund authorities. In all such cases, the  
employees share of contribution shall be payable from the  
first of the month following the issue of the notice for  
coverage under the Act.
- (ii) Period covered by the general stay order given by the  
Supreme Court of India on the application challenging the  
notification extending the provisions of the Act to an  
industry/class of establishments. This will include the period  
from the date of extension of the Act to the date of final  
judgement of the Court. In all such cases, the employees share  
of contribution shall be payable from the first of the month  
following the judgements.

(2) Shri Parduman Singh, Member, C.B.T., however has raised  
some doubts over the above direction and wanted the matter to  
be discussed in the C.B.T. Accordingly, the matter was placed  
for discussion in its 140th meeting held on 3/2/1995. After  
considering the matter the Board decided as follows :

- (i) Where a notification covering an Industry or class of  
establishment is issued with retrospective effect, the employer  
will not be liable to pay the employees share of contribution  
for the pre-discovery period.



... 2 ...

(ii) In respect of the Factory/establishment which satisfied the criteria laid down for coverage under the provision of section 1(3) of the Act but had not started compliance, till such non-compliance had been detected by the Provident Fund Authorities or have started compliance with the provision of the Act from the date subsequent to the actual date from which they should have complied with the Provisions of the Act on their own, the reason shall be ascertained from the employer as to why the employees share of contribution should not be recovered from him, and depending upon the genuineness of circumstances the issue may be decided appropriately by the Regional P.F. Commissioner concerned.

In view of the above the matter has been examined in consultation with the Government of India, Ministry of Labour and they have partially modified the above said decision of the CBT as mentioned hereunder :-

(i) Where a notification covering an industry or class of establishment is issued with retrospective effect, the employer will not be liable to pay the employees share of contribution for the pre-discovery period.

(ii) In respect of Factory/Establishment which satisfied the criteria laid down for coverage under the provisions of section 1(3) of the Act but not started compliance, till such non-compliance had been detected by the Provident Fund Authorities or have started compliance with the provisions of the Act from a date subsequent to the actual date from which they should have complied with the provisions of the Act on their own, the reason shall be ascertained from the employer as to why the employees share of contribution should not be recovered from him, and depending upon the genuineness of circumstances, the issue may be decided appropriately by the Regional P.F. Commissioner concerned.

Cont...PAGE...(3)



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Further action in the matter may kindly be taken accordingly.

Yours faithfully,

Sd/-

( R. K. KUREEL )  
REGIONAL PROVIDENT FUND COMMISSIONER, (HQ),  
FOR CENTRAL PROVIDENT FUND COMMISSIONER.

EMPLOYEES' PROVIDENT FUND ORGANISATION,  
"BHAVISHYANIDHI BHAVAN", NEAR R.B.I., INCOME TAX CIRCLE,  
ASHRAM ROAD, AHMEDABAD-14.

No.GJ/AHD/COORD/(138) / 17

Date: 11/04/1997

Circulated amongst the Regional P.F. Commissioner, (Z.T.I.), Sub Regional Offices, Surat, Rajkot and Baroda, All Assistant P.F. Commissioner, Enforcement officer, Assistant Accounts officers and Section Supervisor for information and necessary action.



( SHRI SINGH )  
REGIONAL PROVIDENT FUND COMMISSIONER, (II).

To,

1. All Regional P.F. Commissioner, (I), (ZFI).
2. Regional P.F. Commissioner, (F&A).
3. Officer in charge, Sub Regional Office, Surat, Rajkot and Baroda.
4. All Assistant P.F. Commissioner.
5. All Enforcement officer/ Assistant Accounts officers.
6. P.A. to R.P.F.C., (I), (II).

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No. S-35025/15/88-SS-II  
Government of India/Bharat Sarkar  
Ministry of Labour/Shram Mantralaya  
.....

New Delhi, dated the 6 January, 1989

The Central Provident Fund Commissioner,  
New Delhi.

Subject:

Grant of exemption to departmental undertakings under  
the control of Central/State Government and  
statutory bodies - regarding.  
.....

4(10) Sir, P-220-221  
C.A.

1. I am directed to refer to your letter No. P.O.Cell-  
4/(2)/85-2163 dated the 6th December, 1988 on the subject mentioned  
above and to say that new clauses (b) and (c) of Section 16(1)  
do not provide for issue of any notification for grant of exemption  
The exclusions under Section 16(1)(b) and 16(1)(c) is, therefore,  
automatic. The establishments falling in the categories specified  
in the two clauses thus stand excluded from the purview of the  
E.P.F. Act with effect from 1.8.1988.

2. The above mentioned provisions were made in the  
background of the report that departmental undertakings and  
statutory bodies having their own provident fund or pension scheme  
were not generally complying with the provisions of the E.P.F.  
Act and have been pressing for their exclusion from the purview of  
the Act. However, while making this provision, it was never the  
intention of the Government to deprive the establishment which  
have been complying with the provisions of the E.P.F. Act and to  
deprive their employees of the benefit of provident fund, family  
pension etc. You are, therefore, requested to instruct the  
establishments and statutory bodies falling in the categories specified  
in Section 16(1)(b) and 16(1)(c) and to take further action as  
indicated below:-

- (i) The establishments which satisfy the requirement of  
Section 16(1)(b) or 16(1)(c) and have not been  
complying with the provisions of the Act may be  
removed from the list of covered establishments  
w.e.f. 1.8.1988 and their cases may be closed.
- (ii) The establishments which satisfy the prescribed  
requirements but have reported partial compliance  
or have been disputing the coverage under the Act  
may also be removed from the list of covered  
establishments w.e.f. 1.8.1988.

.....2/-



(11)

The establishment which satisfy the requirement for exclusion but have been reporting regular compliance may continued to be covered under the Act, not withstanding their exclusion under section 16(1)(b) or section 16(1)(c) and their cases may be considered separately for regularisation under section 1(4); and

(12)

There may be establishments which employ large number of casual/contingent staff, who are not entitled to the benefit of provident fund or pension. The casual/contingent staff of such establishment will continue to be covered under the Act, but their regular employees who are entitled to the benefit of provident fund/pension should be excluded from the purview of the Act.

The question of regularising the past period, where necessary, by grant of exemption, may be considered separately in due course, after completing the above exercise. You are requested to instruct the Regional Provident Fund Commissioners accordingly.

Yours faithfully,



(A.K. Bhattarai)  
Under Secretary

of.